

SUMMARY PROCEDURE AND ALL APPLICATIONS UNDER O.36.

1. The scope of application of O.36

Order 36 R.[1] appears to restrict suits there under to the High Court and magistrates courts with the exception of G2 who's According to O.36 r.1, the order applies to the high court and magistrates courts. However, although the rule provides for magistrates courts, the order doesn't apply to Magistrates' Courts Grade II . This is because they have their own rules of procedure under the third schedule of the MCA

In **Nakabago Cooperative society v Livingston Kyanga.**, Mpagi-Bahigeine J (as she then was) held that: *the Civil Procedure rules which provide for summary suits, are inapplicable in courts presided over by magistrates grades II and III; the applicable Rules are set out in schedule 3 of MCA..*

2. O.36 has no application where the intended defendant to the suit is the Attorney General.

This is set out in R.17(1)(2) of the Government proceeding Civil procedure Rules. However under the same Rule, the Government or a AG can commence a summary suit against any defendant provided the claims are suitable for O.36

This rule was considered in the case of **Uganda National Roads Authority v Vivo Energy Uganda ltd (MA No. 209 OF 2014)**

The plaintiff/respondent brought a summary suit against the defendant/applicant for which Counsel for the applicant raised a point of law in regard to Regulation 17(2) of the Government Proceedings Regulations which bars bringing suits against the government by summary procedure under Order 36 of the CPR and prayed that the suit be dismissed. In reply, counsel for respondent argued that it is not logical that while the government can bring suits under the same procedure, proceedings cannot be instituted against it under the same procedure. He argued that the Constitution 1995 in Article 21 provides for equality of all persons.

Held;

Court agreed with Counsel for the respondents that unjustified discrimination between the state and an individual is no longer tenable in view of the provisions of Chapter Four of the Constitution 1995. For the above reason the point of law raised by Counsel for the respondents failed.

Rationale of Order 36;

Post Bank (U) Ltd v Ssozi (CIVIL APPEAL NO: 08 OF 2015) [2017]

Held; Supreme Court; Jotham Tumwesigye JSC.

Order 36 was enacted to facilitate the expeditious disposal of cases involving debts and contracts of a commercial nature to prevent defendants from presenting frivolous or vexatious defences in order to unreasonably prolong litigation. Apart from assisting -



**+the courts in disposing of cases expeditiously, Order 36 also helps the economy by removing unnecessary obstructions in financial or commercial dealings.*

Defendants in cases which fall under Order 36 are protected by being given the right to apply to court for leave to appear and defend the suit. When the court receives their application and is satisfied by the defendant's affidavit that the defendant has raised a genuine triable and not a sham or frivolous issue, it will grant the defendant leave to appear and defend the suit. (Order 36 rule 4).

If the court is not satisfied that the defendant has raised a triable issue, it will refuse to grant leave to appear and defend the suit, and the plaintiff will be entitled to a decree in the amount claimed in the plaint with interest, if any. (Order 36 rule 5)

If the defendant fails to apply for leave to appear and defend in the time prescribed (which is 10 days), the plaintiff is entitled to a decree for an amount claimed in the plaint with interest, if any. (Order 36 rule 3(2)).

Rationale of Order 36 was considered in detail in **BEGUMISA GEORGE v EAST AFRICAN DEVELOPMENT BANK** by Justice Irene Mulyagonja;

“The rationale of Order 36 was succinctly stated in **Zola & Another v. Ralli Brothers Ltd. & Another [1969] EA 691** at 694, a decision about the Kenya equivalent of our

“Order 35 is intended to enable a plaintiff with a liquidated claim, to which there is clearly no good defence, to obtain a quick and summary judgment without being unnecessarily kept from what is due to him by the delaying tactics of the defendant. If the+-*

**- judge to whom the application is made considers that there is any reasonable ground of defence to the claim, the plaintiff is not entitled to summary judgment.*

... Normally a defendant who wishes to resist the entry of summary judgment should place defence.”

The order is draconian. Instead of trial first and then judgment, there is never a protracted trial but judgment, once and for all at once, and without the defendant having his day in court on fully explored merits. The high cost of litigation and the premium of holding cash when interest rates are high greatly increase the attractiveness of procedural shortcuts such as Order 35 (our Order 36) to commercial plaintiffs for *“It is more advantageous to win with a*

According to **Lord Esher, M.R** in **Roberts v. Plant [1895] 1 QB 597**:

“It is a strong thing to give such a power to a judge, and this court and all the courts have said therefore, that they would watch strictly the exercise of that power.

But they did not mean by that that they would give effect to every pettifogging objection which the iniquity of a defendant could raise.”

SIKIA
LOW

Zola and another v Ralli Brothers Limited and another [1969] 1 EA 691

It was held that Order 36 is intended to enable a plaintiff with a liquidated claim, to which there is clearly no good defence, to obtain a quick and summary judgment without being unnecessarily kept from what is due to him by the delaying tactics of the defendant

Nature of claims

What claims that can be brought under O.36?

According to O.36 r.2, summary procedure is applicable in all suits:-

a) where the plaintiff seeks only to recover a debt or liquidated demand in money payable by the defendant, with or without interest e.g. upon a contract, expressed or implied, *inter alia*

Order 36 is optional and only evoked by a party making a liquidated claim

Sterling Travel And Tour Services Ltd V Millennium Travel And Tours Service Ltd J Helen obura on what is meant by a liquidated demand,

'it is trite law that summary procedure should only be resorted to in clear and straight forward cases where the demand is liquidated and where there are no points for the courts to try. The same position is reflected under Order 36 rule 2 (a) of the CPR.

Black's Law Dictionary 8th Edition defines liquidated amount as "*a figure readily computed, based on an agreement's term*". It is stated in "**The Annual Practice**" 1966, **Sweet & Maxwell, London** that a liquidated demand is in the nature of a debt, a specific sum of money due and payable under or by virtue of a contract which is either already ascertained or capable of being ascertained as a mere matter of arithmetic. It is

also stated in "**The Supreme Court Practice**" 1966, **Sweet & Maxwell, London** that;

"...if ascertainment of a sum of money even though it be specified or named as a definite figure, requires investigation beyond mere calculations, then the sum is not a debt or liquidated demand but constitutes damages".

Court found that the respondent/plaintiff's claim is not properly brought by summary claim because it requires proof by adducing more evidence"

BEGUMISA GEORGE v EAST AFRICAN DEVELOPMENT BANK by Justice

Irene

Mulyagonja on what is meant by a proper claim,

Definition of Liquidated demand

There are various interpretations of what amounts to a “liquidated demand. In ***“The Annual Practice” (1966, Sweet & Maxwell, London)*** it was stated that a liquidated demand is in the nature of a debt, a specific sum of money due and

payable under or by virtue of a contract which is either already ascertained or capable of being ascertained as a mere matter of arithmetic. In *“The Supreme Court Practice”* (Ed. Jack I. H. Jacobs, 1966, Sweet & Maxwell, London) a liquidated demand is said to be in the nature of a debt, and that if ascertainment of a sum of



money even though it be specified or named as a definite figure, requires investigation beyond mere calculations, then the sum is not a debt or liquidated demand but constitutes damages

O.36 r2 in its strict sense presupposes that the only claim that can be sustained must be a liquidated demand only. The phrase the word “only” was explained in **Shelter Ltd v Anastaziia Nakazi** to mean liquidated demand and nothing else [save for costs].

Kasule v Kawesa [1957] 1 EA 611

The plaintiff had instituted this suit by summary procedure under O. 36 of the Civil Procedure Rules and had claimed Shs. 2,500/- on an agreement, and also claimed interest at six per cent from the date of filing the plaint; it was argued that the claim for interest is not a liquidated claim within the meaning of O. 36, there being no provision for interest under the agreement. *Whether interest is a liquidated claim within O. 36?*

HELD; that interest cannot be claimed in a suit under O. 36 unless based on an agreement for interest in the document sued on or on Statute; Court cited with approval, the statement of **Lord Esher MR in Wilks V Wood (1892) 1 QBD 684,686**, to the effect that; *the word “only” in the rule means only and that if anything else is added to the liquidated demand, the writ does not come within the definition of a specially endorsed summary plaint*

The plaint presented in this case was irregularly presented under O. 36 because the claim for interest was not provided for under the agreement.

Also Sir Newnham Worley *Uganda Transport Co. Ltd.v. Count de la Pasture* (21 E.A.C.A at p. 168) said:

“ . . . I think it useful also, in support of the proposition that there is no discretion to allow a claim to be

brought by summary procedure, if it is not precisely within the terms of Order XXXIII, rule 2, to cite the

following from the judgment of Lord Esher, M.R., in *Wilks v. Wood* at p. 686: ‘All I can say is that the word

“only” in the rule means “only”, and that if anything else is added to the liquidated demand, the writ does not

come within the definition of a specially endorsed writ.’”

The issue of *Whether interests are recoverable under Summary proceedings* was further considered in the case of **BEGUMISA GEORGE v EAST AFRICAN DEVELOPMENT BANK** by Justice Irene Mulyagonja;

“I reviewed the authorities cited by Mr. Guma, i.e. the decisions in **Arjabu Kasule v. F. T. Kawesa [1957] EA 611** and **E. M. Cornwell & Co. Ltd. v. Shantaguari Dahyabhai Desai (1941) 6 ULR 103**. It is true that they reflect the position that a claim under O.36 should not include interest, except where the document sued upon includes an agreement on interest. However, the decision in **Arjabu Kasule** discusses the question further. Relying on the decision in **Uganda Transport Co. Ltd. v. Count de la Pasture (3) (1954), 21 EACA 163**, it was held that:



“... where a plaint endorsed for summary procedure contains claims correctly endorsed and other claims, the court may, by O.33 rule 3 to rule 7 and 10 (Now Order 36 rule 3 to 7 and 10), deal with the claims correctly specially endorsed as if no other claim had been included therein and allow the action to proceed as respects the residue of the claim, the court having no power under O.33 (Now Order 36) to strike out any part of the claim but being unable to give summary judgment for any relief not within the scope of O.33 rule 2 aforesaid.”

The ratio that a claim including interest cannot be brought under summary procedure is therefore not applicable to every suit. It will be necessary here to first establish whether the rest of the respondent's claim was validly brought under O.36 rule 2 CPR before I come to a decision that the suit was wrongly endorsed under Order 36 because of a claim for interest.”

In this case the judge found that Begumisa Enterprises admitted that it owed the respondent UD\$ 3,989,162 and that interest would continue to accrue on the debt at the contractual lending rates. Court found that the sum of US\$ 4,723,995.69 being the debt and the interest accruing thereon was a liquidated demand and that the plaint was properly endorsed under summary procedure

Post Bank (U) Ltd v Ssozi (CIVIL APPEAL NO: 08 OF 2015) [2017]

HELD; There is no doubt that Order 36 rule 2 restricts suits to claims based only on contract or land as spelt out in rule 2. Therefore, any claim based on a different cause of action would have to be brought by way of an ordinary suit and not under Order 36.

b) Being actions for the recovery of land with or without a claim for rent or mesne profits by a landlord against a tenant e.g. whose term has expired

O.36r2b applies where the claim is for rent, mesne profit and or recovery of possession of premises between a land lord and tenant either where the tenancy has expired or where it has been terminated by notice or where it is forfeited for non payment or rent

In **Budai Coffee Hulling Factory Ltd v Eria M Babumba** [1963] 1 EA 613 on the import of 36r2b

The plaintiff filed a plaint specially endorsed for summary procedure under Order 36 of the Civil Procedure Rules claiming vacant possession of certain premises and mesne profits from December 1, 1962 until possession. The defendant was granted

unconditional leave to defend and at the hearing of the suit raised a preliminary point that O.36I was not applicable as the action was for the recovery of premises and not land, and that possession could not be recovered by summary procedure as O.36 r. 2 deals with the recovery of a debt arising out of actions for the recovery of land.

Held –



- (i) under Order 36, r. 2 only debts or liquidated amounts arising out of an action for the recovery of land are recoverable and permissible under that Order and not possession of the land;
- (ii) (ii) since the amount claimed in respect of mesne profits was unliquidated summary procedure was not applicable and the plaint should be struck out. Order accordingly.

However Briggs, J.A. by obiter in *Uganda Transport Co. Ltd.v. Count de la Pasture* (21 E.A.C.A., at p. 165), had stated that actions for the recovery of land can be brought by summary procedure. As this was obiter, the judge in the *Budai* case above did not find himself bound by it.

Busingye & Co. Ltd v Mayimuna Muye (MA No. 87 Of 2011) [2012] UGHC 17

The Respondent/Plaintiff filed a specially endorsed suit against the Defendant/Applicant for recovery of land by delivery of vacant possession. The applicant applied to be granted leave to appear and defend. The applicant/Defendant's Counsel argued that there has to be a definite claim for rent by the Plaintiff against the Defendant.

Held;

The prayer in the plaint is for recovery of land by giving vacant possession. There is no claim as to rent. Summary procedure under Order 36 rule 2 of the CPR clearly envisages actions for recovery of land, rent or mesne profits. The wording of the rule is clear. The action can be "*for recovery of land, with or without claim for rent or mesne profits*". This infers that the claim for recovery of land can stand on its own under summary procedure. In view of the wording of the rules, a claim for recovery of land alone can also be instituted by way of summary procedure under Order 36(2) of the CPR. It provides an ideal quick remedy to the landlord to recover possession of the property or rent due.

Legal effect and procedure where claim is both liquidated and unliquidated;

Where the claim in the suit brought under O.36 is both liquidated and un-liquidated contrary to the strict wording of O.36r2(a) the remedy available is for court to sever the two claims and only consider the liquidated demand. The plaintiff who is desirous of obtaining a default judgment has to abandon the un-liquidated claims.

Sterling travel and tour services ltd v millennium travel and tours services ltd

It was held that it is trite law that summary procedure should only be resorted to in clear and straight forward cases where the demand is liquidated and where there are no points for the courts to try. The same position is reflected under Order 36 rule 2 (a) of the CPR.

Uganda Transport Co Ltd V Count De la Pasteur (1954) EA ,21 EACA 163 at 165;The plaintiff sued for salaries and for damages for breach of contract. He later amended his plaint



to include exemplary damages. The defendant contended that the suit fell squarely outside O33 r2.

Held: That there is no discretion to allow a claim to be brought by summary procedure if it is not precisely within the terms of O.36 r 2 which requires such a claim to be for liquidated damages or for recovery of land by a landlord. That save for claim for salaries, the claim for damages for unlawful and wrongful dismissal was unliquidated..

That Where a plaint endorsed for summary procedure contains claims correctly endorsed and other claims, the court may, by Order 36, rules 3 to 7 and rule 10, deal with the claims correctly specially endorsed as if no other claim had been included therein and allow the action to proceed as respects the residue of the claim, the court having no power under Order 36 to strike out any part of the claim but being unable to give summary judgment for any relief not within the scope of Order 36, rule 2, aforesaid.”

SOLOMON BAGANJA v HENLEY PROPERTY DEVELOPERS LTD

The applicant who is the Defendant in the main suit sought the leave of court for unconditional leave to appear and defend the suit. Counsels informed the court that it was agreed by the parties that the applicant/Defendant pays the contractual sum of US\$26,000 and 1% as penalty fees. They informed the court that they had not agreed on the issue of costs and that the Plaintiff wants costs, interest and general damages. Partial judgement was entered for a sum of US\$26,000 and 1% as penalty fees against the Defendant. The court further ordered that conditional leave is granted to the applicant/Defendant to file a defence in respect of the remainder of this suit to try the issues of general damages, interests and costs.

Counsel for the defendant raised an objection as to whether the claim for general damages arising out of a summary suit is properly before court?

In holding, court relied on the authority of; **Uganda Transport Company Ltd versus Count De la Pasture (1954) EACA 163 at 168** and held that;

“It is abundantly clear that the Court of Appeal for East and Africa held that where a claim does not fall under summary procedure in terms of Order 36 rule 2, the claim should not be allowed under the Order. The question then is what is the remedy? The obvious remedy according to the same court is not to strike out the claim but to treat it as an ordinary plaint and allow the Defendant unconditional leave to appear and defend the suit.

That where leave has been granted, the Plaintiff is not entitled to summary judgement and it is immaterial what the claim may be. This is because where the claim does not fall under Order 36 rule 2 of the Civil Procedure Rules,

unconditional leave would be granted because the Defendant would be entitled to it. The Defendant would defend the suit as if it was an ordinary suit and evidence will not be led by affidavits but true viva voce evidence. The flipside would be that the Plaintiff would not be entitled to summary judgement on the basis of a claim that does not fall within the four corners of Order 36 rule 2 of the Civil Procedure Rules. In other words because there was no power to strike out the Plaintiffs claim, the Defendant would be entitled to unconditional leave to defend the entire claim as it is on the merits.” Court overruled the objections.

Default judgement under O.36.



A default judgment connotes judgment entered against a defendant who upon due service of summons fails to enter appropriate appearance

Before court can enter a default judgment in exercise of its mandate under O.36 the following must be in existence..

1. The claim must have been liquidated and where it is a combination of liquidated and unliquidated demands, the plaintiff must abandon the unliquidated demands..

Valery Alia v Alionzi John

HELD; that where there is a claim for liquidated damages together with a claim for pecuniary damages, the registrar can enter default judgement in respect of the liquidated demand and set down the suit for assessment of damages in respect to the claim for pecuniary damages.

Halsbury's laws of England volume 12 (1) fourth edition reissue page 267 and paragraph 808 defines liquidated and unliquidated damages and penalties as follows:

"The parties may agree by a contract that a particular sum is payable on the default of one of them. If the agreement is not obnoxious as a 'penalty', such a sum constitute 'liquidated damages' and is payable by the party in default. The term is also applied to sums expressly made payable as liquidated damages under a statute. In every other case, where the court has to quantify or assess the damages or loss, whether pecuniary or non pecuniary, the damages are 'unliquidated'."

The claim under a lease or hire of a vehicle pursuant to a written contract with a definite sum payable monthly or weekly as in this case will give rise to a liquidated demand upon default to pay the sums certain in money.

2. The judgment can only be in respect of the amount set out in the plaint which are liquidated in nature within the parameters of O36r2(a)...

Sterling Travel and Tour Services ltd v Millennium Travel and Tour Services;

where it was held where it was held that it is trite law that summary procedure should only be resorted to in clear and straight forward cases where the demand is liquidated and where there are no points for the courts to try. The same position is

reflected under Order 36 rule 2 (a) of the CPR

3. The defendant must have been served with summons and the relevant pleadings in the manner required for service of summons under O.5...
mugume v akankwasa
4. Even where the summons and pleadings allege to have been served on the defendant, such service must be evidenced by the filing of an affidavit of service O.5r16...

Edison Kanye bwera v Pastori Tumwebaze,



HELD; there was no evidence on record that the defendant was served. Order 5, rule 17 of the

C.P.R requires the serving officer, to make an affidavit of service stating the time when and the manner in which the summons was served and name and address of the person, if any, identifying the person served and witnessing the delivery of the tender of the summons. The provisions of this rule is mandatory, it was not complied with in the instant case. What the rule stipulates about service of summons, applies equally to service of hearing notices. There was no affidavit of service on the record. The absence of such affidavit leads inevitably to the conclusion that the defendant was not properly served with the hearing notice before the suit was heard in his absence. Appeal allowed.

Craig v Kanseen [1943] 1 All ER 108 **HELD;** that the failure to serve the summons upon which the order was made was not a mere irregularity, but a defect which made the order a nullity and therefore, the order must be set aside.

5. The time within which the defendant is supposed to apply for leave to appear and defend must have lapsed. The time is not set out in O.36r3 but the specimen summons in the schedule to the rules indicate the time of ten days...(Form 4 Appendix A)

Uganda Telecom ltd v Airtel UG ltd,

Counsel for the respondent raised a preliminary objection to an application for leave to defend a summary suit. Counsel contended that the application for leave to appear and defend was brought out of time. He submitted that the suit was filed under Order 36 rules 2 and 3 of the Civil Procedure Rules (CPR) on the 17th December 2010 and summons was served on the applicant on the 20th December 2010. That the time stated in the summons in summary suit for filing application for leave to appear and defend was ten days. He submitted that the ten days expired on the 30th December 2010 and this application was filed on the 17th January 2011. He further submitted that after the expiry of the ten days, the respondent applied for and obtained judgment under Order 36 rule 3(2) of the CPR on 11th January 2011 and subsequently, a decree was issued on the 1st February 2011.

HELD; That under Order 51 in the computation of the time for filing of such

application the period between the 24th day of December 2010 and 15th day of January 2011, both days inclusive should not be reckoned. That, therefore, this application which was filed

on 17th January 2011 was within time. That in view of Order 51 rule 4 of the CPR, the time for filing of the application for leave to appear and defend was meant to expire on the 21st January 2011. This means that the judgment entered in default on the 11th January 2011 and the decree issued on the 1st February, 2011 were done without taking into account the provisions of Order 51 rule 4 and as such the decree was obtained before the expiry of the ten days prescribed in the summons provided for under Order 36 rule 3(1) of the CPR. In fact the default anticipated under Order 36 rule 3 (2) that would entitle the plaintiff to a decree had not yet occurred so the judgment was entered prematurely. In conclusion, the entry of the judgment and the issuing of the decree were done contrary to the law, specifically , order 36 rule 3(1) and (2) and order 51 rule 4 of the CPR.



Mufumba v Waako HELD; that when the Applicant failed to file for leave to defend, he locked himself out of the proceedings, so that much as he remained a party to the suit, he could only be *seen* but not *heard* as the proceedings were handled in his absence. Ref: **Order 36 r.3 CPR**

6. The court can only pass the decree in respect of the sum claimed in the plaint as liquidated, any interest as pleaded which must equally be liquidated and costs of the suit. *Sterling Travel supra*,
7. The application for a default judgement is by formal letter which itself constitutes a judgment upon being signed and sealed by court

Default judgment against government.

Rule 6 of the Civil Procedure (Government Proceedings) Rules enacts as follows:

“Judgment shall not be entered and no order shall be made, against the Government in default of appearance or pleading under any provision of the principal rules without leave of the court, and application for such leave shall be made by summons served not less than seven days before the return day.”

AG V Sengendo

The plaintiff had been attacked, shot and injured by soldiers on a highway a few hours after an assassination attempt on the then President. Counsel for the defendant had filed no defence but proposed to take part in the proceedings. When this was refused he relied on r. 6, Civil Procedure (Government Proceedings) Rules.

Held –

- (i) a defendant who files no defence cannot be heard
- (ii) judgment in default of pleading by the government is prohibited, but not judgment after hearing

Agasa Maingi V AG

This is an application by way of chamber summons brought under the provisions of rule 6 of the Civil Procedure (Government Proceedings) Rules and O.11 r.6 of the Civil Procedure Rules for orders that: Judgment in default be entered against the respondent/defendant.

HELD; It is clear therefore that the application was brought in court in conformity with rule 6 of the Civil Procedure (Government Proceedings) Rules. The Attorney General though served did not appear in court. On this ground alone the application would succeed.

Application for leave to appear and defend under O.36r3,4



O.36 r3 requires service of summons to be effected on to the defendants by summary procedure.

The defendant upon due service is entitled to apply for leave to appear and defend implying that he cannot legally file a WSD unless and until permission is so granted by the court..

The procedure for applying for leave to appear and defend is by notice of motion supported by a valid affidavit or affidavits...

Francis Bwengye v Haki Bonera.

The application was filed by Chamber Summons instead of Notice of Motion

HELD; Suffice it to say, first of all, that all applications to the court, except where otherwise expressly provided for under the Civil Procedure Rules, are by motion to be heard in open court. O.52 r.1 of the Civil Procedure Rules is very clear on this. Secondly, applications for leave to defend are provided for under O.36 r.4 of the Civil Procedure Rules. The appellant's application was preferred under O.41 rr.1, (2) (1) and 9 which governs applications for temporary injunctions. Clearly therefore the application was defective on account of being preferred under a wrong law. However court applied Art 126(2)(e) to cure the defect.

Century Enterprises Ltd v Greenland Bank;

HELD; . Under O.36 r 4, all that the Defendant has to show is that there is a triable issue of fact or law. The Defendant can do so by filing an application for leave to appear and defend the suit. The application takes the form of a Notice of Motion

The notice of motion must be filled together with the supporting affidavit or affidavits, and in in case of more than one applicant each of the applicants must file an affidavit in support or one applicant may depone an affidavit on behalf of the other applicants...

Ready Agro Suppliers and 2 ors v UDB

There was an application seeking leave to defend the main suit supported by the affidavits of the second and third applicants. The application was challenged on grounds that applicants no.1 and 3 had not filed applications for leave to appear and defend and judgment ought to be entered against them. In particular in respect

of applicant no. 3 that the affidavit filed by him was out of time, as it was filed beyond the time allowed for instituting applications for leave to appear and defend after service of the plaint. It had been filed a month after the application for leave to appear and defend was filed

HELD; The affidavit of applicant no.3 filed, a month after the application for leave to appear and defend was filed, was clearly out of time for applicant no.3, to be the supporting affidavit to his application for leave to appear and defend. The only affidavit filed in time in support of the application is the affidavit of applicant no. 2 sworn on behalf of applicant no.1 and no.2 only. Applicant No.3 has been sued in his personal capacity. *In order to be granted leave to appear and defend he must file an application supported by an affidavit for leave to appear and defend, if he claims to have a defence to the claim, showing whether the defence alleged*



goes to the whole or part of the claim only, under Order 33 Rule 4 of the Civil Procedure Rules. As he has not done so, nor authorised anyone to do so on his behalf, the application by applicant no.3 is unsupported by evidence, as it ought to be, and is dismissed forthwith.

The affidavit in support must be deponed by a person who is in possession of the material fact supporting the grounds and it should not be tainted with falsehoods

Zimwe Hardware and Constructions Ltd V Barclays Bank UG Ltd

Held; The law governing applications for leave to defend a summary suit is that the applicant must show by affidavit or otherwise that there is a bonafide triable issue of fact or law. Any defence raised should be stated with sufficient particulars as to appear genuine and not generally vague statements denying liability

The applicant should attach a draft written statement of defence to the affidavit in support wherein the intended defence to the claim should be specifically set out. The requirement to attach a draft defence is not mandatory but a matter for prudent practice intended to enable the court appreciate whether the applicant has a plausible defence.

Sterling Travel and Tour Services Ltd V Millennium Travel and Tours Services Ltd HELD; Justice Hellen Obura;

I agree with the respondent's submission that it is not mandatory to attach a written statement of defence to the application. At least Order 36 rule 4 of the CPR under which this application was brought, does not require an applicant for leave to appear and defend a summary suit to attach a written statement of defence to the application. However, Court has held that it is a good practice to do so. This is the context in which Tsekooko J. (as he then was) observed in the case of *Acaali Manzi vs Nile Bank Ltd(supra)* that when applicants apply for leave to defend the applicant would do well to attach a draft written statement of defence showing such a defence. In the premises, I find that failure to attach the draft defence to the summary plaint does not mean that the applicants have no defence.

NB; In exam he is opposing the application because in absence of a WSD the application has no merit and it cannot succeed'

Forum.

The application for leave to appear and defend must be filed in the court where the main suit is pending...

Pinnacle Projects Ltd V Business in Motion Cosultance,

The main suit was filed at the Commercial Division but the applicant filed the application for leave to appear and defend at the Civil Registry. He thus applied to set aside a decree which had been entered claiming that there was a pending application for leave to appear and defend.



HELD; , that O. 36 r 3(1) requires the defendant who is served with summons under O. 36 to apply for leave to appear and defend in the same court where the main suit is pending; When judgment was entered there was no pending application before this Court and so it cannot be faulted for entering judgment accordingly. In the circumstances, the application was not properly filed at the High Court Civil Registry when the main suit under which the application was brought was at the Commercial Division.

The time for filing the application

O.36r3 does not specify the time to appear and defend but alludes to the time specified in the summons which is normally 10 days from the date of service.(**Form 4 of Appendix A**) Note weekends are included except where the last day is a weekend or a public holiday

Zam Zam noel and Ors v Post Bank

Relying on the decision of Manyindo J. in Republic motors Ltd-Vs-Atlantic Decorators& General constructions [1982] where it was held that If a defendant wishes to appear and defend a summary suit he must obtain the leave of court and he must do so within 10 days of receiving the summons in summary suit. Time is of the essence. In that case, the application was made 3 days outside the prescribed time of ten days. It was therefore time barred. In the instant case, the applicant did not apply for leave to appear and defend, until after one month. His application was time barred and was dismissed for that reason. Rule 11 does not therefore assist him as it would tantamount to obtaining the order for leave through the backdoor law

Pinnacle Projects Ltd V Business in Motion Consultants

HELD; the application has to be made within ten days from the date of service since time is of the essence as was held in the case of Republic Motors Ltd-Vs-Atlantic Decorators and General Construction [1982] HCB 104.

Uganda Telecom ltd v Airtel UG ltd,

Counsel for the respondent raised a preliminary objection to an application for leave to defend a summary suit. Counsel contended that the application for leave to appear and defend was brought out of time. He submitted that the suit was filed under Order 36 rules 2 and 3 of the Civil Procedure Rules (CPR) on the 17th December 2010 and summons was served on the applicant on the 20th December 2010. That the time stated in the summons in summary suit for filing application for leave to appear and defend was ten days. He submitted that the ten days expired on the 30th December 2010 and this application was filed on the 17th January 2011. He further submitted that after the expiry of the ten days, the respondent applied for and obtained judgment under Order 36 rule 3(2) of the CPR on 11th January 2011 and subsequently, a decree was issued on the 1st February 2011. That the ten days prescribed in the summons in summary suit on plaint is the practice of the court in summary suits so that it is handled expeditiously.

HELD; That under Order 51 rule 4 in the computation of the time for filing of such



application the period between the 24th day of December 2010 and 15th day of January 2011, both days inclusive should not be reckoned. That, therefore, this application which was filed

on 17th January 2011 was within time. That the ten days prescribed in the summons in summary suit on plaint is not the practice of the court in summary suits but is made under the rules. That Appendices to the rules are made by the Committee as part and parcel of the Rules and are meant to be read together with the Rules. That is why the rules under which the forms are made are cited therein. For example, as noted in Form 4 above (**Order XXXVI, rule 3**) is written immediately below the heading of the form "*Summons in Summary Suit on Plaint*" to indicate that it is made under that order and rule.

Where the application is filed out of time it is liable to be struck out and judgment will be entered against the applicant/defendant; Note; this is not a default judgment but a final judgment...

Zamzam Noel v Post Bank,

The applicant filed an application for leave to appear and defend the suit out of time without leave of court on the advice but mistaken belief of his former lawyers that court vacation between 15-07-2008 and 15-08-2008 are excluded in the computation of time for filing any pleading. The application was dismissed for being time barred and the applicant applied under rule 11 to set aside the judgement of court.

HELD;

Relied on the case of Republic motors Ltd-Vs-Atlantic Decorators& General constructions [1982] HCB 104, where Manyindo J as he then was held that: *If a defendant wishes to appear and defend a summary suit, he must obtain the leave of court and he must do so within 10 days of receiving the summons in summary suit. Time is of the essence.* In that case, the application was made 3 days outside the prescribed time of ten days. It was therefore time barred. In the instant case, the applicant did not apply for leave to appear and defend, until after one month. His application was time barred and was dismissed for that reason. Rule 11 does not therefore assist him as it would tantamount to obtaining the order for leave through the backdoor law

GW Wanendeya v Stanbic Bank

Court agreed with counsel for the plaintiff that the cause of action was a continuing cause of action with regard to the continued detention of the plaintiff's certificate of title and the maintenance of a caveat on the said title. This suit in that regard is not time barred.

- Where the applicant is out of time prudent practice is to seek extension of time within which to apply for leave to appear and defend.

Pinnacle Projects Ltd V Business in Motion Consultants



HELD; the application has to be made within ten days from the date of service since time is of the essence. Time in the instant case started running on the 26th May, 2010 when the summons in summary suit on plaint was served on the applicant and it lapsed on the 4th of June 2010. In the circumstances, court found that the Misc. Application which was filed at the Civil Registry on 7th June 2010 and later transferred to the Commercial Registry and registered was filed out of time. The applicant should have first applied for extension of time within which to file the application as it was already out of time. Application dismissed.

- Extension of time is sought under the provision of S.98 of the CPA S.33 of the judicature Act and O.51 of the Rules
- The application is by notice of motion supported by a valid affidavit. The applicant must plead and prove sufficient cause that prevented him or her from filing the application within time...

Musa Sbteity and Anor V Akello Joan

Held; ,” the Applicants had the burden to show why their failure to file an application for Leave to appear and defend the suit in time should be excused. This required them to state a justifiable reason why they did not take the necessary action

Venture Communications Ltd v Vertex Prudential Commerce

In a summary suit, the applicant did not file an application for leave to appear and defend but rather preferred the matter settled out of court. During negotiations the applicant discovered fraudulent transactions and applied for extension of time to defend the suit. Court allowed the application for extension of time by noting that there was no excessive delay in bringing the application. And that the applicants engaged in settlement without the plaintiffs applying for judgment.

Note where you say the applicant is entitled to apply for extension of time then indicate reason and authority

- Omnibus application. This is where you file one application e.g. for

extension of time but plea different grounds e.g. for extension of time and leave to appear and defend.

Magem Enterprises Ltd Vs. Uganda Breweries Ltd

HELD; It is possible and proper to apply for setting aside and staying of execution in one application demand.

Dr. Ahmed Kisule V Greenland Bank in Liquidation



There was an omni-bus application by notice of motion to be granted extension of time within which to lodge his application for leave to appeal and also to be granted leave to appeal.

HELD; court in allowing the omnibus application relied on *Magem Entreprises v Uganda Breweries Ltd C.S No. 462 of 1991 at page 7* to the effect that an omni-bus application of this nature is possible where the applications are of the same nature and one supersedes the other. Thus it is for expeditious disposal of matters and for avoidance of multiplicity of suits

Grounds in support of application

- The application will only be granted where the applicant by an affidavit or otherwise demonstrates to court that his or her intended defence raises triable issues of law or fact, the applicant must demonstrate that he has a plausible defence of the claim or part thereof
- Plausible defense does not mean one that must succeed but one which raises serious questions of law or fact that raises adjudication in a trial.

Broadband Company ltd v Joram Mugume,

HELD; the principles for determination to arrive at a decision of whether leave should be granted to the defendant to appear and defend a summary suit are; An applicant for leave to defend a summary suit must demonstrate to court that there is or are issues or questions of fact or law which are in dispute and which ought to be tried. Where the applicant shows a state of facts which leads to the inference that at the trial of the action he may be able to establish a defence to the plaintiff's claim, he ought not to be debarred of all power to defend the demand made upon him.

Begumisa George v EADB

HELD; Rules have evolved upon which the court makes the determination as to whether the defendant who seeks leave to defend a suit under summary procedure should be allowed to do so or not. The first and paramount consideration has to be had to the rules wherein Order 36 rule 7 provides:

“If it appears to the court that *any defendant has a good defence to or ought to be permitted to appear and defend the suit*, and that any other defendant has not such defence and ought not to be permitted to defend, the former may be permitted to appear and defend, and the plaintiff shall be entitled to issue a decree against the latter, ...”

Court then referred to some decisions

One of the earliest decisions that is often cited on this point in East Africa and which states the test is the decision in **Hasmani v. Banque du Congo Belge (1938) 5 EACA 89 at 89**, where Sheridan, CJ, in the Court of Appeal for Eastern Africa ruled that if



there is one triable issue contained in the affidavit supporting the application for leave to appear and defend then the defendant is entitled to have leave to appear and defend unconditionally. This was followed by another notable decision in **Churanjilal & Co. v. A. H. Adam (1950) 17 EACA, 92**. Graham Paul, V-P stated the test thus:

“There is no difficulty about the principles to be applied in deciding this appeal. The law on the point is clear and only its application to the facts gives any trouble. It is desirable and important that the time of creditors and of courts should not be wasted by the investigation of bogus defences. That is one important matter but it is a matter of adjectival law only, embodied in Rules of Court, and cannot be allowed to prevail over the fundamental principle that a defendant who has a stateable and arguable defence must be given an opportunity to state it and argue it before the court. All the defendant has to show is that there is a definite triable issue of fact or law.”

Zimwe Hardware and Constructions Ltd V Barclays Bank UG Ltd

Held; The law governing applications for leave to defend a summary suit is that the applicant must show by affidavit or otherwise that there is a bonafide triable issue of fact or law. Any defence raised should be stated with sufficient particulars as to appear genuine and not generally vague statements denying liability

Which test does the court apply in determining an application for leave to appear and defend?

- When determining an application for leave to appear and defend the court at that stage does not extend its inquiry into the merits of the defense but only considers whether the triable issues of law or fact alleged by the applicant merit adjudication in the full trial. The reason why the court does not examine the merits of the defense is to avoid court determining the rights of the defendant before granting such defendant an opportunity to defend the suit...

Regarding the test a number of authorities are quoted in the case of **Begumisa George v EADB;**

Per **Lady JUSTICE IRENE MULYAGONJA**

The test has evolved over the years. In Uganda, the decision in **Maluku Interglobal Trade Agency Ltd. v. Bank of Uganda [1985] HCB 65**, is favoured and it states the test at page 66 of the Bulletin as follows:-

“Before leave to appear and defend is granted the defendant must show by affidavit or otherwise that there is a bona fide triable issue of fact or law. When there is a reasonable judgment. The defendant is not bound to show a good defence on the merits but should

ground of defence to the claim, the plaintiff is not entitled to summary

satisfy court that there was an issue or question in dispute which ought to be tried and the court should not enter upon the trial of the issue disclosed at this stage.”

It is also the position, according to the same decision, that the defence must be stated with sufficient particularity to appear genuine; general or vague statements denying liability will not suffice. The principle was re-stated in **Abubakar Kato Kasule v.**



Tomson Muhwezi [1992-1993] HCB 212 where Kireju, J, (RIP) ruled that under

Order 33 rule 4 (now O.36 rule 4) a defendant who seeks leave to appear and defend is required to show by affidavit or otherwise that there is a *bona fide* triable issue of fact or law. That the applicant is not bound at this stage to show that he has a good defence on the merits of the case, but ought to satisfy court that there is a *prima facie* triable issue in dispute which the court ought to determine between the parties. The court further ruled that at this stage it was not entitled to enquire into the merits of the issue raised. In spite of this the court went on to hold:-

“In all applications for leave to appear and defend under Order 33 rules 3 and 4, the court must study the grounds raised to ascertain whether they raised a real issue and not a sham one, i.e. the court must be certain that if the facts alleged by the applicant/defendant were established, there would be a plausible defence; if the applicant/defendant has a plausible defence he should be allowed to defend the suit unconditionally.”

About 6 years later, in **Photo Focus (U) Ltd. v. Group Four Security Ltd. C/A Civil Appeal No. 30 of 2000**, (unreported), the Justices of the Court of Appeal seemed to lower the standard required of a defendant who applies for leave to defend which is stated in Order 36 rule 3 CPR. It was held, Engwau and Kitumba, JJA, with Okello,

J.A (as he then was) dissenting, that a denial of indebtedness, *per se*, was a defence that was good enough for purposes of obtaining leave to appear and defend a suit under summary procedure. The decision of the court in a suit where the applicant simply denied that he owed the amount claimed in the plaint was that leave to defend ought to have been granted to him by the High Court. The court further observed that it was not incumbent upon the defendant at that stage to show how it is not indebted to the plaintiff because to do so would have shifted the burden of proof upon it prematurely. Engwau, JA, was of the view that the burden of proof was upon the plaintiff to show how it arrived at the figure being claimed. He therefore ruled as follows:-

“It is trite that it is not a requirement of law that the applicant must establish a genuine defence before leave to appear and defend could be granted. In the instant case, the applicant had clearly denied being indebted to the respondent in the sum claimed or at all. In my view, this was a perfectly good and genuine defence for the appellant to raise against the respondent’s claim. It raised a triable issue of law or fact and it was not incumbent upon the appellant at that stage to show how it was not indebted to the respondent.”

Similarly, Kitumba, JA, (as she then was) found and ruled as follows:

“I would like to observe that the appellant categorically denied that it owed to the respondent the sum of money claimed or at all. I cannot envisage in what clearer terms other

than in such a denial that the appellant would have put its defence.”

Okello, JA, on the other hand, was of the view that the correct position was that which was stated in **Maluku Interglobal** (above), so he ruled:-

*“I agree with the test, set out in **Maluku Interglobal Trade Agency Ltd v Bank of Uganda [1985] HCB 65** that ‘the defence must be stated with sufficient particularity to appear genuine. General or vague statements denying liability will not suffice.’ Though this is a High Court decision, it is sound and I respect it. The question is, does the appellant’s defence that ‘the defendant/applicant is not indebted in the sum claimed or at all’ pass the above test? My answer is that it does not because it is lacking in particularity. The affidavit of the appellant’s Managing Director should have contained sufficient particularity to show why the appellant denies indebtedness to the respondent. ... That is not shifting the burden of proof to the appellant to prove its*



defence. It is merely raising not only a clear triable issue but also coating it with sufficient particularity to make the defence appear genuine. To merely assert a general, evasive and vague denial as shown above is insufficient. That insufficiency rendered that defence general, ambiguous, vague and evasive.”

The Court of Appeal seems to have rethought its decision in **Photo Focus** because 2 years later in **Kotecha v. Mohammed [2002] 1 EA 112**, Berko, JA, ruled (Okello and Engwau, JJA, concurring) that:-

*“The summary procedure on specially endorsed plaint under Order 33 of our Civil Procedure Rules is similar to a writ specially endorsed under Order 3, rule 6 (Order 14, rule 1) of the English Rules of the Supreme Court. Therefore English authorities on that rule are of persuasive authority and provide (a) useful guide. Under the English Rule **the Defendant is granted leave to appear and defend if he is able to show that he has a good defence on the merit(s)**; or that a difficult point of law is involved; or a dispute as to the facts which ought to be tried; or a real dispute as to the amount claimed which requires taking an account to determine; or any other circumstances showing reasonable grounds of a bona fide defence. See *Saw v Hakim* 5 TLR 72; *Ray v Barker* 4 Ex DI 279.” {My Emphasis}*

*In the instant case, the judge then **HELD**;*

It is therefore still the position of the law in Uganda that an applicant who comes to court seeking for leave to defend a suit under Order 36 CPR must show that he/she has a good defence on the merits or that there are circumstances showing reasonable grounds or a bona fide defence. The defence raised must not be a sham.

Sterling Travel and Tour Services Ltd V Millennium Tour Service Ltd **HELD** *citing a number of authorities;*

Per; LADY JUSTICE HELLEN OBURA

The legal proposition is settled that in an application for leave to appear and defend, the applicant must prove that there is a bona fide triable issue of fact or law that he will advance in defence of the suit. In *Churanjilal & Co. v. A. H. Adam* (1950) 17 EACA 92, the Court of Appeal for East Africa held that a defendant who has a stateable and arguable defence must be given the opportunity to state and argue it before court. That decision was followed by the High Court of Uganda in the case of *Maluku Interglobal Trade Agency v. Bank of Uganda (supra)* where the principle was concisely stated as follows:-

“Before leave to appear and defend is granted the defendant must show by affidavit or otherwise that there is a bona fide triable issue of fact or law. When there is a reasonable ground of defence to the claim, the defendant is not entitled to summary judgment. The

defendant is not bound to show a good defence on the merits but should satisfy the court that there was an issue or question in dispute which ought to be tried and the court should not enter upon the trial of the issues disclosed at this stage.” that ‘the defence must be stated with sufficient particularity to appear genuine. General or vague statements denying liability will not suffice.

In the case of *Maria Odido v Barclays Bank of Uganda Ltd HC Misc. Application No. 645 of 2008* **Mukasa J.** followed the above principle and further observed that at this stage the court



is not required to inquire into the merits of the issues raised, however the issue so raised should be real and not a sham. Court must be certain that if the fact alleged by the applicant were established there would be a plausible defence and if the applicant has a plausible defence he should be allowed to defend the suit unconditionally.

All the above authorities were also cited by Justice Hellen Obura in **Bitagase & Anor v Mugambe**

Uganda Micro Enterprises Association Ltd And Anor V The Micro Finance Support Center

Held that

It should be appreciated that before leave to appear and defend is granted the Defendant must show by affidavit or otherwise that there is a bonafide triable issue of fact or law. When there is a reasonable ground of defence to the claim, the Plaintiff is not entitled to summary Judgment. See: **Maluku Interglobal Trade Agency Ltd –Vs- Bank of Uganda [1985] HCB 65.**

In this respect, defence on the merits does not mean a defence that must succeed. It means as Sheridan, J. put it “a triable issue”, that is, an issue which raises a prima facie defence and which should go for trial for adjudication

Peter Bibangamba v Mungereza

Justice Hellen Obura;

HELD

The law governing application for leave to appear and defend a summary suit is now settled. The applicant/defendant must show by affidavit or otherwise that there is a bona fide triable issue of fact or law. The applicant is not bound to show a good defence on the merits of the case but should satisfy court that there is an issue or question in dispute which the court ought to determine between the parties. This position of the law was stated in *Maluku Interglobal Trade Agency Ltd v Bank of Uganda [1985] HCB 65* and

Kasule v Muhwezi [1992-1993] HCB 212.

In the case of ***Kotecha v Mohammed [2002] 1EA 112*** it was held that *where a suit was brought under summary procedure on a specially endorsed plaint, the defendant is granted leave to appear if he was able to show that he had a good defence on merit, or that a difficult point of law is involved; or a dispute as to the facts which ought to be*



tried; or a real dispute as to the amount claimed which requires taking an account to determine; or any other circumstances showing reasonable grounds of a bona fide defence.

This court is fortified by the decision in ***Corporate Insurance Co. Ltd v Nyalí Beach Hotel Ltd [1995-1998] EA 7*** where the Court of Appeal of Kenya held that leave to defend will not be given merely because there are several allegations of fact or law made in the defendant's affidavit. The allegations are investigated in order to decide whether leave should be given. As a result of the investigation even if a single defence is identified or found to be bona fide, unconditional leave should be granted.

In view of the above authorities, the applicant in this case should satisfy court that there is an issue or question in dispute which this court ought to determine between the parties.

In UNRA v Vivo Energy, after citing the authorities of Kotecha Vs Mohammed and Maluku Interglobal Trade Ltd Vs Bank of Uganda, it was held that the issues of interest, fraud, and damages which were raised in the affidavits in support of the application to defend required a full trial and the applicant was allowed to file a written statement of defence within ten days from the date of ruling.

Busingye & Co. Ltd v Muye (MA No. 87 Of 2011) [2012] UGHC 17

The Respondent/Plaintiff filed a specially endorsed suit against the Defendant/Applicant for recovery of land by delivery of vacant possession. The applicant applied to be granted leave to appear and defend. The applicant/Defendant's Counsel argued that there has to be a definite claim for rent by the Plaintiff against the Defendant.

Held;

That before leave to appear and defend is granted, the Defendant must show by affidavit or otherwise that there is a bona fide triable issue of fact or law. When there is a reasonable ground of defence to the claim, the Plaintiff is not entitled to summary judgment. The Defendant is not bound to show a good defence on the merits but should satisfy the court that there was an issue or question in dispute which ought to be tried and the court should not enter upon the trial of the issues disclosed at this stage.

In the circumstances of this application, as revealed in the Applicant's affidavit evidence, indicate the existence of a *bona fide* triable issue. The triable issue evolves around the Applicant/Defendant's disputing the Respondent's proprietorship of the freehold out of which the suit property.

How can the application be contested (application for leave)?



A plaintiff or respondent who is desirous of opposing the application for leave to appear and defend may opt for the following

1. May file an affidavit in reply containing the grounds in opposition to the application either within 15 days from the date of service of the application or any time before the hearing date whichever is appropriate

Madrama J. in **Stop & See (U) Ltd vs. Tropical Africa Bank Ltd** (supra) stated:

“These pleadings follow the same pattern as that of a plaint and a written statement of defence. It follows that the same time lines would apply to interlocutory applications. A reply or defence to an application has to be filed within 15 days. Failure to file within 15 days would put a defence or affidavit in reply out of the time prescribed by the rules. Once the party is out of time, he or she needs to seek the leave of court to file the defence or affidavit in reply outside the prescribed time.”

This was cited with approval in **Elias Waziri and Ors V Opportunity Bank Uganda Ltd**, where an affidavit in reply was filed four months after the application was served on the respondent. It was held that the affidavit in reply in this case was filed way outside the fifteen days. However, since there was a prayer for extension of time to file a reply, in the interests of justice, the already filed affidavit was validated.

Sebyala Kiwanuka And Ors V Sendi Edward. In overruling the objection that the affidavit in reply was filed out of time, it was HELD; that Since the affidavit was filed before hearing of the application, it cannot be said to have prejudiced the Applicant. If the affidavit complained were to be struck out, the Respondent would then possibly file an application for extension of time within which to file the affidavit, would result in the multiplicity of proceedings S.33 Judicature Act was meant to prevent.

2. Where the respondent/plaintiff intends to raise only questions of law relating to the application before court it may not be necessary to file an affidavit in reply

Southern Investment ltd v Mukabura foundation

It was observed that for one to say that failure to file an affidavit in reply by the Respondent means acceptance of the Applicant's averments is a curious position. It is well settled that it is always the Applicant to make out its case, and if it does not, his opponent need not file any affidavit at all.”

Odongkara and others v Kamanda and another [1968] 1 EA 210

By a plaint, the plaintiffs sued a Muluka chief and also the Busoga Government for damages for false imprisonment. By a notice of motion unsupported by affidavit dated February 6, 1968 the plaintiffs applied to amend the plaint by substituting the Busoga District Administration “pursuant to the provisions of the Constitution of the Republic of Uganda, 1967”.

Held –



- (i) no affidavit in support was necessary as there was no question of evidence, this being purely a matter of law.
3. The respondent/plaintiff may in appropriate cases consent to the application for leave to appear and defend rather than opposing it

Conditional or unconditional leave

- The power to grant an application for leave to appear and defend is discretionally and exercisable in fitting circumstances. Where the applicant demonstrate existence of serious triable issue of law or fact the court is normally inclined to grant unconditional leave to appear and defend.
- Where the court is left in doubt as to the merits of the intended defense but is never the less inclined to grant the application, it may do so with conditions e.g. by ordering the applicant/defendant to deposit the decretal sum or part thereof in court or to deposit some form of security covering the decretal sum

Tusker Mattresses U ltd v Royal Care Pharmaceuticals ltd

The respondent sued the applicant and two others by way of a summary suit claiming a total of UGX 400,000,000= against the defendants as unpaid rental arrears for a specified period. The applicant filed an application for leave to appear and defend; After finding that there are triable issues, court granted applicant conditional leave to appear and defend the main suit with an order that the applicant deposit into Court a sum of UGX 200,000,000= and file its defence within 15 days from the date of the order

Broadband Company ltd v Joram Mugume,

HELD; where the court is doubtful whether the proposed defence is being made in good faith, it may order the defendant to deposit money in court before leave is granted. Where court determines that there is a genuine defence either in fact or in law, then the defendant is entitled to unconditional leave to defend.

In **Souza Figuerido & Co Ltd Vs Moorings Hotel Co Ltd** (supra) Sir Kenneth O'Connor P had this to say:-

“The principle on which the court acts is that where the defendant can show by affidavit that there is a bonafide triable issue, he is to be allowed to defend

as to that issue without condition... A condition of payment into court ought not to be imposed where a reasonable ground of defence is set up...”

The above case cited the case of *Kundanlal Restaurant v Devshi* (1952) 19 EACA 77 which stated the law as;

“The principle on which the court acts is that where the defendant can show by affidavit that there is a bona fide triable issue, he is to be allowed to defend as to that issue without condition. A condition of payment into court ought not to be imposed where a reasonable ground of defence is set up .



. . the condition of payment into court, or giving security, is seldom imposed, and only in cases where the defendant consents, or there is good ground in the evidence for believing that the defence set up is a sham defence and the master 'is prepared very nearly to give judgment for the plaintiff' in which case only the discretionary power given by this rule may be exercised. It should not be applied where there is a fair probability of a defence nor where the practical result of applying it would be unjustly to deprive the defendant of his defence."

Setting aside the decree, applying for leave to appear and defend, setting aside the execution and stay of execution all under O.36r1.

Applicability

This order applies where a decree has been passed against the defendant in default of appearance arising from a default judgment under O.36 r.3[2]

Uganda Telecom Ltd v Airtel Uganda

HELD; that where a default judgment has been entered and a decree obtained, the appropriate remedy would be to apply to set it aside under order 36 rules 11 of the CPR. The law is quite clear and there are many authorities to that effect including the case of **Konoweeka Architecture Painters & Builder Ltd v. Daniel Lincorin Mukasa [1976] HCB 222**

Zam Zam Noell v Post Bank

HELD; Rule 11 gives court the discretion to set aside a decree entered against the applicant under Order 36 if the service was not effective or for any good cause.

It is inconceivable that rule 11 was intended to allow a person whose application for leave to appear and defend a summary suit was dismissed by court, to re-apply to the same court to set aside the decree and allow the same person to apply for leave to appear and defend the suit in the same court. This is what the applicant is attempting to achieve by this application.

Rule 11 was clearly meant for an applicant who did not apply for leave to appear and defend a suit within the prescribed time and judgment in default of application for leave was entered against him as a result under O 36 rule 3 in the instant case like the instant one, where an application for leave to appear and defend was dismissed the only remedy is in my view an appeal

against the dismissal order. Otherwise a person who has been served with summons in a summary suit and whose application was dismissed could simply re-apply for leave under rule 11 for any other 'good cause'

The procedure

- The applicant in an application under O.36 R11 ordinarily files an omnibus application seeking the following orders.
 1. Setting aside of the default judgment in the main suit.
 2. Setting aside of the decree passed against the defendant in default of appearance



3. Unconditional leave to appear and defend and in appropriate circumstances setting aside of execution or stay of execution
4. The application is by notice of motion with a valid affidavit in support.

Magem Enterprises Ltd Vs. Uganda Breweries Ltd

HELD; It is possible and proper to apply for setting aside and staying of execution in one application demand.

Francis W Bwengye v Haki Bonera.

The application in this case was brought by chamber summons instead of notice of motion and that since O.36 does not provide for the mode of preferring the application, then under O.52 it should have been by Notice of Motion

In **Pinnacle Projects**, court was persuaded by the decision in the case of **Uganda Commercial Bank vs. Abaasi Kibirige & Another, Civil Appeal No. 59 of 1991** (Unreported) where the defendants while seeking leave to appear and defend, filed a notice of motion under O33r11 (current O.36 r.11) without a supporting affidavit. It was held that there was no application filed which met the requirements and the Registrar was right to ignore it and enter judgment in favour of the plaintiff.

The grounds for setting aside the decree under O.36 r11;

- The applicants must prove to court either that the judgment was entered illegally or such applicant was prevented by sufficient cause or good cause from entering appearance or that the applicant was not served with summons

Musa Sbeity and Anor v Akello Joan

As regards “*good cause*,” the phrase is not defined in the CPR but it is defined in **Black’s Law Dictionary, Seventh Edition**, as; “*A legally sufficient reason*”. The authors explained that “*good cause*” is often a burden placed on a litigant (usually by a court rule or order) to show

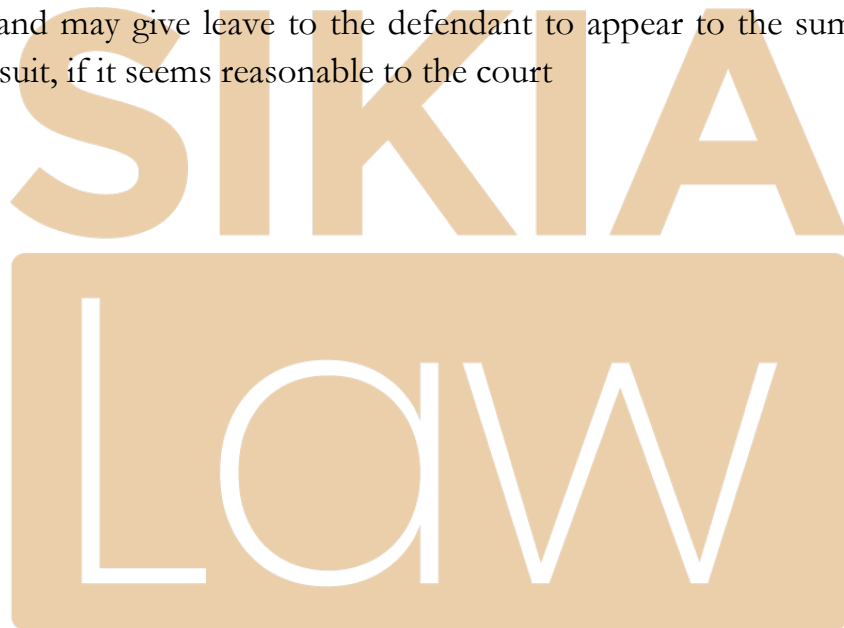
why a request should be granted or an action excused.

The phrase “*sufficient cause*” is usually used interchangeably with the phrase “*good cause*”. “sufficient reason” must relate to the inability or failure to take the particular step in time.

Some of the grounds or circumstances which may amount to “*sufficient cause*.” They include mistake by an advocate through negligent, ignorance of procedure by an unrepresented defendant and illness by a party.

Meddie Ddembe v Nalongo Namusisi

Where it was observed that Order 36 rule 11 empowers the court to set aside a decree passed under 0.36 if the court is satisfied that the service of summons was not effective, or for any other cause. The court may also stay or set aside the execution; and may give leave to the defendant to appear to the summons and to defend the suit, if it seems reasonable to the court



so to do, and on such terms as the court thinks fit. And that a line of authorities from this court interpreting this rule, has held that in order to allow an application under this rule. The Applicant has to show that there was some reasonable explanation for failing to defend the suit but also that the application raises triable issue and a plausible defence.

Pinnacle projects ltd v business in motion consultants

The argument of counsel for the applicant in the instant case was that there was already an application for leave to appear and defend when the decree was passed.

Held that if indeed there was a competent application for leave to appear and defend at the time the decree was passed, then that would amount to “good cause” that would justify setting aside the decree.

Uganda telecom ltd v Airtel Uganda

Where it was held that Order 36 rule 11 gives this court power and jurisdiction to set aside a decree for any other good cause. In this case, a judgement which was entered when there was a subsisting application for leave to appear and defend was set aside as having been entered illegally.

- It is prudent practice for the applicant also include grounds for leave to appear and defend in the application

Bigways Construcion Ltd v Trentyre (U) Ltd

The applicant was sued for Shs.21, 958,000= . It did not seek leave to appear and defend the suit because in counsel’s own words, the amount “*was not disputed as debt due to the respondent*”. The respondent went ahead and obtained a warrant of attachment in which the amount recoverable was still stated to be Shs.21, 958,000=, plus costs of the suit

HELD; As long as the applicant saw the claim in the plaint, decided not to challenge it, execution took place, again without the applicant seeking to stay it, I do not see how it can now be heard to complain that the claim was false. Failure to file a defence raises a presumption or constructive admission of the claim made in the plaint. The story told by the plaintiff, in the absence of a defence to contradict it, must be accepted as the truth. From the facts as stated to Court and from the available records, the applicant would be estopped from challenging the respondent’s claim. A person who stands by and keeps silence when he observes

another person acting under a misapprehension or mistake, which by speaking out he could have prevented by showing a true state of affairs, can be estopped from later alleging the true state of affairs.

- It is equally prudent practice to attach the intended WSD though failure to do so does not render the application fatally defective

Sterling Travel supra



Held that it is not mandatory to attach a written statement of defence to the application. At least Order 36 rule 4 of the CPR under which this application was brought, does not require an applicant for leave to appear and defend a summary suit to attach a written statement of defence to the application. However, Court has held that it is a good practice to do so. This is the context in which Tsekooko J. (as he then was) observed in the case of *Acaali Manzi vs Nile Bank Ltd (supra)* “...the applicants would do well to attach a written statement of defence showing such defence.” . In the premises, I find that failure to attach the draft defence to the summary plaint does not mean that the applicants have no defence.

Test and threshold.

The test for the grant of an order for setting aside the decree and granting leave to appear and defend is whether the applicant was prevented by sufficient cause from entering appearance and whether if so granted leave to appear defend, the applicant's defence raises meritorious triable issue of law or fact.

Kensington Africa ltd v Pankaj Kumar Hemraj Shah

“In exercising discretion as to whether the ex parte judgment should be set aside or not, where there is a regular judgment, the court will unusually satisfy itself that there is a defence on the merits before judgment is set aside.”

It is now settled that in an application for leave to appear and defend, the applicant must prove that there is a bona fide triable issue of fact or law that he will advance in defence of the suit. In *Churanjilal & Co. v. A. H. Adam (1950) 17 EACA 92*, the Court of Appeal for East Africa ruled that a defendant who has a stateable and arguable defence must be given the opportunity to state and argue it before court. That decision was followed by the High Court of Uganda in the case of *Maluku Interglobal Trade Agency v. Bank of Uganda (supra)* where the principle was concisely stated as follows:-

“Before leave to appear and defend is granted the defendant must show by affidavit or otherwise that there is a bona fide triable issue of fact or law. When there is a reasonable ground of defence to the claim, the defendant is not entitled to summary judgment. The defendant is not bound to show a good defence on the merits but should satisfy the court that there was an issue or question in dispute which ought to be tried and the court should not enter upon the trial of the issues disclosed at this stage.”

Mukasa J. applied the above principles in the case of *Maria Odido v Barclays Bank of Uganda Ltd HC Misc. Application No. 645 of 2008*. He further observed that at this stage the court is not required to inquire into the merits of the issues raised, however the issue so raised should be real and not a sham. Court must be certain that if the fact alleged by the applicant were established there would be a plausible defence and if the applicant has a plausible defence he should be allowed to defend the suit unconditionally.

Ali Ndaula v R. L. Jain



HELD; Under the rule a decree may be set aside for either:-

- (i) no effective service of the summons or
- (ii) other good cause

That before setting aside an *ex parte* judgment, the Court has to be satisfied not only that the defendant had some reasonable excuse for failing to enter appearance but also that there is merit in the defence or in the case itself. This holding was cited with approval in Senyange Vs Naks Ltd (1980 Ltd (1980 HCB 30

Stay of execution, setting it aside and an interim order of stay of execution

Where the plaintiff/judgment creditor has commenced the process of execution, the applicant should include a prayer for stay of execution in the main application on the basis of which the applicant files an application for an interim order of stay of execution

Souna Cosmetics Ltd v URA

HELD; that an application for an interim injunction is not an application on the merits but meant to preserve the right of appeal or the right of hearing on the merits which right may be curtailed if the status quo is changed. It would be strange for a judge to consider the grounds for granting an injunction and at the same time after ruling on the same, consider the merits of the main application on the same grounds. The practice has been that such interim measures/orders are heard by the Registrar pending the obtaining of a hearing date before the judge

That the law concerning an interim stay of execution or injunction is that the court preserves the right of the applicant/appellant to be heard on the merits. This is a very limited jurisdiction which does not deal with the merits of the suit. Hence it is normally handled by the Registrar. The same time used to argue points on the merits if taken before the trial judge can be used to hear the main application. The principles for preserving the right of appeal or the rights of hearing were stated in the case of **Wilson V. Church (1879) vol 12 Ch D 454** where it was held that:

As a matter of practice, where an unsuccessful party is exercising an unrestricted right of appeal, it is the duty of the court in ordinary cases to make such order for staying proceedings in the Judgment appealed from as will prevent the appeal if successful from being rendered nugatory.”

The judge went ahead to give the reasons for seeking an interim order;

That in exercising the discretion to prevent an appeal or application from being rendered nugatory, the court does not consider the merits of the application for a temporary injunction. What then does not court consider? It is my decision that the court considers whether the applicant or appellant has a bona fide appeal or application and whether their right to have it heard would be curtailed if an interim measure of injunction or stay of execution is not granted. Therefore all the applicants need to prove before the registrar is that there is a bona



fide arguable case for consideration on the merits before the court. That it is necessary to grant an interim measure of protection to preserve the status quo to prevent the appeal or main application from been rendered nugatory. The purpose of the interim measure is to preserve the right of being heard on the appeal or application. Among the sub factors to be taken into account can be whether such a right to be heard exists

Kisawuzi Henry V Kayondo Moses

HELD; *after citing the provisions of Rule 11 that* “What needs to be established therefore is whether or not there was effective service of summons on the defendant and if that is found to be in the positive, then other **good cause** has got to be established that would justify the stay of execution, if any, and the setting aside of the decree.

Procedure is by notice of motion with a valid affidavit.

Whether the execution has been completed or partly completed, the applicant may apply to set aside the execution or to stay completion of the execution

Remedy where application for leave or setting aside is dismissed.

Where the application is dismissed or otherwise allowed any aggrieved party may have to seek a post judgment remedy which is either review or appeal depending on the grounds upon which the application is dismissed or allowed

Zamzam Noel v Post Bank,

HELD;

Where an application for leave to appear and defend was dismissed the only remedy is an appeal against the dismissal order.

THE LAW THAT RELATES TO AFFIDAVITS

- An affidavit is defined as meaning a written sworn statement to be used in evidence in proceedings in court taken before a person mandated to

administer an oath.

Reliable trustees and Ors ltd v Goerpe Smbepuya

In **Mugema Peter v Mudiobole Abed Nasser**, it was **held** that an affidavit is a statement/declaration in writing made on oath/affirmation before one having authority to administer an oath/affirmation

Law governing affidavits. Order 19 Rule 3(1)



In **David Kato Luguza v Evelyn Nakafeero**

HELD; It is clear that the 2nd respondent's averments in paragraph 4 of his affidavit in reply were based on information and he disclosed the source of the information. This is in line with Order 19 rule 3(1) of the Civil Procedure Rules which governs affidavits.

Life Insurance Corporation of India v.Panesar, Civil Appeal No. 1 of 1967 where it was said that:

“Unless otherwise provided for by a written law, the rules of evidence do not apply to affidavit. There being no such written law, the best evidence rule does not apply to affidavit.”

In **Kakooza John Baptist v Electoral Commission**, court cited the above case of *Life Insurance and HELD* that , rules that apply to affidavit evidence do not necessarily apply to annextures to those affidavits. The reason for this view is that the affidavit contains the facts to which the deponent swears to be true because he or she has personal knowledge of them. This cannot always be true of annextures to affidavits. A non-certified DRForm cannot be validated by the mere fact that it is annexed to an affidavit. A DRForm is a public document within the meaning of section 73(a) (ii) of the Evidence Act. It requires certification if it is to be presented as an authentic and valid document in evidence

- An affidavit must contain information within the personal knowledge of the deponent or affirmit and where such information is from any given source, the source must be explicitly stated in the affidavit and the basis of belief.

; Order 19 rule 3 (I) of the Civil Procedure Act provides:-

“(i) Affidavits shall be confined to such facts as the deponent is of his or her own knowledge to prove, except on interlocutory applications, on which statements of his or her belief may be admitted, provided that the grounds, thereof are stated.”

Margaret and Joel Kato v Nuulu Nalwonga J.T mwesigye SC, relied on **Eric Tibebaga vs. Fr. Narsensio Begumisa** (supra) for the view that a person swearing an affidavit in support of an application of this nature must have knowledge of the facts involved and failure to uphold the rule cannot be cured merely by stating the source of the information. The rule on hearsay evidence in

court equally applies to affidavits.

Kakoza Jonathan and anor v Kasalla Growers Co-operative Society J. Tumwesigye JSC, the deponent described himself as female yet he was male. court refused to strike out an affidavit as the deponent had sworn a supplementary affidavit stating that he is a male adult and that the word "female" in his affidavit in reply was an inadvertent typing error

Eseza Namirembe v Musa Kizito

HELD; The affidavit is deficient because it did not set out the deponent's means of knowledge or her grounds of belief regarding the matters stated on information and belief, and it did not



distinguish between matters stated on information and belief and matters deposed to from the deponent's knowledge

It has been repeatedly held that an affidavit of this kind ought never to be accepted by a Court as justifying an order based on the so called "facts". It seems that those concerned with the drafting of such affidavits have little or no regard to these fundamental requirements. As was said in *Premchand Raichand v. Quarry Services*, [1969] E.A. 514, at p. 516, "This is not merely a matter of form, but goes to the essential value of the affidavit". The affidavit was thus of no evidential value.

Uganda Micro Finance Union v Sebuufu Richard'

HELD;

That Normally an affidavit contains a paragraph where it states what particular facts are true to the knowledge of the deponent and what is stated as information believed to be true by the deponent. The grounds of belief must be stated with sufficient particularity to enable the court to determine whether it would be safe to act on the deponent's belief. An affidavit must disclose the matters based on the deponents knowledge and those based on information and belief. An affidavit which fails to do so is defective and cannot be relied upon.

In **MK Financiers Ltd v Shah**, it was held that an Affidavit is defective by reason of being sworn on behalf of others without showing that the deponent had the **authority** of other.

In Charles Mubiru v Attorney General Constitutional Appeal No. 1 of 2001, the Constitutional Court of Uganda held, relying on its decision in Ssemogerere & Another v Attorney General (supra) that an affidavit by the Petitioner which was merely echoing the information his advocate has given him was not based on his personal knowledge and could not be relied upon in a Constitutional Petition. An election petition is not an interlocutory proceedings but a final proceedings, which is aimed at determining the merits of the case. Therefore affidavits admissible in such proceedings must be based on the deponent's knowledge, not on his information and belief.

In **Kizza Besigye v Museveni** HELD;

Affidavits based on information and belief should be restricted to interlocutory matters. In proceedings which finally determine the matter only affidavits based on the deponent's knowledge should be acted upon. Quoting *Paul Ssemogerere v AG*,

that; *“except in purely interlocutory matters affidavits must be restricted to matters within the personal knowledge of the deponent. They must not be based on information or be expression of opinion.*

Affidavits should be strictly confined to such facts, as the deponent is able of his own knowledge to prove. Affidavits by person having no personal knowledge of the facts and merely echoing the statement of claim cannot be used at the hearing.

On the fate of defective affidavits;

Tsekooko, JSC, in Rdt. Col' Kizza Besigye vs. Yoweri Kaguta Museveni & the Electoral Commission SC Presidential Election Petition No.1 of 2006 where he stated: "Even if some paragraphs [in the affidavit] might contain hearsay matters and even if the deponent did not specify the source of certain



information contained in the affidavit, those were not sufficient grounds for a whole affidavit [to be declared] a nullity."

Also **Odoki CJ** stated; I shall reject those affidavits, which are based on hearsay evidence only. I shall accept affidavits, which contain both admissible and hearsay evidence but reject the parts, which are based on hearsay, and only parts which are based on knowledge will be relied upon.

Circumstances where affidavit evidence is applicable and the practice.

- O.19 r.1=3 set out the parameters for admission of affidavits and in essence empower a court of law to allow evidence to be adduced by way of affidavit in any appropriate proceeding.
- Affidavit evidence may be used in ordinary proceedings with leave of court and in support of any pleading which by the relevant rules is required to be supported by an affidavit. This includes notice of motion, chamber summons, specially endorsed plaint, originating summons and petitions .

Thornhill v Islay Thornhill and another[1965] 1 EA 268

In an undefended petition on the ground of the respondent's adultery the petitioner applied under O. 17 r.

1 of the Civil Procedure Rules for an order that the evidence of a witness who had obtained a confession statement from the respondent be given on affidavit to save the cost and inconvenience involved in bringing the witness to Uganda from the United Kingdom. HELD;

That in Uganda the proviso to r. 1 of O. 17 (now 19) is one of the guiding factors which should influence a court in deciding whether it should grant an application to lead evidence on affidavit or not.

In other words, if there is no application from the opposite party to be given an opportunity to cross-examine a witness or if the court does not so direct, then, the court is entitled to exercise its

discretion in the matter, and the discretion, of course, should be exercised judicially.

On appeal evidence by affidavits was allowed given that bringing someone from the United Kingdom would cause so much inconveniences

- A witness who has deposed an affidavit, may with leave of court be cross

examined on the contents therein to verify the authenticity, accuracy of contradictions there in or to discredit the deponents evidence

- The party intending to cross examine a deponent must notify court and the adversary party in advance so that the witness is summoned by court for that purpose

In **Mugema Peter v Mudiobole Abed Nasser**,



HELD; With leave of court, a person swearing an affidavit which is before the court may be cross-examined by the opposite party and re-examined by the party on behalf of whom the affidavit is sworn.

An affidavit is a statement/declaration in writing made on oath/affirmation before one having authority to administer an oath/affirmation. It is made ex-parte, unlike evidence given orally in open court in the personal direction and superintendence of a judge. While the opposite party has opportunity to cross-examine the one giving oral evidence, in case of an affidavit, *the deponent to it can only be cross-examined on the contents of an affidavit after the affidavit has been deposed to, filed in court or in the cause, and usually with the permission of the court or whoever is presiding over the cause.*

- However where a person was notified that cross examination would be conducted upon him and does not appear then the affidavit will be struck out

The types of affidavits.

1. An affidavit in support which is filed together with the pleading supports and contains evidence in proof of the grounds and the reliefs sought

Ready Agro Suppliers ltd v UDB

HELD; Order 33 Rule 4 of the Civil Procedure Rules sets out what applicants must do, if they seek leave to appear and defend. It provides in part,

“An application by a defendant served with a summons in Form 4 of Appendix A for leave to appear and defend the suit shall be **supported by affidavit**, which shall state whether the defence alleged goes to the whole or to part only, and if so, to what part of the plaintiff’s claim, and the court also may allow the defendant making the application to be examined on oath.” The foregoing provisions are clear in what is demanded of the defendant. He/She must state by way of affidavit whether the defence alleged goes to the whole or to part only of the plaintiff’s claim, and if only part, which part of the plaintiff’s claim

Southern investments ltd v Mukabira Foundation Investments “

HELD; Order 36 of our Rules allows a Plaintiff to institute classified suits by presenting a plaint in the prescribed form endorsed “*Summary Procedure Order 36*’ **accompanied by an affidavit** verifying the cause of action and stating that in his belief, there is no defence to the suit. Upon filing the suit, the Court serves the summons on the Defendant and the Defendant does not appear and defend the suit directly like in ordinary suits. The Defendant must first apply for leave to appear and defend the suit from Court by an application **supported by an**

affidavit stating the nature of defence. This application and the affidavit are served on the Plaintiff (See Order 33 r 2, 3 and 4). The Practice and indeed the law is, applications for leave to appear and defend are brought by Notice of Motion under 048 r 1, since Order 33 does not prescribe the procedure



- Whereas the affidavit in support must be filed together with the pleading in support its not a mandatory requirement that it must bear the same date as that of the pleading.

Eng Yorokam katwiremu v Elijah Mushemeza HELD; Where the (notice of motion) application and its accompanying affidavit bear different dates, it does not vitiate the application when the application and affidavit are filed in court on the same day.

2. *An affidavit in reply.*

This is filed by the respondent controverting the averments of facts contained in the affidavit in support.

Southern investments ltd v Mukabira Foundation Investments “

HELD; , that an affidavit in reply is permissible in an application for leave to appear and defend a summary suit and has been the practice in our Courts. No leave of the Court is required Once a Plaintiff has filed a suit under 0.33 supported by an affidavit, and after the summons have been served on the Defendant and the Defendant has applied for leave to appear and defend, the Plaintiff has no right to file a supplementary affidavit to the main suit. The Plaintiff can only file an affidavit in reply to the points raised by the Defendant's affidavit in the application for leave to appear and defend the suit

3. *An affidavit in rejoinder.*

This is filed by or on behalf of the applicant to controvert or clarify any allegations of fact contained in the affidavit in reply. It is also automatic, leave not needed

Jane Bugolobi and ors v Gerald Segirinya; HELD Failure to file and affidavit in re joinder means that you have accepted everything in the affidavit in reply

4. *The supplementary affidavit.*

- This is filed subsequent to the initial affidavit, i.e. it is additional in content to the contents of the initial affidavit.
- A supplementary affidavit ordinarily requires leave of court save where the initial affidavit had not yet been served on the adversary party

Samuel mayanja v URA .

The applicant filed on the day of the hearing of the application, an affidavit he entitled ‘Affidavit In Rejoinder’, in which he repeated the matters already in his earlier affidavit. Mr. Muliisa objected to the court having regard both to the affidavit, as it had been filed without leave of court .

HELD; Where an applicant files an application under Order 52, such applicant is required under Order 52 Rule 3 of the Civil Procedure Rules, to attach an affidavit or affidavits to the notice of motion. The rule states in part, ‘where any motion is grounded on evidence by affidavit, a copy of any affidavit intended to be used shall be served with the notice of motion.’ The rule does not envisage any further affidavits to be filed by the applicant. Where the



applicant wants to file a further affidavit, he ought in my view, to seek the leave of the court, otherwise the proceedings may turn simply into an unregulated game of 'ping pong'. As the affidavit was filed without leave of the court, and it was objected to by the respondent, I shall not have regard to the same.

- A supplementary affidavit can only support an initial affidavit on record if the initial affidavit is valid; where the initial affidavit is struck out the supplementary affidavit collapses.

Jayanth Amratlal and anor v Prime Finance ltd;

HELD; *Where there is no valid affidavit in support of an application on court record, an applicant can't file a supplementary affidavit for there would be nothing to supplement by the supplementary affidavit*

Kakoza Jonathan and anor v Kasalla Growers Co-operative Society J. Tumwesigye JSC, in an affidavit in reply the deponent described himself as female yet he was male. Court refused to strike out an affidavit as the deponent had sworn a supplementary affidavit stating that he is a male adult and that the word "female" in his affidavit in reply was an inadvertent typing error

Procedure of deponing an affidavit including those by illiterates

- The affidavit must be written in the English language. And where the deponent is illiterate, the contents must be translated and explained to such deponent in a language he understands well and a certificate of translation must appear at the jurat [last part] of the translation

Kasala Growers Corp Society V Kakoza Jonathan

Per Tsekooko JSC;

I should point out that respondent's affidavit bears emborsement of, a commissioner for Oaths and a signature of that very Commissioner. Below, there is a statutory explanation that the contents of the affidavits were explained to the deponent by the Commissioner for Oaths and were understood by the deponent.

This was done because the deponent was considered illiterate in English

- The affidavit must be signed by the deponent in the presence of and before the commissioner for oath. Where an affidavit is signed “deponent” that affidavit is not signed.
- **Mefika Matsebula v Mandra Ngwenya**



The Applicant raised the issue that the Respondents original affidavit did not bear the Respondent's signature but that of the Commissioner of Oaths who is supposed to have administered the oath to the Respondent

HELD'; that the form of oath on the Respondent's affidavit is correct, the defect lies in the fact that the deponent did not sign it and the Commissioner of Oaths signed it in the deponent's absence. In the premises court excluded the unsigned affidavit.

- A person deposing an affidavit must physically appear before the commissioner for oath and must take an oath before signing the affidavit..

The Supreme Court in **Kakooza John Baptist Vs The Electoral Commission and Anthony Yiga** upheld the decision of both the High Court and Court of Appeal to reject the affidavit of a deponent who had, explained during cross examination as to how he had deposed to an affidavit thus *"I read through the affidavit, signed it before I sent it to the Commissioner."*

Per Bart M. Katureebe

The appellant who testified that he is a lawyer and a commissioner for Oaths, swore an affidavit in rejoinder which was rejected by the court because apparently he had not appeared before the commissioner for oaths. He had signed the affidavit in Kampala and, in his own evidence, sent it to the commissioner for oaths for commissioning. It turned out that it was then commissioned in Masaka.

In effect the commissioner for oath did not administer the oaths and see the deponent signing the affidavit. Section 6 of the Oaths Act states:-

"Every commissioner for oaths or notary public before whom any oath or affidavit is taken or made under this Act shall state truly in the jurat or attestation at what place and on what date the oath or affidavit is taken or made." (emphasis added).

The practice where a deponent of an affidavit signs and forwards the affidavit to a commissioner for oaths without him being present is, in my view, a blatant violation of the law regarding making affidavits and must not condoned in anyway. The deponent of an affidavit must take oath and sign before the commissioner for oaths as required by law. A commissioner who commissions an affidavit without seeing the deponent cannot say that the

affidavit was taken or made before him, or her nor can he state truly in the jurat or attestation at what place or time the affidavit was taken or made. Equally the deponent cannot claim to have taken or made the affidavit before the commissioner for oaths. Surely the appellant as an advocate and commissioner for oaths ought to know better. This ground is totally without merit and the courts below dealt with it most appropriately and correctly, and it must fail

In Mugema Peter v Mudiobole Abed Nasser,

The learned trial judge, on perusing the affidavit of Rev. Fr. Ndanda found that it had been commissioned by one NOAH EDWARD MWESIGWA, an advocate and a commissioner for



oaths, and not counsel Thomas Ochaya. He therefore found that the affidavit had not been legally commissioned and he rejected the same and struck it off the record.

On appeal HELD; Section 5 of the Commissioners for Oaths (Advocates) Act, cap.5, and section 6 of the Oaths Act, cap.19 and Rule 7 of the Commissioners for Oaths Rules *require a deponent of an affidavit to personally appear and sign the affidavit before the Commissioner for Oaths and swear by saying or repeating after the commissioner administering the oath the words prescribed by the law.* The place and date of attestation must also be stated in the affidavit. Before signing, the commissioner must ensure and satisfy him/herself that the person signing is the one who is stated in the affidavit and that the contents in the affidavit are of that person's own knowledge. Where the same are based on information or some other sources, then the grounds of belief and the sources of information must be disclosed. The commissioner must be satisfied, in all the circumstances that the deponent understands fully what he/she is deponing to. Court thus found that on the basis of the evidence and the law before it, the trial judge was right in rejecting and striking off the affidavit of Rev. Fr. Ndanda.

- The person who administers an oath must be qualified and competent to do so and these include;
 - A commissioner for oath [an advocate certified as such]
 - A magistrate
 - A registrar of the high court even supreme court and a Justice of Peace....

Otim George William Ebil Fred

ISSUES; . The first *is whether an advocate who has been appointed as commissioner for oaths under the provisions of S.2 of the Commissioner for Oaths (Advocates) Act can continue to serve as a Commissioner for Oaths after his/her certificate has expired.* The second issue *is what is the effect of an oath or affidavit taken before a commissioner for oaths who is an advocate and whose practicing certificate had expired at the time he/she administered the oath.*

Thirdly, *what is the effect of a Magistrate who administered an oath but did not write his names in full.*

HELD;

(1) Under the Commissioner for oaths (Advocates) Act Cap.5, the Chief Justice appoints practicing advocates who have practiced for not less than 2 years in Uganda prior to making the application for appointment, and who are certified to be fit and proper persons by two other advocates to be commissioners for oaths. This appointment is published in the Gazette. Each



commission terminates forthwith on the holder thereof ceasing to practice as an advocate. (See SI of Cap.5).

For an advocate to practise law, he/she must have a valid practising certificate (S.11 Advocates Act). It is on this basis therefore that an advocate can continue to be a Commissioner for Oaths. The commission granted to an advocate under the Act goes with a practising certificate. Once an advocate has ceased to practise as such the Commission also ceases. Therefore, it can be stated that an advocate whose practising certificate has expired cannot legally continue to administer an oath to anybody since his/her practising certificate is the basis upon which the Commissioner for oaths operates.

(2) Regarding the effect on the validity of an affidavit commissioned or documents filed by an advocate whose certificate had expired it was held in the case

In the Court of Appeal, the position of the law was clarified in the case of *Bakunda Darlington vs Dr. Kinyatta Stanley and Anor. Civil Appeal No. 27 of 1996*. It was held *inter alia* that:

“An advocate who is commissioned by the Chief Justice under S.2(1) (now S.1) of the Commissioner for Oaths (Advocates) Act ceases to be a Commissioner for Oaths the moment his practising certificate expires and that an advocate who practices without a practising certificate commits an offence under S.14 (Now. S.15) of the Advocates Act. Accordingly all the acts which he (or she) performs in his capacity as an advocate or commissioner for oaths after the period of grace has expired are invalid. It may be stated here that any person who administers an oath when he has no authority to do so commits an offence under S.85 of the Penal Code Act.”

(The Commissioner for Oaths (Advocates) Act S.6 also makes it an offence).

Applying the above statement of the law, the affidavits commissioned by **Stella Acan** are invalid because she did it without a valid practising certificate. The unchallenged communication from the Chief Registrar who is the licensing officer confirmed that **Stella Acan** had no practising certificates for both 2010 and 2011. Therefore her actions could not be salvaged under the period of grace.

(3) There are people/officers who under The Commissioners for Oaths (Advocates) Act are permitted to serve as Commissioners for Oaths even though they are not advocates. Under S.3 thereof:

“Every Magistrate and the Chief Registrar of the High Court (which expression shall include Deputy and district Registrars) shall have, virtute officii, all powers and duties of Commission for Oaths.”

Magistrates and Registrars are therefore *ex-officio* Commissioners for Oaths.

Clearly there is a requirement to state the names of the Commissioner for Oaths be it an advocate or Magistrate in the space provided. This omission is however, minor and can be curable by an affidavit clarifying the particulars of the officer who administered the oath.

- Where the affidavit is not commissioned or is commissioned by an incompetent person. An affidavit is incurably defective and liable to be struck out in case it is commissioned by an incompetent person



In **Lutaqya V AG**, The supporting affidavit by the respondent was not sworn. Court consequently ruled that as the application was not supported by a valid affidavit, it was incompetent and struck it off with costs

In **Soroti Joint Medical Services Limited versus V Sino Africa Medicines And Health Ltd**, An application was struck off on the ground that the affidavit was not commissioned as required by law. That it cannot be asserted that the affidavit was commissioned when there was no signature of the Commissioner, when it was not dated nor was there a stamp of the Commissioner when the applicant's application was struck out.

Requirement to state date and place of deponing an affidavit and effect on non compliance.

- It is a requirement of the law S.6 of the Oath Act that the affidavit should indicate the place and the date on which it is deponed. Section 6 of the Oaths Act states:-

“Every commissioner for oaths or notary public before whom any oath or affidavit is taken or made under this Act shall state truly in the jurat or attestation at what place and on what date the oath or affidavit is taken or made.”

Kakooza John Baptist Vs The Electoral Commission and Anthony Yiga

Per Bart M. Katureebe

HLED; The practice where a deponent of an affidavit signs and forwards the affidavit to a commissioner for oaths without him being present is, in my view, a blatant violation of the law regarding making affidavits and must not condoned in anyway. The deponent of an affidavit must take oath and sign before the commissioner for oaths as required by law. A commissioner who commissions an affidavit without seeing the deponent cannot say that the affidavit was taken or made before him, or her nor can he state truly in the jurat or attestation at what place or time the affidavit was taken or made. Equally the deponent cannot claim to have taken or made the affidavit before the commissioner for oaths.

- The question is never the less whether failure to do so renders the affidavit incurably defective or it can be saved by Art 126[2]e

Hon Sekikubo V Hon Salleh Kamba And Ors HELD; “the difference in place

where the affidavit was signed does not matter as long as one appeared before a commissioner for Oath”

Mwiru Paul v Hon Ejeme Nathan HELD; “indicating a wrong place where the deponent appeared before a commissioner is a minor technicality”

Mbayo Jacob v Electoral Commission case 8 “Putting a box number of Nakivubo instead of Mbale according to court of appeal does not render the affidavit defective”



Failure to state the date

Saggu v Roadmaster Cycles (U) Ltd [2002] 1 EA 258 Held; A defect in the *jurat* or any irregularity in the form of the affidavit cannot be allowed to vitiate an affidavit in view of article 126(e) of the Constitution (1995). A judge has power to order that an undated affidavit be dated in court or that the affidavit be resworn and may penalize the offending party in costs

Filing of affidavits and consequences of failure to file affidavits

- An affidavit in support must be filed together with the pleadings in support and where such affidavit is struck out unless there is any other valid affidavit, the application collapses

In **Jayanth Amratlal And Anor V Prime Finance Co Ltd** court dismissed the application on the grounds that the affidavit in support of the application was incurably defective. Further that in the circumstances the supplementary affidavit had nothing to supplement thereby rendering the Application unsupported by any affidavit. It was accordingly dismissed and judgment and decree entered.

Ready Agro Suppliers Ltd And Ors V UDB. The affidavit of applicant no.3 was filed a month after the application for leave to appear and defend was filed. **Held;** that the affidavit was clearly out of time for applicant no.3, to be the supporting affidavit to his application for leave to appear and defend. Thus the application by applicant no.3 was unsupported by evidence, as it ought to be, and was dismissed forthwith.

- An affidavit in reply is required to be filed either within 15 days from the date of service or any time before the hearing whichever is applicable

Stop and See Ug Ltd v Tropical Africa Bank

Held' *A reply or defence to an application has to be filed within 15 days. Failure to file within 15 days would put a defence or affidavit in reply out of the time prescribed by the rules. Once the party is out of time, he or she needs to seek the leave of court to file the defence or affidavit in reply outside the prescribed time."*

This was cited with approval in **Elias Waziri and Ors V Opportunity Bank Uganda Ltd**, where an affidavit in reply was filed four months after the application was served on the respondent. It was held that the affidavit in reply in this case was filed way outside the fifteen days. However, since there was a prayer for extension of time to file a reply, in the interests of justice, the already filed affidavit was validated

In **Energo project v Brig Kasirye Gwanga**

Both respondents refused to file affidavits in reply **HELD;** This very case binds both respondents. Their failure or refusal or/and neglect to file affidavits in reply when they were duly served with the application is clear indication that they never intended to challenge the



application. I also note that though there are some points of law involved, there are also some facts that were deponed upon in the affidavit in support of the application, which needed an affidavit in reply and rebuttal to the application. And the burden of denying the averments in the affidavit in support of the application squarely lies on the respondents. In the result, I make a finding that the applicant's application was unchallenged by the respondents

- The foregoing principle only applies in relation to interlocutory applications and is not a rule of general applications

Erias Waziri v Opportunity Bank distinguishes stop and sea “Post judgment applications are not interlocutory applications and are not barred by time limit”

- Where the applicant is served with an affidavit in reply and such applicant is desirous of controverting the contents of the affidavit in reply, he may as of right file an affidavit in rejoinder
- Where no affidavit in reply or rejoinder is filed, in appropriate cases the conclusion drawn by the court is that the contents of the affidavit in support or reply respectively are not controverted. That does not however mean that the court must rely on such contents as absolute truth

Jane Bugolobi and ors v Gerald Segirinya; HELD there was no affidavit in rejoinder to the respondent's affidavit in reply. HELD; The law is that where facts are sworn to in an affidavit and they are not denied or rebutted by the opposite party, the presumption is that such facts are accepted.

Sam Massa vs. Rose Achen, [1978] HCB 29, where it was held that where certain facts are sworn in the affidavit, the burden to deny them is on the other party and if he does not, they are presumed to have been accepted and a deponent needs not to raise them again.

- Other affidavits may be filed with leave of court but must be filed within the time limits set by court

Kakande Keneth Paul V Ruhindi Fred And Anor

That the petitioner was instructed by court to file his affidavits on 1/8/2006 and serve by 2/8/2006 at 5.00 p.m. According to the affidavit of the process server he served the 1st respondent on 3/8/2006 at 1.16 p.m. and the 2nd respondent was served at 3.00 p.m.

HELD; Both services were outside the time stipulated by court. It is immaterial that service was outside the stipulated time by a few hours or that in the circumstances prevailing it was difficult to comply with the court order as the affidavit of the process server seems to suggest. In such circumstances the petitioner should have applied to court for expansion of the time instead of trying to 'force' service on the respondents. The purported service of the affidavits on the two respondents was not proper and the fate of these affidavits is that they will not be admitted. They are excluded from the record of this petition.

Falsehoods in affidavits.



- Where an affidavit is premised on deliberate falsehoods such affidavit is liable to be struck out if the falsehood goes to the root of the affidavits

Jetha Brothers Ltd v Mbarara Municipa Council;

Court found that that the affidavit in support of the application contained a falsehood

Held relying on the case of *Sirasi Bitaitana & 4 others vs Emmanuel Kananura [1977] HCB34* court held that an affidavit which contains an obvious falsehood naturally becomes suspect and that an application supported by a false affidavit is incompetent. The instant application is supported by a false affidavit for the reasons already stated. *Once it appears an affidavit has been permeated by a falsehood as in this case there is no way an application, not to mention an affidavit, can be redeemed.*

In the result court struck out this application with costs.

Meddie Dembe v Nalongo Namusisi

Held; An affidavit, which contains a deliberate falsehood, cannot be relied on. In *Sirasi Bitaitana vs Kananura [1977] HCB 34* it was held: The inconsistencies in affidavits cannot be ignored however minor since a sworn affidavit is not a document to be treated lightly. If it contains an obvious false hood then it naturally became suspect.

Thus, an application supported by a false affidavit is bound to fail because the applicant in such a case does not come to court with clean hands. The blatant falsehood in the affidavit of the applicant cannot be ignored, and this application would fail for that reason alone.

Kakooza Jonathan V Kasaala Growers Co-operative Society

Learned counsel for the applicants complained that the respondent's affidavit was argumentative, did not rebut facts raised against them and was full of falsehoods. That, the deponent, refers to himself as a female whereas he is a male and that this was intended to conceal his identity.

Held; that there was no falsehood in the affidavit since the deponent swore a supplementary affidavit stating that he is a male adult and that the word "female" in his affidavit in reply was an inadvertent typing error.

- Where the affidavit makes reference to annexures, it is prudent practice

for the commissioner to seal the said annexures though failure to do so is not fatal to the affidavit

Lugazi Progressive School v Sserunjogi

The first objection raised by learned counsel, Mr. Zehurikize, is that this application is not competent because the affidavit, deponed in support of it must be struck out owing to



the fact that the two Annextures attached to it, and marked as annextures A and B, were not verified by the Commissioner for Oaths.

Court held that it was bound by the court of Appeal decision in Uganda Corporation Creamaries Ltd. And Henry Kawalya vs. Reamation Ltd., which judicially considered the same point. The Court of Appeal, per Engwau, J. A. stated,

“Aslong as an affidavit is properly sworn before a Commissioner for Oaths, it is competent. It is also my very well considered view that such an affidavit may or may not have exhibits attached to it. In the event of exhibits having been attached to affidavits, then all such exhibits must be sealed by the Commissioner for Oaths and must be marked with serial letters of identification as required by Rule 8.” (Emphasis Added)

Elsewhere in the ruling, Engwau J. A. drew a distinction between “exhibits” and “annextures” attached to affidavits commissioned by Commissioner for Oaths. The Court of Appeal was of the view that rule 8, of the Commissioner for Oaths Rules, applied only to exhibits which have been produced and exhibited to a court during a trial or hearing, in proof of facts. The rule did not apply to annextures to affidavits which are not exhibits. The court stated, at page 4 of the ruling.

“In my view, whether or not those annextures have been securely sealed with the seal of the advocate who commissioned the affidavits thereof, does not offend Rule 8 because they were not exhibits produced and exhibited to a court during a trial or hearing in proof of facts. In any case, the annextures in the present case are not in dispute. Even if those annextures were detached, the affidavits thereof would still be competent to support the Notice of Motion. Rule 8, though mandatory, is procedural and does not go to the root as to competence of affidavits.”

The Court thus **held**;

Per; V. F.Musoke Kibuuka

“Matters of procedure are not normally of a fundamental nature. *I do not think that the effect of a failure by a Commissioner for Oaths to comply with the procedure laid down in rule 8 of the Commissioner for Oaths Rules should result into the invalidation of the affidavit to which the unverified exhibits or annextures are attached.* Rather, the most a court would do would be to reject the exhibits or annextures themselves as they would not be competently presented. The affidavit should then be considered for whatever it is worth



without those exhibits of annexures. I also agree that rule 8 relates to exhibits and the word ‘annexture’ which cannot be used interchangeably with exhibit should not be read into it. I find all the circumstances and facts of the instant application to be similar to those which pertained in the Uganda Creamaries Ltd. case. Besides, a decision of the Court of Appeal binds this court. I have no option but to follow it.”

Kebirungi Justine v Road Tainers Ltd

Counsel contended that the affidavit in support of the application to amend the plaint was incurably defective for offending the provision of rule 8 of the first schedule to commissioners for Oath (Advocates) Act Cap. 53 Laws of Uganda

HELD; Court relied on the case of Uganda Corp. Creamaries Ltd & Another Vs Reamoton Ltd. (supra), where, there was a preliminary objection that the original and supplementary affidavits supporting the Notice of Motion were incurably defective for offending rule 8 of the First Schedule to Commissioner for Oaths (Advocates) Act Cap 53 Laws of Uganda for the reason *that the exhibits to those affidavits were not sealed and marked with serial letter of identification*. Engwau, JA held as follows:-

“In my view, whether or not those annexures have been securely sealed with the seal of the advocate who commissioned the affidavits thereof, does not offend Rule 8 because they were not exhibits produced and exhibited to a Court during a trial or hearing in proof of facts. In any case, the annexures in the present case were not in dispute. Even if those annexures were detached, the affidavits thereof would still be competent to support the Notice of Motion. Rule 8, though mandatory, is procedural and does not go to the root as to competence of affidavits. In the premises, substantive justice should be administered without undue regard to technicalities”.

Affidavits deponed by advocates, implications and legal consequences

- Where an affidavit is deponed by an advocate, such advocate cannot appear as counsel especially in a contentious matter and it may be struck out. Similarly advocates are barred from deponing affidavits on behalf of their client

Jayanth Amratlal and anor v Prime Finance Co Ltd.

The applicant, through M/S MWM Advocates & Solicitors, an application for leave to appear and defend a suit. The Application was supported by an affidavit deposed to by Mr. Steven Mwandha, one of the advocates in M/s MWM Advocates and solicitors.

Held; *The application was dismissed because the said application was supported by an affidavit sworn by an advocate who is barred by the Advocates Professional Conduct Regulations from deposing affidavits on contentious matters which he as an advocate cannot prove. (regulation 9 of the Advocates (Professional Conduct) Regulations) 1979 and thus*

incurably defective. However, the judgment was set aside on the principal that lawyers' shortcomings should not be visited on the Applicants.



Ismail v Kamukama; held; Counsel Jombwe's affidavit was defective because as counsel he could not in the same cause depone of matters substantive and contentious pertaining to the allocation of the suit premises and this offended against regulations 9 of the Advocates (Professional conduct) Regulation 1977. But this did not in any way render the notice of motion defective because it was still supported by affidavit of Kyeyune.

Massa Vs Achien: HELD. Rule 8 (now 9) of the Advocates, Professional Regulations, 1977 prohibits counsel from deposing an affidavit in a matter in which he appears as counsel. It also prohibits counsel from commissioning an affidavit in his own matter.

Inconsistence, contradictions in affidavits and legal consequences

- Where the affidavit contains grave and material contradictions, inconsistencies and discrepancies which cannot ably be explained, the court may be inclined to strike out the affidavit especially where such contradictions go to the root of the matter.

In **Sirasi Bitaitana vs Kananura [1977] HCB 34** it was held: The inconsistencies in affidavits cannot be ignored however minor since a sworn affidavit is not a document to be treated lightly. If it contains an obvious falsehood then it naturally became suspect.

Mugume v. Akankwasa MSC. 4/2008, where **J. Stella Arach**

Held that; “*inconsistencies in affidavits cannot be taken lightly, and an affidavit containing falsehoods is suspect and is bound to fail.*”

- An affidavit should not be unnecessarily too long, argumentative neither should it contain irrelevant subject matter.

Eseza Namirembe v Musa kizito

Court found the affidavit of no evidential value, because the affidavit which, did not set forth “concisely the facts upon which the right to the relief sought by the summons is founded whatever it stated did not support the reliefs sought as required. The affidavit was also deficient because it did not set out the deponent’s means of knowledge or her grounds of belief regarding the matters stated on information and belief, and it did not distinguish between matters stated on information and belief and matters deposed to from the deponent’s knowledge .

Court thus **held**; It has been repeatedly held that an affidavit of this kind ought never to be accepted by a Court as justifying an order based on the so called “facts”. It seems that those concerned with the drafting of such affidavits have little or no regard to these fundamental requirements. As was said in *Premchand Raichand v. Quarry Services*, [1969] E.A. 514, at p. 516, “This is not merely a matter of form, but goes to the essential value of the affidavit”. The affidavit was thus of no evidential value and, with respect, I would have refused to act on it.



In Assanand & Son Uganda Ltd. v East African Records Ltd. (1 959) EA 360, the Court of Appeal held that a court should not act on an affidavit which did not distinguish between matters stated on information and belief and matters to which the deponent swears from his own knowledge, or an affidavit which does not set out the deponents means of knowledge or his grounds of belief regarding the matter stated on information. In Assanand & Sons v EA Records (1 959) EA 360 at p.364, the learned President of the Court of Appeal said,

“The affidavit of Mr. Campbell was deficient in three respects. First it did not set out the deponent’s means of knowledge or his grounds or belief regarding the matters stated on information and belief, and secondly it did not distinguish between matters stated in information and belief and matters deposed to from the deponents knowledge (see O. XVIII r.3 (1) and Standard Goods Corporation Ltd. v Harakchand Nathu &. (1950) 17 EACA 99). The court should not have acted upon an affidavit so drawn

Standard Goods Corporation Ltd Vs Hrahchand Nathan: HELD; It has repeatedly been held that an affidavit which does not state the source of the deponent’s information or grounds of his belief ought never to be accepted by a court as justifying an order or based on the so called facts; This is not merely a matter of form but goes to root of the affidavit. The affidavit was thereof of no evidential value.

At p.100, the court said

“The affidavit in question consisted of seven paragraphs. Para 2 was the facts stated herein are within my knowledge; and para 7 was what is stated herein is true and correct to the best of my knowledge and information. As regards paragraph 2, I would observe that facts can be within a person’s knowledge in two ways: (1) by his own physical observation or (2) by information given to him by someone else. It is clear that reading paragraphs 2 and 7 of the affidavit together, the deponent was stating facts without stating which were

from his own observation and which were from information. An affidavit of this kind ought never to be accepted by a court as justifying an order based on the so called facts.”

Nakiridde Vs Hotel International: Held; Counsel for the applicant deponed to reason to why he did not attend court but the reply touched on matters of law that were completely irrelevant to the application the affidavit was unnecessarily and oppressively long and in some cases an insult to the purpose for which it was supposed to serve. Though there was no law specifically giving power to court to strike out the affidavits for probably, the court had inherent powers to



do so in order to prevent its record from being an instrument of suppression. The affidavit would therefore be removed from court record.

- ❖ **Hill Vs Hant Davis:** The issue was whether an affidavit can be struck out on prolixity. **Held:** That though there is no rule of court specially giving powers to the court to take pleadings on affidavits off the file for prolixity, yet the court has inherent powers to do so in order to prevent its record from being made the instrument of oppression. When the affidavit of documents were of oppressive strength but it appeared to the court that the delay and expense would be caused by filing a fresh one, the court permitted it to remain on the file but ordered the party filing it to pay the costs of it.

Applicability of Article 126(2)(e) to defects in affidavits.

Art 126[2]e can only be invoked to cure defects in an affidavit which are not a substantive requirement of the law or which do not go to the root of the subject matter before court

All Sisters Co Ltd v Guangzhou Tiger Head Battery

HELD; . The intention of article 126 (2) (e) is to ensure that substantial justice is done and that parties are not blocked by matters of form. To a large measure the question of whether a rule or law is of a fundamental nature in the circumstances of the case or not has been left to the judgment of the court. The decisions of courts have often met the criteria in article 126 (2) (e) of the constitution as was captured in the case of **Iron and Steelwares Ltd v. C.W. Martyr & Co. [1956} 23 EACA 175 AT 177** where the East African Court of Appeal observed that: “Procedural rules are intended to serve as handmaidens of justice, not to defeat it.”

Saggu v Roadmaster Cycles (U) Ltd [2002] 1 EA 258

Appellant argued that the Judge failed to address the preliminary objections raised because the affidavit was not dated and the application did not cite the correct law under which it was brought.

Held

- i. Where an application omits to cite any law at all or cites the wrong law but the jurisdiction to grant the order exists, the irregularity or omission can be ignored and the correct law inserted
- ii. A defect in the *jurat* or any irregularity in the form of the affidavit cannot be

allowed to vitiate an affidavit in view of article 126(e) of the Constitution (1995).
A judge has power to order that an undated affidavit be dated in court or that the affidavit be resworn and may penalize the offending party in costs

Besigye v

Museveni Per

Odoki CJ

From the authorities I have cited there is a general trend towards taking a liberal approach in dealing with defective affidavits. This is in line with the constitutional



directive enacted in article 126 of the Constitution that the courts should administer substantive justice without undue regard to technicalities. Rules of procedure should be used as handmaidens of justice but not to defeat it.

In the present case, the only method of adducing evidence is by affidavits. Many of them have been drawn up in a hurry to comply with the time limits for filing pleading and determining the petition. It would cause great injustice to the parties if all the affidavits which did not strictly conform to the rules of procedure were rejected. This is an exceptional case their all the relevant evidence that is admissible should be received in court. I shall therefore reject those affidavits, which are based on hearsay evidence only. I shall accept affidavits, which contain both admissible and hearsay evidence but reject the parts, which are based on hearsay, and only parts which are based on knowledge will be relied upon. As order 17r 3 (2) provides the costs of affidavits which contain hearsay matters should be borne by the party filing such affidavits

THE LAW RELATING TO JUDGMENTS.

- The judgements connotes the final pronouncements of court on the issues and subject matter lawfully brought before such a court for adjudication. Order.21 does prescribe the pre-requisites of a judgment including the fact that it must contain the reasons and the Orders and should be signed and dated.

J Madrama *in* **Liberty Construction Co. Ltd V R.C. Munyani & Co Advocates**

Held; As far as judicial decisions are concerned, judicial officers are also guided by order 21 of the Civil Procedure Rules. **Contents of a judgment are provided for under order 21 rules 4** of the Civil Procedure Rules which provides as follows:

"Judgments in defended suits shall contain a concise statement of the case, the points for determination, the decision on the case and the reasons for the decision."

Order 21 rule 5 of the Civil Procedure Rules provides that the Court shall state its decision on each issue or controversy. It provides as follows:

"In suits in which issues have been framed, the Court shall state its finding or decision, with the reasons for the finding or decision, upon each separate issue, unless the findings upon any one or more of the issues is sufficient for the decision of the suit."

- The requirement to have a judgment signed is to guarantee its authenticity and to avoid any subsequent amendments to such a judgment

Orient Bank Ltd v Fredrick Zaabwe supreme court



Held; It is trite that a judgment takes effect from the day it is pronounced, hence the requirement that it be dated as of the day it is delivered and not necessarily the day it is signed, though more often than not the two are done at the same time. *On the other hand, the requirement for the judgment to be in writing and signed is to ensure its authenticity and validation as the judgment of the judge/judges making it.* . In the case of reserved judgments, the writing and signing are invariably done before the time the judgment is delivered, and its authenticity and validity are thus preserved up to its delivery. Where at any time before its delivery, the judgment is altered because there is change of mind, the altered judgment has to be similarly authenticated and validated. In either case, the judgment is delivered as the valid judgment of the judge who prepared and signed it

- Where a judgment is not signed and there is no evidence that it was pronounced in open court in the presence of the parties and their respective advocates such a judgment is not a valid judgment.

Caroline Mboijana v James Mboijana

The record of proceedings contained neither a signed judgment nor a handwritten draft of its original. There was however unsigned but dated and typed judgment. The court of appeal, held that there was no judgement in the absence of a signed and certified judgment.

Held; the Supreme Court on re-evaluating the evidence found that the learned trial judge completed the case and wrote the judgment and delivered it in open court. The decree which was approved *by* counsel for respondent was signed *by* counsel for the appellants, and *by* the trial judge.

Maniraguha Gashumba v Sam Nkundiye

Held that a judgment must be signed and dated by a judge or Magistrate who wrote it at the time of pronouncing it. A judgment that is not signed and dated in accordance with **Order 21 rule 3(1)** of the **Civil Procedure Rules** is no judgment at all and is therefore invalid. That neither oral evidence of the Judicial Officer who wrote it nor certification could validate such an unsigned judgment.

- A judgment of a court is only valid if rendered by a court that is valid and properly constituted in accordance with the law

Geofrey Komakech and anor v Rose Akol and 2 Ors

The Court record shows that the Court was in a full coram in that there were three justices during the hearing of the application to strike out the appeal. Judging from the contents of the main ruling striking out the appeal, there appears to have been agreement among the three justices constituting the Court to strike out the appeal. However, the third learned Justice of Appeal declined to sign the main ruling apparently because of the order as to who should pay the costs. However she did not give her own dissenting ruling as required by Rule 33(6) of Court of Appeal Rules. She also declined to participate in the subsequent hearing on costs because she disagreed as to who should pay costs.



HELD; there is no doubt that there was no coram when the hearing and final decision on costs was made. The order as to payment of costs is obviously incompetent. Also her refusal to sign the main ruling and her absence from the hearing on costs rendered the ruling / order of the court incompetent. That the ruling by the Court of Appeal is a nullity because it lacked Coram during hearing and decision

Judgment and legal effect

- Where a judgment is dully entered by court such judgment is binding on the parties whether in personam or in rem and it must be complied with or else contempt proceedings may be commenced against the party who attempts not to comply with the judgment

Hadkinson v Hadkinson [1952] 2 All ER 567

On a petition by a wife for the dissolution of her marriage, a decree nisi was granted, and it was directed that the child of the marriage should remain in the custody of his mother, but that he should not be removed out of the jurisdiction without the sanction of the court. On the decree being made absolute, the mother re-married, and without the sanction of the court she removed the child to Australia. On a summons by the father an order was made directing the mother to return the child within the jurisdiction. On an appeal by the mother against the order the father objected that, as she was in contempt, she was not entitled to be heard.

Held – *It was the plain and unqualified obligation of every person against, or in respect of, whom an order was made by a court of competent jurisdiction to obey it unless and until it was discharged, and disobedience of such an order would, as a general rule, result in the person disobeying it being in contempt and punishable by committal or attachment and in an application to the court by him not being entertained until he had purged his contempt;*

Disregard of an order of Court is a matter of sufficient gravity, whatever the order may be. Where, however, the order relates to a child the Court is, or should be, adamant on its due observance. Such an order is made in the interests of the welfare of the child and the Court will not tolerate any interference with or disregard of its decisions on those matters.”, and least of all would permit disobedience of an order that a child should not be removed outside its jurisdiction; in the present case the mother was not entitled to prosecute or be

heard in support of her appeal until she had taken the first and essential step towards purging her contempt of returning the child within the jurisdiction.

Hamutenya v Hamutenya [2005] NAHC 1 in the High Court of Namibia

The applicant is seeking an amendment of the settlement agreement incorporated in the final decree of divorce issued by this Court. In terms of that agreement custody and control of the two minor children born of the dissolved marriage between the parties are vested in the respondent, subject, however, to the applicant's rights of reasonable access to them. The effect of the amendment which the applicant is seeking will be to vest the right to custody and control of the children in him. The respondent is opposing the application on a number of



grounds, one of which was raised *in limine*, i.e. that the applicant is in contempt of the existing order and that the Court should decline to hear the application unless and until the applicant has purged his content.

Held;

“Judgments, orders, are but what the Courts are all about. The effectiveness of a Court lies in execution of its judgments and orders. You frustrate or disobey a Court order you strike at one of the foundations which established and founded the State of Namibia. The collapse of a rule of law in any country is the birth to anarchy. A Rule of law is a cornerstone of the existence of any democratic government and should be proudly guarded.”

“The matter is one of public policy which requires that there shall be obedience to orders of Court and that people should not be allowed to take the law into their own hands

“An order of a court of law stands until set aside by a court of competent jurisdiction. Until that is done the court order must be obeyed even if it may be wrong. A person may even be barred from approaching the court until he or she has obeyed an order of court that has not been properly set aside (*Hadkinson v Hadkinson* .) court further applied verbatim the holding in *Hadkinson* above)

For purposes of the point *in limine* it is sufficient that the applicant has been and still is in wilful default of the Court’s order and that there are no exceptional circumstances which allow the Court to hear the application before the contemptuous party has purged his or her default.

- A judgement of a court must therefore be respected and is enforceable against the parties thereto unless set aside, varied or otherwise nullified in appropriate proceedings.

Edith Nantumbwe v Mariam Kuteesa

Held;

The consent judgment which has the effect of setting aside the ruling of the

High Court is not signed by 1st plaintiff in the original suit. That consent cannot be valid in that regard. A consent judgment is basically an agreement between parties. It cannot grant to the parties powers which they would otherwise not possess whilst making an agreement. Parties to a suit cannot legally agree to direct a person who is not party to the agreement or to the consent judgment to do anything he or she has not consented to. And parties cannot agree to aside a judgment or an order of court.



- Where a party is aggrieved by a judgment the lawful recourse available is to apply to have the judgment set aside. Otherwise however irregular it may have been obtained the judgment is binding

Kahumbu v National Bank of Kenya 2003) 2 EA 475

The plaintiff made an application to court seeking discovery of documents by the defendant. The Court made an order requiring the defendant to make discovery within 14 days, in default of which the statement of defence would be struck out and judgment entered in favour of the plaintiff. The defendant sought to comply with the court order and produced some but not all documents specified in the court order. Following the failure by the defendant to produce all the documents specified, the plaintiff applied to court to have the statement of defence struck out in accordance with the earlier court order. The defendant opposed the application averring that it had fully and conclusively complied with the court order because it had produced all documents in its possession. It was also contended that the Judge had

been wrong in imposing the sanction as his order had no basis under Order X, rule 20 of the Civil

Procedure Rules and that the said order was therefore invalid and should not be given effect even if there was no compliance.

Held – A court order is valid and binding unless and until it is appealed against, amended or set aside. A court cannot hear the appeal against an order from another court with co-ordinate jurisdiction.

The affidavit concerning documents by the defendant's employee was *prima facie* conclusive. However, the Court was not bound to recognise it as conclusive if there was a reasonable probability or presumption or even ground for suspicion that the defendant had other relevant documents in its possession. In the present case, there was reason to suspect that the defendant had not been candid or forthright with the Court. The conduct of the defendant showed a wilful disregard of a court order, which merited imposition of the penalty ordered by the court. The defendant's defence would therefore be struck out.

Amrit Goyal v Harichand Goyal and Ors

The respondents were ordered to deposit security for costs within 30 days, by 29th May but instead deposited the money by August.

HELD; . A court order is a court order. It must be obeyed as ordered unless set aside or varied. It is not a mere technicality that can be ignored. If we allowed court orders to be ignored with impunity, this would destroy the authority of judicial orders which is the heart of all judicial systems.

On applying Article 126(2)(e) , court stated;

Finally, we consider whether failure or refusal to comply with a court order is a technical irregularity which can be cured under article 126(2)(e) of the Constitution and Rule 2(2) of this Courts Rules. From what we have just stated above, we hold a firm view



that a court order is not a mere technical rule of procedure that can be simply ignored. In our jurisprudence, court orders must be respected and complied with. Those who choose to ignore them do so at their own peril.

The application was struck out for refusal to obey court's order.

In **Hamutenya v Hamutenya**, it was held; An order of a court of law stands until set aside by a court of competent jurisdiction. Until that is done the court order must be obeyed even if it may be wrong (*Culverwell v Beira* **1992 (4) SA 490** (W) at 494A - C

- The court that has passed the judgment becomes functus officio and incapable of altering or amending the judgment except on the proper application where the law and the grounds so permit.

Orient Bank Ltd v Fredrick William Zaabwe; Supreme Court

HELD; It is trite law that the decision of this Court on any issue of fact or law is final, so that the unsuccessful party cannot apply for its reversal. The only circumstances under which this Court may be asked to re-visit its decision are as set out in Rules 2(2) and 35(1) of the Rules of this Court. Subject to the inherent powers and the slip rule, the Court's decision in every proceedings is final.

Court quoted Sir Charles Newbold P., in ***Lakhamshi Brothers Ltd. vs. R. Raja and Sons*** (1966) E.A. 313; at p. 314 where he said.

There is a principle which is of the very greatest importance in the administration of justice and that principle is this: it is in the interest of all persons that there should be an end to litigation. This court is now the final court of appeal and when this court delivers its judgment, that judgment is, so far as the particular proceedings are concerned, the end of the litigation. It determines in respect of the parties to the particular proceedings their final legal position, subject, as I have said, to the limited application of the slip rule."

TYPES OF JUDGMENT

1. Ordinary judgment.

An ordinary judgment presupposes a reasoned decision of a court pursuant to an inter parte hearing, such a judgment would ordinarily contain;

- a. brief facts,
- b. the issues set out at scheduling,
- c. analysis of the law and its application to the facts,
- d. findings of the court on each of the issues and
- e. the orders of the court based on its findings



J Madrama in **Liberty Construction Co. Ltd V R.C. Munyani & Co Advocates**

Held; As far as judicial decisions are concerned, judicial officers are also guided by order 21 of the Civil Procedure Rules. Contents of a judgment are provided for under order 21 rules 4 of the Civil Procedure Rules which provides as follows:

"Judgments in defended suits shall contain a concise statement of the case, the points for determination, the decision on the case and the reasons for the decision."

Order 21 rule 5 of the Civil Procedure Rules provides that the Court shall state its decision on each issue or controversy. It provides as follows:

"In suits in which issues have been framed, the Court shall state its finding or decision, with the reasons for the finding or decision, upon each separate issue, unless the findings upon any one or more of the issues is sufficient for the decision of the suit"

In an ordinary judgment the parties proceed inter-parte while in exparte judgment the party proceeds exparte

2. **Default judgment.**

- This is provided for under O.36 of the Rules and in order for such a judgment to be entered by court the following prerequisite must have been satisfied
 - a. The suit should have been commenced by ordinary plaint under O.4r1 in line with O.7
 - b. The claim in the plaint must be for a liquidated demand only. The liquidated demand for this purpose means a specific sum of money claimed under any contract, under taking or other documents of acknowledgment

Twine Amos v Tamusuza James; per J Mulyagonja

As to whether the trial court properly entertained the respondent's suit *ex parte*, the applicant's complained that court entered an interlocutory judgment against him in the suit under

Order 9 rule 6 CPR in the absence of a liquidated demand in the plaint.

HELD; The operative phrase for entering judgment in the provision above (Order 9 rule 6 CPR) is *"liquidated demand."* Osborn's Concise Law Dictionary (7th Edition,

Sweet & Maxwell) defines “liquidated” as fixed or ascertained. According to Black’s Law Dictionary (6th Edition) a liquidated claim is an amount which has been agreed upon by parties to the action, or one that is fixed by operation of law.

In this case, the correct provision for entering judgment against the applicant was Order 9 rule

7.. however court found that entering judgment under Order 9 rule 6 was only irregular and the irregularity was not a material one because thereafter the court followed the correct procedure when the suit was set down for assessment of damages.

J. Madrama in **Valery Alia v Alionzi John**



HELD; that where there is a claim for liquidated damages together with a claim for pecuniary damages, the registrar can enter default judgement in respect of the liquidated demand and set down the suit for assessment of damages in respect to the claim for pecuniary damages.

Halsbury's laws of England volume 12 (1) fourth edition reissue page 267 and paragraph 808 defines liquidated and unliquidated damages and penalties as follows:

"The parties may agree by a contract that a particular sum is payable on the default of one of them. If the agreement is not obnoxious as a 'penalty', such a sum constitute 'liquidated damages' and is payable by the party in default. The term is also applied to sums expressly made payable as liquidated damages under a statute. In every other case, where the court has to quantify or assess the damages or loss, whether pecuniary or non pecuniary, the damages are 'unliquidated'

Lloyds Forex Bureau v Securex Agencies

HELD; Stroud's Judicial Dictionary of Words and Phrases Sweet and Maxwell 2000 edition defines the term "*liquidated demand*" to include an amount on a bill of exchange, definite interest on a contract or a statute, a sum certain in money, a statutory demand for payment of a total debt or an amount due on a judgment

Concern Worldwide V Mukasa Kugonza

Per Justice H. Wolayo

HELD; I wish to comment on the character and content of the default judgment. A default judgment is entered where there is proof of service and the defendant has not filed a defence within the specified time. Rules 6 and 8 of order IX of the CPR are relevant. Under rule 6, where plaintiff is for a liquidated demand, judgment will be entered for the sums claimed. However under rule 8, where the claim is for pecuniary damages, the rule requires that an interlocutory judgment is entered and the suit set down for formal proof. The awards in the default judgment are not based on any evidence

- Under the claim for a default judgment, interest may be awarded at a rate pleaded by a party and in the absence of any specific rate, at a rate of 8 percent per annum O.9r6.

It provides; “Where the plaintiff is drawn claiming a *liquidated demand*

and the defendant fails to file a defence, the court may, subject to rule 5 of this Order, pass judgment for any sum not exceeding the sum claimed in the plaint together with interest at the rate specified, if any, or if no rate is specified, at the rate of 8 percent per year to the date of judgment and costs

- The defendant must have been served with summons to file a defense in the manner provided for service of summons.

Vallary Alia v Alionzi John, court set aside an interlocutory judgment which was entered without proof before court that summons together with the plaint had been served upon the defendant. In Uganda the requirement under order 9 rule 5 of the Civil Procedure Rules file an affidavit of service upon the court record is a mandatory requirement. That the summons is an



order of the court requiring the defendant to file a defence within the prescribed time of 15 days and warning of the consequences of non-compliance with the filing of a defence. It is a fundamental rule of justice that before anybody can defend himself or herself, he or she has to be notified of the particulars of the claim against him or her.(article 28). Therefore non- compliance with order 5 rule 2 of the Civil Procedure Rules renders the proceedings an irregularity

Craig v Kanseen [1943] 1 All ER 108 **HELD**; that the failure to serve the summons upon which the order was made was not a mere irregularity, but a defect which made the order a nullity and therefore, the order must be set aside There must be evidence of effective service of summons and the pleadings on court record O.5r6 and O.

Edison Kanyebwera v Pastori Tumwebaze,

HELD; there was no evidence on record that the defendant was served. Order 5, rule 17 of the

C.P.R requires the serving officer, to make an affidavit of service stating the time when and the manner in which the summons was served and name and address of the person, if any, identifying the person served and witnessing the delivery of the tender of the summons. The provisions of this rule is mandatory, it was not complied with in the instant case. What the rule stipulates about service of summons, applies equally to service of hearing notices. There was no affidavit of service on the record. The absence of such affidavit leads inevitably to the conclusion that the defendant was not properly served with the hearing notice before the suit was heard in his absence. Appeal allowed.

- The time for filing a WSD by the defendant must have lapsed and no such defense is on record O.8r2 and in case of AG for 30 days

Mark Graves v Balton

Held; A defendant who has been served with summons is required to file a defence within the time and manner as provided by Order 8. Court found that the application was filed out of the time limited for service of the defence. The judge quoted *In Uganda Revenue Authority Vs Uganda Consolidated Properties Ltd (1997 – 2001)* UCL 149 Justice Twinomujuni JA stated:- “Time limit’s set by statutes are matters of substantive law and not mere technicalities and must be strictly complied with.”

He thus held that the application was caught up by the time limits

Uganda Telecom Ltd v Airtel UG Ltd,

Held; “where a judgment is entered before the expiry of the time prescribed in the summon such a judgment is a nullity”

- Where the court is satisfied as to the nature of the claim, evidence of service and the failure by the defendant to enter appearance, such court may on the



application of the plaintiff enter judgment for a sum not exceeding the amount claimed together with interest at a rate specified on at 8 percent per annum

Dembe Trading Enterprises Ltd V Uganda Confidential Ltd

The judge set aside the order of the Registrar entering interlocutory judgment in the suit as having been entered in error and the proceedings following that entry of the interlocutory judgment as it was entered under a wrong rule.

- The application for a default judgment is by way of a formal letter addressed to the registrar if the matter is in the High court or to a trial Magistrate if the matter is in a Magistrate court. O.9r6
- In terms of forum where the matter is in the High court the jurisdiction to enter a default judgment may be exercised either by a registrar or by a judge O.50 of the CPR and Practice direction No.1 of 2002

Default judgment against government or attorney general

Where the AG is a defendant, a default judgment may be entered subject in compliance with the following.

- a. The suit must be by ordinary plaint and the claim must be liquidated/liquidated demand
- b. Where summons are duly served on the AG the AG has 30 days within which to file a WSD

AG V Sengendo

The plaintiff had been attacked, shot and injured by soldiers on a highway a few hours after an assassination attempt on the then President. Counsel for the defendant had filed no defence but proposed to take part in the proceedings. When this was refused he relied on r. 6, Civil Procedure (Government Proceedings) Rules.

Held –

- (i) a defendant who files no defence cannot be heard

(ii) judgment in default of pleading by the government is prohibited, but not judgment after hearing

- c. Before a default judgment is entered the plaintiff must move court for leave to enter a default judgment by way of a formal application by chamber summons with a valid affidavit

Agasa Maingi V AG



This is an application by way of chamber summons brought under the provisions of rule 6 of the Civil Procedure (Government Proceedings) Rules and O.11 r.6 of the Civil Procedure Rules for orders that: Judgment in default be entered against the respondent/defendant.

HELD; It is clear therefore that the application was brought in court in conformity with rule 6 of the Civil Procedure (Government Proceedings) Rules. The Attorney General though served did not appear in court. On this ground alone the application would succeed.

- d. the application must be served on the AG at least 7 clear days before the date of hearing the application and if upon hearing the application the court is satisfied that no sufficient cause exists for the failure to enter appearance by the AG it would grant leave and proceed to enter a default judgment.

Agasa Maingi V AG , in an application to enter default judgment against the attorney General, court found that The chamber summons was filed in court on 21/2/2002. The affidavit of Hashan Kiyimba shows clearly that he took the summons to the chambers of the Attorney General on 21/2/2002 and was told to go back. He returned to the chambers of the Attorney General on 4/3/2002 and a copy of the summons returned to court clearly shows that it was stamped by the chambers of the Learned Attorney General on that same day. It is clear therefore that the application was brought in court in conformity with rule 6 of the Civil Procedure (Government Proceedings) Rules. The Attorney General though served did not appear in court. On this ground alone the application would succeed.

- e. In case of a defendant being the AG, a default judgment cannot be entered by the registrar if the matter is in the High court as the application for leave is heard and determined by a Judge unless the judge upon granting leave directs the registrar to enter a default judgment

Thomas Irumba v AG

All four suits had been filed against the Attorney General. No appearance was entered in the prescribed time whereat the District Registrar entered interlocutory judgments against the Attorney General in all the four files. No leave of court was sought by the plaintiff and no service of such application was made on the Attorney General, Later it came to be realised that the Attorney General had entered appearance and filed written statements of Defence in the High Court Registry at Kampala. Copies of the same reached the District Registry after interlocutory judgments had been entered. The District Registrar forwarded the files to the High Court to make decision or whether the Attorney General is by law at liberty to enter appearance and file written statements of defence in the High Court registry at Kampala in suits filed in District Registries



HELD;

According to the Government proceedings Act. Cap,69 the Attorney General may enter appearance either in the District Registry or in the central office of the High Court in Kampala and in such a case all steps in relation to the proceedings up to trial shall be taken as though the proceedings had been instituted in the Central office.

The learned District Delegate erred in law in passing judgment against the Attorney General in default of appearance without obtaining leave of the court and having not served the Attorney General.

Interlocutory judgment

An interlocutory judgment is provided for under O.9 r8 and it is only entered subject to the following pre-conditions being satisfied.

1. The suit must be by Ordinary plaint under O.4r1 O.6r2 and O.7
2. The claim in the plaint must be for pecuniary damages only or for detention of goods with or without a claim for pecuniary damages

Dembe Trading Enterprises Ltd V Uganda Confidential Ltd

held; The relevant rule for interlocutory judgment is Order 9 rule 8 which applies, to *'a plaint drawn with a claim for pecuniary damages only'* or a claim for the detention of goods .

- Before such interlocutory judgment is entered, there must be proof of defective service of summons and pleadings on the defendant and the time within which the defendant is required to file a WSD must have lapsed

Magon v Otoman Bank it was held that, the time for filing defence had not expired and therefore the *ex parte* judgment should be set aside ex debito justitiae;

- An interlocutory judgment is not a final judgment but an interim judgment on liability

Hajji Asuman Mutekanga v Equator Farmers

HELD; Where an interlocutory judgment has been entered in favor of the plaintiff, the question of liability of the defendant is no longer in issue. What is in issue is the assessment of the quantum of damages. An interlocutory judgment does not entitle the plaintiff, in whose favor it has been entered to sit cross legged and wait to be fed on a silver plate. He has a duty to show on the balance of probability that he is entitled to the relief claimed in the plaint



- It follows therefore that once an interlocutory judgment has been entered the plaintiff must cause the suit to be fixed for formal proof where after a final judgment will be entered by court

Twine Emosi v Tamusuza James

Court found that the D/Registrar entered the interlocutory judgment in contravention of provisions of the CPR by entering judgement under Order 9 rule 6, yet the claim was not liquidated. That although he entered judgment under the wrong provision, realising that the plaintiff's claim was not liquidated proposed to set down the suit for hearing, as would have been done had the interlocutory judgment been properly entered under order 9 rule 7 CPR. The judge found that entering judgment under Order 9 rule 6 was only irregular and the irregularity was not a material one because thereafter the court followed the correct procedure when the suit was set down for assessment of damages.

The possibility of obtaining both default judgment and interlocutory judgment in one suit.

O.1r5 and 8 appear to provide for different circumstance under which the interlocutory or default judgment may be entered by court R.6 restricts a default judgment to a liquidated demand and R8 restrict an interlocutory demand for pecuniary claim for damages or detention of goods but non of the two provide for a combination of both liquidated and unliquidated demands in the same suit

Dembe trading enter v Uganda confidential J. Engonda Ntende

HELD; The rules do not provide specifically for cases where there is a conjunction of claims for both liquidated demand and pecuniary damages and the defendant does not file a defence. Is it possible to apply both rules 6 and 8 conjunctively? That is to disaggregate the claims in the plaint, and apply rule 6 to those claims to which it applies, and apply rule 8, to that part of the claim to which rule 8 may presumably apply. This may not be possible given the wording of rule 8, which refers to 'a plaint drawn with a claim for pecuniary *damages only*'. Rule 8 appears to be restricted in application to plaints in which there is a claim for pecuniary damages only or for the detention of goods. If the plaint in question has other claims or has other claims coupled with these claims, it cannot fall within the

operation of rule 8, which is restricted to a claim for pecuniary damages only, in the context of this suit.

- It follows therefore that where the claim is for both liquidated and unliquidated demands, the court can only grant a default judgment in respect of a liquidated demand and the plaintiff may elect whether to abandon the unliquidated claims or apply for an interlocutory judgment under O.9r8

Lloyds Forex Bureau v Securex Agencies; J Madrama considered the position as follows.



The plaintiffs action is for recovery of Uganda shillings 50,142,000/= plus interest, damages and costs of the suit.

HELD

It is clear that the plaintiff's action is for a liquidated demand plus interest and costs of the suit. Only claims for pecuniary loss or general damages require formal proof. This is however optional. The plaintiff would have been entitled to judgement on a liquidated demand under order 9 rules 6 of the Civil Procedure Rules which applies to a plaint drawn and claiming a liquidated demand where no defence is filed.

The rule does not provide that it is applicable where the plaintiff is claiming a liquidated demand only. It also applies to a plaint where there is a liquidated demand and some other claim not being a liquidated demand. Consequently, even if a liquidated demand is coupled with another claim, order 9 rules 6 may attract judgment upon default of the defendant to file a defence within the prescribed time.

Secondly Order 9 rule 8 on the other hand deals with a claim for pecuniary damages only or for detention of goods with or without a claim for pecuniary damages. A claim for pecuniary damages is not a claim for a sum certain in money. It is a claim for damages which may be assessed. The rule permits the court to enter interlocutory judgement against the defendant where there is a claim for pecuniary damages only or for detention of goods with or without a claim for pecuniary damages. This is where the defendant fails to file a defence within the period prescribed in the summons.

In this case, the plaintiff's action is not for pecuniary damages only. It is a claim for a liquidated sum coupled with the claim for pecuniary damages.

There is judicial precedence the effect **that a final judgement may be entered in respect of a liquidated demand and an interlocutory judgement entered in respect of the claim for pecuniary damages claimed in the same plaint.** This was held by Evershed LJ in the case of *Abbey Panel & Sheet Metal Co Ltd v Barson Products (a firm)* [1947] 2 All ER 809 at page 810:

"The intended scope and purpose of RSC, Ord 13, rr. 3–7 inclusive, appear to me to be reasonably plain. They provide that where a plaintiff has in his writ made a claim against a defendant for one or more of the following, viz, (a) a debt or

liquidated demand, (b) detinue, and (c) pecuniary damages, and such defendant, though properly served, does not choose to appear to the writ, then the plaintiff may, without having to take any further steps against that defendant, obtain judgment against him for his claim—in the case of a liquidated demand, a final judgment; in the other cases, an interlocutory judgment subject to assessment by the court of the monetary amount he is entitled to recover.”

His Lordship held that judgement in default is entered for a liquidated sum while interlocutory judgement is entered in respect of the claim for pecuniary damages.



This in a nutshell gives a right to a plaintiff to proceed under order 9 rules 6 and 7 with regard to a claim for liquidated damages and order 9 rule 8 of the Civil Procedure Rules in respect of a claim for pecuniary damages or detention of goods with or without a claim for pecuniary damages in the same plaint. In other words the plaintiff is entitled to judgement on the liquidated sum and the proceedings for formal proof will only be for general damages.

Valery Alia v Alionzi John

HELD

The plaintiff is entitled to a final judgment against the defendant in respect of a liquidated demand even if there is a claim for pecuniary damages in the suit. In other words, the deputy registrar can enter final judgment for the liquidated demand and set up the claim for pecuniary damages for formal proof after entering interlocutory judgment in respect thereof.”

Where there is a claim for liquidated damages together with a claim for pecuniary damages, the registrar can enter default judgement in respect of the liquidated demand and set down the suit for assessment of damages in respect to the claim for pecuniary damages.

Ex parte judgment

- An ex parte judgment may be obtained under two circumstances, on the basis of the fact that such judgment is entered against the defendant who has not entered appearance
- Under O.9r11[2] the plaintiff must move court by way of an application to grant leave to the plaintiff to proceed ex parte. Before court grants such Order [ex parte order] it must be satisfied
 - a. That the defendant was duly served with summons and pleadings
 - b. There is evidence of such service by way of affidavit of service [O.5r16
 - c. The time within which the defendant is supposed to have filed a WSD must have lapsed
- It is not a requirement under O.9r11[2] to serve the defendant with the notice of hearing [compare O.9r11[1]

The above provisions were interpreted in the case of

Twine Amosi v Tamusuza James J Irene Mulyangonja where the applicant failed to file a Written Statement of Defence and the case was heard ex parte. He complained that no hearing notice was served on him and that the court went on to hear the suit without notifying him that the suit had been transferred to another court

HELD;



Under Order 9 rule 11 (1) CPR , notice of the hearing of the suit is to be served on a party who has filed a defence, not on one who failed to file his/her defence as required by the summons issued to him/ her. When he failed to file a defence, the defendant/ applicant opened the door for the plaintiff to proceed ex parte in the suit which he did under the provisions of Order 9 rule 11(2).

That It is important to note that as opposed to rule 11(1) rule 11(2) of Order 9 does not require the plaintiff to give notice to a defendant who has failed to file a defence. The suit proceeds ex parte, that is in the absence of the other party, the defendant. I therefore cannot fault the respondent or the trial court for proceeding to hear the suit in the absence of the applicant. That being the position of the law on that point, it automatically follows that there was no obligation on the court or on the respondent to notify the applicant that the suit had been transferred to another court either.

- The plaintiff does not obtain an ex parte judgment merely on account of the defendant failing to file a defence but only obtains an ex parte order which allows him or her to proceed ex parte

Abendego Absolom Ongom Vs. Amos Kaheru.

Whether because the defendant has not come to court to lead evidence to contradict the plaintiff's case therefore remedies may be granted as prayed?

Held: Where a defendant does not appear, having filed a Written Statement of Defence and the trial proceeds ex parte, remedies cannot be granted to the plaintiff just as prayed unless they are sufficiently supported by the pleadings.

- The application for an ex parte order may be made in writing by formal letter or other standard form or may be informally made before court when the matter comes up for mention
- Once the matter is fixed for hearing the plaintiff must file a scheduling memorandum or schedule in court, must lead evidence through the relevant witnesses, must make appropriate submissions and the court will enter judgment accordingly in favour of the plaintiff, if such plaintiff has proved his or her case

- An ex parte judgment may also be entered pursuant to proceedings under O.9r20[1]. Under the said Rule the plaintiff must prove evidence of service of summons [hearing notices] upon the defendant on the basis of which the application is made for an ex parte Order that allows the plaintiff to proceed with the hearing.
- Where the court is satisfied that there was effective service may grant the ex parte order and the plaintiff may proceed with the hearing



Fred Hereri. v AG

Court found that the plaintiff presented a claim against the defendant for special, general and extemporary damages, for wrongful arrest and false imprisonment. Summons to enter appearance were issued on 9th January, 1996. The defendant filed a memorandum of appearance on 16th April, 1996. He then kept quiet. On 18th November, 1999, the case was called for scheduling conference. On that day, the plaintiff and his counsel appeared in court. There was evidence of proper service to both parties. A hearing date was fixed for 27th January, 2000. The defendant was duly served with a hearing notice for that date. Again the defendant did not appear in court and no reason was given. It so happened coincidentally, that the trial judge was also on leave. The hearing of the case was, therefore, adjourned to 28th February, 2000. The defendant was again duly served but did not appear again.

In these circumstances, Court ordered that the case proceed *ex-parte* in accordance with Order 9 rule 20(a) of the Civil Procedure Rules.

Departed Asians Property Custodian Board v Issa Bukenya (SCCA No.18/91)(unreported). The appellant in this case was the defendant and an *ex parte* judgement was entered against it. It applied to set aside the judgment and the application was dismissed on the grounds that no good or substantial reasons had been given to justify setting aside the decree. On appeal it was held that for an application to set aside an *ex parte* decree to succeed, the applicant must show that summons had not been duly served or was prevented by sufficient cause from appearing at the date fixed for hearing.

Judgment of admission

- Judgment on admission is provided for under O.13 r6 of the CPR. It connotes the type of judgment that may be entered in respect of the entire

claim or part thereof where the defendant admits a claim or part of the claim.

Ziraguma Emmanuel v Nkoyoyo

Court found that in the instant case, the nomination and election of Rev. Canon David Sebuhinja as Bishop-Elect is not being contested. In his own words Counsel for the defendant submitted that the election of Sebuhinja is not an issue. Similarly, the fact that the Bishop- Elect is entitled to consecration and enthronement is not in issue. What is in issue is why he



has not been consecrated and enthroned and when he will be consecrated and enthroned. Thus court found it just upon the said application, to make an order that Rev. Canon David Sebuhinja was duly nominated and elected as Bishop-Elect of the diocese of Muhabura and that he was entitled to consecration and enthronement. Those orders are based on the above admissions and they do not dispose of the issues framed for determination.

- From the wording of O.13r6 a judgment on admission may be entered under the following circumstances
- 1. The admission must be made of facts that relate to the claim or part thereof.
- 2. The admission must be by a parte to the suit or even any lawful agent of such a parte
e.g. a director making an admission on behalf of a company.

Agasa mayindi v AG

The Attorney General though served, did not file a defence. The applicant applied for default judgement or in the alternative judgement on admission basing on an admission made by the IGG.

HELD; The application in the alternative is utterly misconceived. Surely the admission referred to must be the admission of one of the parties to the suit. The inspector General of Government is not a party to this suit. How then can his alleged admission bind the Attorney General? I find such proposition to be idle and utterly nonsensical. That said judgment in default will be entered as prayed with costs.

- 3. Admission may be in form of pleadings or otherwise.

Eriaza Magala Vs Rev. Kefa Sempangi (1994) 1 KLR 93

Held: Under O.11 r6 (now O 13 r11) court has wide discretion to give judgment for relief prayed for by a party if the opposite party admits it. *Admission can be by pleading or a letter*, the essential point to note is that for a judgment to be given the

admission to which such judgment can be claimed must be unequivocal. In the instant case the defendants in their WSD denied the plaintiff's claim and the letter referred to did not admit liability clearly or unequivocally or at all. The application was misconceived and must be rejected.

4. The admission must be unambiguous or precise and static.
 - The judgment may be entered at any stage where the admission is made without the necessity of completing the hearing

Juliet Kalema v William Kalema



HELD; Per BYAMUGISHA, JA;

The object of Order 13 r11, is to enable a party to obtain judgement speedily at least to the extent of the admissions. Such admissions can be made on the pleadings or verbally because of the use of the word "otherwise" in the rule. The rule is for the benefit of both parties. However, before the *court can act under the rule to enter judgement, the admissions of the claim must be clear and unambiguous*. In a case involving complicated questions, which cannot be disposed of conveniently, the court should decline to exercise its discretion against the party who is seeking judgement on admissions. The power given to court to enter judgement on admissions is a discretionary one that must be exercised judiciously and circumspectly.

The alleged admissions by the appellant were not as clear cut and unambiguous to entitle the respondents to judgment. She did not admit that she was intermeddling in the affairs of the estate. She did not admit that she had committed fraud or that she was trespassing on the suit property. She did not admit that her occupation of the house is wasteful of the estate, unjustified, unlawful and unreasonable. The learned judge, with respect failed, to exercise her discretionary powers judiciously in this matter when she entered judgement in favour of the respondents. Accordingly ground six would succeed.

Central Electrical International v Eastern Builders and Engineers

This was an application for judgment on admission. An admission of indebtedness to the Applicant/Plaintiff had been made by the Defendant/Respondent in its pleadings in another case vide their plaint in H.C.C.S. No. 856 of 2005.

**Hel
d;**

The rule enables either party at any stage of the suit to apply for judgment on the admission which have been made by the other party. However, a

judgment on admission is not a matter of

right but at the discretion of the Court. If a case involves questions which cannot be conveniently disposed of on a motion under this rule, the Court may in the exercise of its discretion, refuse the motion.

In Wright Kirke Vs North (1895) Ch 747 it was stated at page 50:-

“The obtaining of such an order was not a matter of right, but was a matter for the exercise of a judicial discretion regard being had to all the circumstances of the case”



The admission can be in pleadings or otherwise. But such admission must be clear and unequivocal. See Eriaza Magala Vs Rev. Kefa Sempangi (1994) 1 KLRAR 93

That the admission upon which judgment can be based should be made either on the pleading or otherwise in the suit before court.

In the instant case the admissions upon which the Applicant based its application were not made at any stage of this suit but made in 2005 before the filing of this suit and in another suit. Neither the pleadings or any of the documents filed by any of the parties in this suit shows an admission of the Applicant's claim by the Respondent. The application therefore fails

Consent judgment and compromising a suit.

- A consent judgment arises where parties to a suit agree to settle their disputes on such terms and conditions as set out by themselves. A consent judgment as a matter of law constitutes a fresh agreement between the parties which overrides any pleadings or admissions therein.

Attorney General and Uganda Land Commission v James Mark Kamoga

It is well settled, that unlike judgments in uncontested cases, consent judgments are treated as fresh agreements, and may only be interfered with on limited grounds such as illegality, fraud or mistake.

Wasike v Wamboko[1976–1985] 1 EA 625

The respondent filed a suit in a Resident Magistrate's court seeking possession of a plot of land which was occupied by the appellant. The appellant, on the other hand, claimed that she had entered into an agreement with the respondent for the purchase of the land and that the respondent had neglected to transfer the land to her. A consent judgment was entered the terms of which were that the parties were to enter into a fresh sale agreement, the respondent was to transfer the land to the appellant who would pay the new agreed price and if she failed to pay, she would

vacate the land.

The appellant appealed against the consent judgment arguing, among other things, that she had not consented to it.

Held:

It is now settled law that a consent judgment or order has contractual effect and can only be set aside on grounds which would justify setting a contract aside, or if certain conditions remain to be fulfilled, which are not carried out.



That a consent judgment or order, whether final or interlocutory, deliberately made with full knowledge, with the full consent, of the parties or advocates on both sides, is regarded as having a full binding contractual effect on which the other party is perfectly entitled to insist and normally it cannot be set aside or varied; if, however, a consent judgment or order is to be set aside or varied, it can really only be set aside or varied on grounds which would justify the setting aside or variation of a contract entered into with full knowledge of the material matters by legally competent persons, such as fraud, mistake, misrepresentation, collusion, duress, undue influence, agreement contrary to the policy of the court, lack of capacity of parties, misapprehension or ignorance of material facts, or if certain conditions remain to be fulfilled which are not carried out;

- There are two ways in which a consent judgment may be recorded
- 1. Where the parties appear before a presiding judge or magistrate to read out the terms agreed upon which are recorded by a judicial officer and judgment entered upon such terms.
- 2. Where parties execute a formal written consent and present it for endorsement by a court and once it is signed and sealed by the court it constitutes a binding judgment

In Betuco (U) Ltd And Another v Barclays Bank Of Uganda Ltd & 3 Others HCT-00- CC-MA-0243-2009

The applicants applied to set aside the Consent Judgment on grounds that the Directors of the Applicants signed the Consent Judgment under a mistaken and/or misrepresentation as to the true contents of the judgment and that the mediation proceedings were so fundamentally defective that they did not bind the Applicants. Court quoted Hon Justice Kitumba, JA in *Peter Muliira Vs Mitchell Cotts Ltd CACA No. 15 of 2002* where he stated:-

“The law regarding consent judgment is that parties to a Civil Suit are free to consent to a judgment. They may do so orally before a judge who then records the consent or they may do so in writing and affix their signatures on the consent. In that case still the Court has to sign that judgment. A consent judgment may not be set aside except for fraud, collusion or for ignorance of material facts.”

Court thus **held that** When any agreement is reached the rules provide that it shall be signed by the parties and filed with the Registrar for endorsement as a Consent Judgment . A consent judgment once recorded or endorsed by the Court it becomes the judgment of the Court and binding upon the parties. It is an agreement

or contract between the parties. As such it can only be set aside for a reason which would enable the court to set aside or rescind on an agreement.

In, **British American Tobacco (U) Ltd v Mwijakubi & 4 Ors (CIVIL APPEAL NO 01 OF 2012) [2013] UGSC 13**; there was an appeal before the Court of Appeal and the parties entered into a compromise agreement before the ruling was made. However, the agreement was not signed nor sealed by the registrar of court by the time the ruling was made. It was held that there was no valid compromise settlement and consent order because it was not signed.



- A consent judgment may be entered for purposes of a compromise of the suit, settling only parts of the claim and the rest of the claims being subjected to further litigation O.26

Bank of Baroda v Ataco Freight Services.

Held; The purported compromise did not adjudicate on whether the appellant was liable to the respondent as claimed. Instead what was recorded as a compromise related to issues not connected with those in the suit and cannot compromise the suit. Therefore there was nothing to bar the suit from proceeding.

- A consent judgment is binding not only between the parties thereto but between the third parties if the terms therein extends to them subject of their right to challenge that consent

George William katelega v commissioner land registration

Counsel for the Applicant submitted that *Civil Suit No. 85 of 2005* was settled by consent agreement of the parties thereto, and that the Applicant was not a party to the said consent agreement, hence cannot be bound by the judgment. Counsel further submitted that the consent judgment binds only parties privy to it and cannot be a judgment *in rem*.

Held; Even if the judgment was as a result of the parties' consent agreement, still the Applicant would be bound by the resultant *consent judgment for as long as it received the sanction of the court*; for then it would be regarded as judgment of the court. The judgment in *Civil Suit No. 85 of 2005* amounted to a judgment *in rem* because it determined the rights of persons in respect of the suit land and as a consequence determined the status of the same suit land by cancelling and revoking all titles created therefrom including that of the Applicant.

The proprietary status of the suit land was thus affected as were all persons interested in the suit land regardless of whether they were parties to the suit or not.

That a judgment *in rem* binds all person even when they are not parties to the proceedings and are stopped from averring that the status of persons or things, or the right to title to property are other than what the court has by its judgment declared it to be. Similarly, in the instant case, since the judgment in *Civil Suit No. 85 of 2005* amounted to a judgment *in rem*, logically it was binding as against all

parties to the suit and third parties, including the Applicant, and conclusive as against the whole world that the entities ordered as affected by order of court were so entitled or disentitled, as the case may be, regardless of whether they were parties to the suit or not.

SETTING ASIDE OF JUDGMENTS AND DECREES



Effect of judgment

- Where a judgment is passed against a party to the suit, that judgment is binding on such a party and any other party to whom it relates unless and until set aside, reversed or otherwise varied

George William Katerega v Commissioner Land Registration

Held; That a judgment *in rem* binds all person even when they are not parties to the proceedings and are stopped from averring that the status of persons or things, or the right to title to property are other than what the court has by its judgment declared it to be

- A judgment of a court however irregular it may be is binding and enforceable unless any party aggrieved with it exercises a right to challenge it by seeking any of the cost judgment reliefs

In **Hamutenya v Hamutenya**, it was held; An order of a court of law stands until set aside by a court of competent jurisdiction. Until that is done the court order must be obeyed even if it may be wrong

Arim Felix v Stanbic Bank held that that the respondent had a duty and obligation to obey a court order. It was not open to him to disregard it whether or not it contained errors minor or major. It *cited the case of Housing Finance Bank Ltd and Another vs Edward Musisi Court of Appeal (Miscellaneous Application No. 158 of 2010)* for the position that a party who knows an order whether null and void, regular or irregular cannot be permitted to disobey it

- A party aggrieved with the judgment is under an obligation either to comply with it or seek to set it aside in appropriate proceedings

Kahumbu v National Bank of Kenya 2003) 2 EA 475

Held – A court order is valid and binding unless and until it is appealed against, amended or set aside.

Setting aside of judgments and decrees under o.9r12

- O.9 r12 empowers court that has entered judgment to pass a decree, pursuant to any of the pre-ceding rules to the order or the judgment **in an** uncontested matter under O.50 to set aside such a judgment or otherwise

vary the same on such terms and conditions as the court may deem fit

- Under O.9 r12 whereas the marginal note suggests that setting aside is restricted to ex parte judgments the rule itself provides that the judgments capable of being set aside thereunder includes a default judgment under O.9 r6-7 an interlocutory judgement under O.9 r8(1) and an ex parte judgment under O.9 r8[2]

DAPCB v Uganda Blanket Manufacturers [1973] LTD (1982) HCB 119



- **Held;** *Rule 9 of Order 9 has wider application than rule 27 thereof. Although the marginal notes to it referred on ex parte judgment, it empowers a court to set aside any judgment passed in pursuance of any of the preceding rules of that order whether judgment was ex parte or not.* Similarly the courts discretion is unlimited as to reasons for setting aside a judgment.

Tweheyo Edison v Barurengyera Kansiime

Held; The rule cited above bestows on court wide discretion to set aside *ex parte* judgment, but in doing so, the court must be satisfied that to do so would meet the ends of justice given the circumstance of the case

- The Rule also extends to judgments entered by the registrar in un-contested cases under O.50

Ladak Abdulla Mohamed Hussein v Griffiths Isingoma Kakiiza

Held; Order 9 r.9 (now O.9 R12) is not restricted to setting aside *ex parte* judgments but covers consent judgment entered by the registrar. It gives the court unfettered discretion to set aside or vary such judgments upon such terms as may be just.

- The Rule and remedy may be invoked by any person who is aggrieved by the judgment or decree including a third party

Ladak Abdulla Mohamed Hussein v Griffiths Isingoma Kakiiza

HELD; The rule is not restricted to parties to the Suit but includes any person who has a direct interest in the matter, who has been injuriously affected.

- The Applicant must however be legally aggrieved in the sense that the judgment or decree affects his or her legal or equitable interest in the subject matter of the suit.

Proline Soccer Academy V Lawrence Mulindwa and Ors.

Held; For there to be an aggrieved person means that the matter must directly affect the applicant in some way, however small.

- O.9 R12 does not define the grounds upon which a judgment can be set

aside implying that it confers upon the court unfettered discretion to either allow or disallow the application.

The Cooperative Bank Ltd (In Liquidation) Vs. Amos Mugisa

Held; The decision under O.9 rule 12 CPR rests entirely upon the discretion of the court.

In the case of **Mbogo and another –Vs- Shah** [1968] EA 93 (CA). It was held that order 9 rule 12 gives the High Court an unfettered discretion to set aside or vary an *ex parte* Judgment



The reason for such a discretion appears to have been well articulated in the case of **Emiru Angose V Jas Projects Ltd** quoting **Henry Kawalya -Vs- J. Kinyakwanzi** [1975] HCB 372. Where Ssekandi Ag. J (as he then was) held; “An *ex parte* Judgment obtained by default of defence is by its nature not a Judgment on merit and is only entered because the party concerned failed to comply with certain requirements of the law. The Court has power to dissolve such Judgment which is not pronounced on the merits of the case or by consent but entered especially on failure to follow procedural requirement of the law”.

Jessy Technical Services Ltd & Anor v Ajay Industrial Corporation Ltd & Anor

Held; Rule 12 gives the court wide discretion to set aside a judgement in default of filing a defence. Such a judgement is not on the merits and is based on the failure to follow a procedural requirement of the law.

- The applicant must never the less demonstrate by affidavit evidence or otherwise that there was sufficient cause that prevented him or her from entering appearance which led to the judgment being entered against him or her in their absence.

In Tweheyo Edison v Barurengyera Kansiime

Held; The rule cited above bestows on court wide discretion to set aside *ex parte* judgment, but in doing so, the court must be satisfied that to do so would meet the ends of justice given the circumstance of the case.

The circumstances that warrant setting aside an *ex parte* judgment are similar to those under **Order 9 r.27 CPR**. Firstly, court will usually set aside the *ex parte* judgment where it is proved that there has been no proper service. Secondly, the defendant must demonstrate; not only that he or she was prevented by sufficient cause from filing a defence within the requisite period, but also that there is merit in the defence to the case.

- The applicant may therefore prove that there was no service of summons and pleadings or such service was ineffective and not in compliance with the law

Jessy Technical Services Ltd & Anor v Ajay Industrial Corporation Ltd & Anor; Court set aside an *ex parte* judgment having found that there was no proper service on the second defendant, as service is a fundamental requirement before

any order may be made against a defendant

In **Emiru Angose V Jas Projects Ltd** court set aside an ex parte judgment after it was proved that there was no effective service summons on the applicant. That service is to be effected on the defendant in person or an agent empowered to accept service. In that case service on the receptionist was not service on a recognised agent.



- The applicants must also demonstrate to court that they have a plausible defense or claim that merits adjudication in a full trial

In **Tweheyo Edison v Barurengyera Kansiime**

Held; The defendant must demonstrate; not only that he or she was prevented by sufficient cause from filing a defence within the requisite period, but also that there is merit in the defence to the case.

Lebel EA ltd v EF Lutwama

Held; It is settled law that in deciding an application to set - aside an ex-parte judgment the court should consider, inter alia, the nature or subject matter of the suit and whether the applicant has a *prima facie* defence to the suit

Patel v Cargo Handling Services (1974) EA 75

Held; the court will not usually set aside the judgment unless it is satisfied that there is a defence on the merits. In this respect defence on the merits does not mean, in my view, a defence that must succeed, it means “a triable issue” that is an issue which raises a *prima facie* defence and which should go to trial for adjudication.

- In the determination of the application the court normally considers the conduct of the applicant before and after judgment

Patel v EA Cargo Handling Services Ltd[1974] 1 EA 75

Held; There are no limits or restrictions on the judge’s discretion except that if he does vary the judgment he does so on such terms as may be just. Court agreed with the principle set out in *Mbogo v. Shah*, [1968] E.A. 93 that before the court grants an application under this rule, the court must first be satisfied that in light of all the facts and circumstances both prior and subsequent and of the respective merits of the parties, it would be just and reasonable to set aside or vary the judgment, if necessary, upon terms to be imposed.

Mbogo Vs Shah: In this case counsel refused to accept service and then service was effected by advertisement. No appearance was entered and no defence was filed. Judgment was entered and the defendant sought to set it aside. **Held;** That

O.9 r 9[12] bestowed upon court a wide discretion but the judgment could not be set aside because the applicant had deliberately sought to obstruct and delay the proceedings. The Judge had set himself the test for exercise of jurisdiction in the circumstances.

The Test: **Held:** The discretion is intended to be exercised to avoid injustice or hardship resulting from accident, inadvertent or excusable mistake or error but is not designed to assist



a person who had deliberately sought whether by evasion to obstruct or delay the cause of justice

In exams before proceeding under O.9 r12 you must first know the type of judgment you have. there are two ex parte judgements that can be set aside in 3 different rules

THE TRIAL AND PRE TRIAL PROCEDURES

Cause listing of cases and service of hearing notices.

- The practice in the High court and superior courts is that a list of causes to be heard on a particular day are listed and the judge named.
- The issue that normally arises is whether an uncauselisted matter can nevertheless be heard and if so how does court proceed.

In **Dick Kabali V Rebecca Mawanda and Anor (unreported), Kibuuka Musoke** J held that a matter that is not cause listed cannot be heard and if it is heard, this should expressly be noted on the record of proceedings by the presiding officer.

Scheduling conference, scheduling memorandum and framing of issues

- The scheduling conference is provided for in O.12 of the Rules and signifies the procedure where parties agree to a particular facts, stating in brief their respective cases, set out issue for determination by the court and the mode of trial that they intend to adopt
- The purpose of scheduling conference is therefore to iron out the matters in controversy so that the issue the court is invited to determine are clear to all the parties

Abdu Katuntu v AG and ors; Where the Applicant's Counsel was requesting the Court to rephrase an issue yet he had fully participated in the Scheduling Conference where both parties ascertained the points of agreement and the issues for determination by the Court.

Held;

It is common knowledge that the rationale for scheduling is to agree and narrow down the issues for resolution by the Court. This is provided for under the Rule 53 of the Court's Rules (EACJ). For that reason, and in fact in the absence of good cause, the Applicant cannot be heard to say that during the Scheduling Conference, the issue thus framed did not arise from his pleadings.

- For all civil suits unless settled by consent, it is a mandatory requirement to hold a scheduling conference before the hearing of the suit.

Tororo cement Co ltd v Frokina international

J Tsekoko on the rationale on scheduling conference.



“During the hearing of this appeal, we were informed from the bar by counsel, that prior to the hearing of the case, no scheduling conference took place in the High Court. Under the new **Order XB of the CP Rules**, *the holding of a scheduling conference in civil cases is mandatory*. See Rule 1(1) thereof.

The principal objective of the scheduling conference is to enable court to assist parties to dispose of cases expeditiously by sorting out points of agreement and disagreement or assessing the possibility of mediation, arbitration and other forms of settling the suit. After a scheduling Conference, and where it is necessary, interlocutory applications can then be made and be disposed of before the suit is fixed for hearing. In that way the progress of the suit is managed systematically. In this case, it is my view that the point raised by the present proceedings should have been properly raised and dealt with during a scheduling conference or soon thereafter. One hopes that the holding of scheduling conference will be a regular feature in the trial of civil cases by all trial courts.”

- The scheduling conference is however unnecessary where the parties enter into a consent or where a preliminary point of law is raised and is capable of disposing of the entire suit;

Peter Mulira v Mitchel Cotts Ltd (CIVIL APPEAL NO. 15 OF 2002)

There was no scheduling conference

The judge **held**; While he appreciated that no scheduling conference was held as required by law and no issues were framed this did not prejudice the appellant in any way. He freely consented to the judgment whose terms were, according to the record, carefully discussed by the parties

- The essence of a scheduling conference is to limit the dispute within appropriate confines and set out agreed and disputed documents some of which are tendered or exhibited at that stage.

Stanbic Bank Uganda Ltd v Uganda Crocs Limited (Civil Appeal No.4 of 2004)

Per Tsekooko; The scheduling conference was introduced by the new Order XB of the Civil Procedure Rules. Because of Rule 1 (1) of that Order, a trial Court is expected to hold a scheduling conference to sort out points of agreement and disagreement, the possibility of mediation, arbitration and any other form of settlement. Because the central issue in this case is reconciliation of figures, I

expected that at a scheduling conference stage, parties in this case should have produced properly audited accounts of the respondents as part of expert evidence and try to narrow down points of disagreement. That is the stage when proper issues would emerge and parties and the court would settle the real issues to be tried and determined.

Administrator General v Bwanika and ors

Counsel contended that Documents merely agreed upon during the scheduling conference of a trial are not themselves admissions within the meaning of section 57 of the Evidence Act.



They are documents, which the parties have agreed to rely on during the trial. It is still left to the parties to adduce evidence on such documents because they have not been admitted in evidence as exhibits

Held; that documents which are admitted in a scheduling conference will thereafter become part of the record and it is only their content that can be challenged.

Per Tsekooko; The purpose of a scheduling conference is to enable parties to agree on non-contentious evidence such as facts and documents. The agreed facts and documents thereafter become part of the evidence on record so that they are evaluated along with the rest of the evidence before judgment is given. Indeed in as much as they are admitted without contest, the contents of such admitted documents can be treated as truth, unless those contents intrinsically point to the contrary, and if they are relevant to any issue, their admission disposes of that issue because the need for its proof or disproof would have been disposed of by the fact of admission.

In **Kakooza John Baptist v Electoral Commission**; the trial court and the court of appeal had held that the photocopies of the DR Forms produced by the appellant had no evidential value. These copies had been admitted at the scheduling conference in the High Court by consent of both parties.

On appeal; Supreme **Court held;** that the courts below misdirected themselves in law and fact in holding that the photocopies of the DR Forms produced by the appellant had no evidential value. That the most appropriate time for the court to require a party to prove an admitted fact otherwise than by such admission, would be at the pre-hearing scheduling conference, though the court may exercise the discretion later in the proceedings. Obviously, however, the requirement must be communicated in order to give opportunity to the affected party to provide proof other than the admission. There is no indication anywhere in the record of proceedings that the trial court communicated such requirement to the petitioner/appellant.

That the fact that the respondents through their counsel at the pre-hearing scheduling conference admitted the photocopies, the absence of a formal notice to produce the original forms was not sufficient ground for disregarding their photocopies.

- **Amendment of issues by court** Under O.13 r. 5(1) empowers court to reframe the issues where necessary
- Whereas the parties may set out issues for determination by the court, the court is not bound by such issues and may modify or reframe the issues provided it gives an opportunity to the parties to address it on the modified issues.

In *Oriental Insurance Brokers Ltd V Transocean Ltd CA No. 55/95*, it was held that where a court amends issues which the parties had agreed upon, it is necessary to give the parties the right to adduce further evidence or address the court on the amended issues. That the trial judge erred in introducing the second and third issues belatedly while writing his judgment without consulting the parties or their advocates



In Darlington Sakwa AND Anor. V Electoral Commission & 44 Others Constitutional Petition No. 08 of 2006 it was held that, where the parties had closed pleadings and submitted on agreed issues, the court, still, has to consult the parties and give them a hearing, if they so wish, as held in the case of **Oriental Insurance Brokers Ltd vs. Transocean (U) Ltd Civil Appeal No. 55/95 page 197 – 227 (supra)**. It is not disputed that the trial proceeds on issues which are in dispute. The parties must know the issues which require proof so that they adduce the required evidence.

Kasirye Byaruhanga and Co Advocates v Mugerwa Pius

The issue was that *the learned trial judge erred in law and fact, and denied the appellant a fair trial, when he wrongly omitted the mandatory Mediation and Scheduling Conference, ordered the filing of documents, “Witness Statements” and “Skeleton Arguments”, and then fixed a date for delivery of his “Judgment”*. Counsel for the respondent conceded that the proceedings were irregular and could not have afforded the applicant a fair hearing

Held

That the procedure denied the appellant a fair trial, it was invalid and no order made following the procedure should be allowed to see the light of any day. It follows that all orders of the court made on the 15th September 2008 in the said Miscellaneous Application are invalid and ought to be set aside.

Per Twinomujuni; It was, to say, the least, an extraordinary court session, the likes of which I have not come across in the common law legal systems.

- There are two forms of conducting a scheduling conference namely;
 - a. A scheduling conference conducted in court
 - b. By filing a joint scheduling memorandum

Note; In the supreme court conferencing is referred to as pre-hearing and it is while in the commercial division conferencing is pre written in the standard conferencing memorandum which is a drafted document

A joint scheduling memorandum is required as a matter of facts to be accompanied by the respective trial bundles of each of the parties

Note conferencing is not done in suits under O.36 whereas where the application is allowed and you are allowed to proceed in an ordinary way the mediation and

conferencing is done.

Preliminary Objections

See O.6 r 16 & 27,28,29, O.7 r 11,O.13r.2 Article 126 (2)(e),



- As a general rule, when pleadings disclose a case which a court is satisfied will not succeed, court should strike it out or dismiss it altogether and put a summary end to unnecessary litigation and to save court's time and costs involved in the litigation.
- This may be on court's own initiative or following an application by any party to the proceedings.
- These applications are commonly referred to as preliminary objections and they may be formal or informal.

Eng. Yashwant Sidpra V Sam Ngude Odaka

Held; A preliminary objection (some times popularly referred to as a "PO" at the bar) at common law is in substance an "*objection in point of law*".

Time within which to raise a preliminary objection.

As the word preliminary suggests, such objections should be raised at the commencement of proceedings as it is proper practice to address court on any irregularity that ought to be cured before the hearing.

Tororo Cement Co. Ltd V Frokina International Ltd SCCA No.2 of 2001 where Tsekooko JSC held that after a scheduling conference and if it is necessary, interlocutory applications can then be made and disposed of before the suit is fixed for hearing. In that way, the progress of the suit is managed systematically. The objection raised in this case would have been properly raised and dealt with during the scheduling conference or soon thereafter.

Preliminary Objection on absence of a cause of action

Tororo Cement Co. Ltd V Frokina International Ltd SCCA No.2 of 2001 where Tsekooko JSC ; That whether a plaint does or does not disclose a cause of action is a matter of law which can be raised as a preliminary point at the commencement of the hearing of the action even if the point hadn't been pleaded in a WSD. That it is however good and proper practice to aver in the opposite party's pleadings that the pleadings of the other side are defective and that at the trial, a preliminary point of objection would be raised. However, failure to do so doesn't bar a party from raising the point.

- Whereas it is prudent to raise preliminary objections at the earliest possible

opportunity the case of *Makula International V Cardinal Nsubuga* suggests that an objection on points of law will be entertained once brought to court's attention even in the course of proceedings.

Ndaula Ronald v. Haji Nadduli Abdul, Election Petition No. 20 of 2006, where the Court of Appeal held, *inter alia*, that:



“On points of law, it is settled by the courts that illegality of an issue is a question of law which can be raised at any time or at any stage of the proceedings, with or without prior knowledge of the parties

- It has been said that not all objections constitute preliminary objections that can be entertained before commencement of the hearing of the suit.

Preliminary objection capable of disposing of the matter, A preliminary objection may be said to be a point of law or fact capable of disposing of the suit e.g. an objection on ground that the plaint discloses no cause of action or the suit is time bad.

LAW, J. A. of the East African Court of Appeal observed in Mukisa Biscuit Manufacturing Co. Ltd. v. West End Distributors Ltd. [1969] E. A. 696 at p. 700:

“So far as I am aware, preliminary objection consists of a point of law which has been pleaded, or which arises by clear implication out of pleadings, and which if argued as a preliminary point may dispose of the suit. Examples are an objection to the jurisdiction of the court, or a plea of limitation, or a submission that the parties are bound by the contract giving rise to the suit to refer the dispute to arbitration”

Then at p. 701 SIR CHARLES NEWBOLD, P. added:

A preliminary objection is in the nature of what used to be a demurrer. **It raises a pure point of law which is argued on the assumption that all the facts pleaded by the other side are correct. It cannot be raised if any fact has to be ascertained or if what is sought is the exercise of judicial discretion.** (Emphasis is supplied.)

The position in the Mukisa Biscuits case (supra) on preliminary objections was upheld with approval by The East African Court of Justice in the case of **James Katabazi and 21 Others V The Secretary General of The East African Community and The Attorney General of The Republic of Uganda** Reference No. 1 of 2007 and in

Point of law and fact; Generally where the parties raise issues of law and fact in the same suit, and court deems it fit to dispose of the issue of fact or law only, the court shall try those issues first and may postpone the other issues for settlement after the issues of fact have been determined.(**O.13 r 2**).

If in the opinion of court, the decision of such a point of law substantially disposes of the whole suit, or any distinct cause of action or ground of defence, set off, counter claim or reply therein, court may dismiss the suit. **O.6 r.28** See also striking out pleadings that are frivolous and vexatious under **O.6 r.29**

Eng. Yashwant Sidpra V Sam Ngude Odaka



Held; A preliminary objection should be made if the party so raising it is inconvenienced that when raised the objection so raised will dispose of the whole claim and thus save the parties expense and embarrassment in trying facts that will not determine the rights of the parties. Where an objection can be cured by the amendment with adequate provisions as to costs, then it is a more efficient use of the court's time that amendment be secured at the earliest opportunity.

Preliminary objection founded on ground of form.

O. 6r 16 and Article 126 (2)(e) of the constitution disallow technical preliminary objections in relation to pleadings founded on alleged want of form.

Preliminary objection only on undisputed facts

Generally, preliminary objections are decided on the basis of pleadings and facts not disputed, without the necessity of calling witnesses. In **Western Steamship Co. Ltd V Ambaral Sutherland Co. Ltd [1814] 2 K.B 55**, it was held that an order for a trial of preliminary point of law couldn't be made where there are facts in dispute and if made may be set aside.

In **Ismail Serugo V KCC & AG SCCA No.2/98 Oder JSC**, observed that “ the point of law must be one which can be decided fairly and squarely one way or the other on the facts agreed or not issue or the pleadings & not one which will arise if some fact or facts in issue should be proved.

Pan African Insurance Co. V Ug Airlines Corp & 2 others [1985]HCB 53, Robert V G.W Kasule & Anor [1987]HCB 62 & N.K Radia V Kalidas & Co. Ltd SCCA No. 10/94, it was held that where a preliminary objection raises issues which require to be proved by evidence to enable court to decide the matter, it should be overruled or dismissed and the suit be tried on the merits. The case was cited with approval in *A-G V Major General David Tinyefuza SSCA No.1/97*, Held that where a point of law would be sufficient to dispose of the case one way or the other, it would be decided by the court first calling evidence. [*Mugalula Mukiibi V Collin Hotel Ltd [1984] HCB 35*]

Katabazi and 21 Ors v v AG of Uganda

Held; the matter raised by Mr. Ngalo was not one which could be dealt with as a preliminary objection because it was not on point of law but one involving facts.

Whether or not the 1st Respondent had knowledge of what was happening to the complainants in Uganda can never ever be a point of law but one of fact to be proved by evidence and, therefore, it could not be a matter for a preliminary objection and hence the dismissal.

Court was of the decided view that grounds of preliminary objection advanced cannot be disposed off without ascertaining facts. These are not then matters for preliminary objection. So, they were dismissed.



Allen Nsibirwa V National Water & Sewerage Corp No. 811/92, [1995] KALR 4, Though limitation wasn't pleaded by the Defendants in the WSD, the defendant was entitled to raise it at any stage of the suit since it was a question of law[the other party cant claim that the defendant].

IGA V Makerere University [1972] EA 65 *Mustafa JA* observed at a plaint which is barred by limitation is a plaint barred by law. The limitation Act doesn't extinguish a suit or action itself but operates to bar the claim or remedy sought for and when a suit is time barred, the court cannot grant a remedy or relief. The plaint should be rejected under O.7 r.11 at any stage of the suit provided its rejected as whole'

ADJOURNMENTS- O.17: r, 1(i): The court in its discretion may, if sufficient cause is shown at any stage to the suit grant time to the parties or any of them and may from time to time adjourn the hearing of the suit; see Article 28 of the constitution.

Discretion of Court

Court has discretion but this discretion must be exercised in a judicial and reasonable manner.

Yahaya Kariisa v Attorney General, SCCA No. 7 of 1994 it was held:

"It is in the discretion of a trial court to allow or refuse an application for adjournment. It is settled law that the discretion must be exercised judiciously. The appellate court would normally not interfere with the exercise of the discretion unless it has not been exercised judiciously."

Mbogo v Shah (1968) E.A. 93 at 94. Cited with approval in *Obiga Kania v Electoral Commission*;

"A Court of Appeal should not interfere with the exercise of discretion of a judge unless it is satisfied that the judge in exercising his discretion has misdirected himself in some matter and as a result has arrived at a wrong decision, or unless it is manifest from the case as a whole that the judge has been clearly wrong in the exercise of his discretion and that as a result there has been misjustice

In **Mohindra Vs Mohindra**; When the suit came up for hearing before the court of 1st instance, the appellant asked for its adjournment on ground that he wished to

engage an advocate. He intimated that he wished to call no witness other than himself. The trial judge refused the application without reasons being stated. **Held:** That only on rarest occasions would the court of Appeal interfere with the discretion of the trial judge as to the adjournment of a trial. The Court of Appeal will only interfere where the judge's decision was such that justice could not result from the exercise of his discretion and he failed to see that such would be the effect of his decision.

Birumi Wilson v Akamba



Held; The Court of Appeal will interfere with the exercise of discretion of the trial Judge in refusing an adjournment if the result of his exercise of discretion in refusing the adjournment will occasion injustice. In the instant case counsel for the plaintiff applied for adjournment without specifically disclosing the purpose, his application being vague and half hearted and the trial Judge was justified in refusing the adjournment. Appeal dismissed with costs.

Rationale:

Justice requires that the parties be afforded an opportunity to get ready if they have genuine cause as to their unreadiness.

Existence of a justice cause:

Generally adjournments should not be refused unless they are intended to delay or abuse the process of court.

New matters arising: [a party may not be ready by reason of having been taken by surprise

Salongo Vs Nantegolola [1976] HCB 290: **Held:** That if a new matter arises at the trial which catches a party unawares, an adjournment if applied for by the party concerned to prepare his case to meet this new matter is allowable.

Other instances of surprise:

- If served with the pleadings as counsel enters court room an affidavit in reply with new matters necessitating time to respond.
- When a case is fixed on a short notice with inadequate time to prepare.
- When the witness with no fault with plaintiff or cause does not appear.
- When counsel withdraws in the middle of the proceedings.

Examples of Justified/Sufficient cause:

Illness of the Party:

Dick Vs Piller. On resumption of a part heard case, counsel for the defendant applied for a further adjournment on ground that the defendant was too ill to attend and that his evidence was too essential to the determination of the suit and without objection from the plaintiff's counsel the judge received a medical certificate to support counsel's statement and that the affidavit by the doctor could

be obtained that day. The judge rejected the application on grounds of inaccuracy of the contents of the medical certificate.

Held: That the Judge was not justified in his refusal to act upon the medical certificate and he exercised his discretion upon wrong principles in refusing to adjourn the further hearing of the case on such terms as he might have imposed for the plaintiff's protection. This was an error in law for which an appeal lay before the Court of Appeal.



NB, Held: An appeal lies only when there is an error of law otherwise whether or not to grant an adjournment is wholly with discretion of the judge.

Unexplained absence of a witness is no good cause.

Abdalla Habib Vs Hamdan Singh: When the plaintiff's case came up for hearing, his advocate applied for an adjournment on ground that his client who lived in Rwanda was for some unexplained reason absent. The defendant objected that his witness had come at the cost of 800= from a great distance and because the plaintiff had been dilatory. **Held:** That no sufficient cause had been shown for granting an adjournment and accordingly the application would be dismissed. There was no suggestion that the plaintiff had been taken by surprise or was unaware of the hearing date thus had not shown zeal in prosecuting his claim.

Adjournment causing delay:

In exercising its discretion justly, the court will consider the circumstances of the particular case and inter alia will convince itself on whether the blame is really the defendant's or if the blame is the plaintiff's solicitors and whether the plaintiff has an effective remedy against them.

Obiga Mario Kania v Electoral Commission, this was an election petition where the appellant asked for a number of adjournments which were granted several times, although not always for the length of time requested. However, on 4th June 2011 both the appellant's counsel failed to show up for court and the judge dismissed the petition

Held; Court noted that as the record indicates multiple adjournments were granted in this case at the request of the Appellant. While some reason was always offered by the appellant *or his counsel, the fact remains that adjournment after adjournment was requested on a matter that was statutorily required to be dealt with as quickly as possible.* While it is correct that any petitioner before court has a right to be heard (**Article 28 of the Constitution**); that right must be balanced with free and fair elections. The voters have a right to know, in a reasonable amount of time, the winner of the election and to have confidence that any dispute will be resolved quickly so that their elected member may represent them in Parliament. In this case, the appellant had the opportunity to present his case but, for whatever reasons, chose to continually ask for more time. The needs of the voters must win out and the grounds of appeal fail.

Tirwomwe Vs Kanyankole and Others: The Respondents filed a suit against the applicant. Attempts were made to fix a hearing date but one or the other of the respective counsel invariably raised an objection to the suggested date. Counsel sent a telegram to the Grade I Magistrate suggesting a different date and the respondent's counsel objected on grounds that he and his client had come from a considerably long distance. Adjournment was refused on appeal.



Held: That the magistrate had a discretionary power to grant an adjournment but only if sufficient cause was shown. The mere fact that the advocate would be grateful if an adjournment was granted could not constitute or be sufficient cause to grant the same. Counsel had delayed fixing a hearing date for approximately 2 years. The magistrate was fully justified in refusing an adjournment of what appeared to be a mere whim of counsel for the applicant.

Refusal Amounting to injustice:

Where refusal of an adjournment amounts to a denial of justice, an appellate court will interfere especially when there are factors relevant to the application.

In Nuru Kaaya v Crescent Transportation Ltd

The issue was that *"The learned trial judge wrongly exercised his discretion when he refused to grant an adjournment to enable the appellant call its witness and proceeded to immediately enter judgment for the respondent for UD\$ 58,396."*

Held; two principles govern the exercise of discretion. The first, is that when trial courts grant adjournments they (courts) exercise judicial discretion. The second, is that an appellate court will normally not interfere with the exercise of judicial discretion by a lower court unless the lower court failed to exercise the discretion judiciously.

Per Twinomujuni; "It is generally accepted that the essence of a trial is that both parties should be heard and except where a party is deliberately dragging the proceedings in a trial, such a party should not be denied opportunity to present its case. In the circumstances of this case, I am unable to hold that the learned trial judge exercised his discretion judiciously. The refusal to grant an adjournment to the appellant was totally unjustified and occasioned a serious miscarriage of justice. This court therefore, has a duty to interfere with the trial judges exercise of discretion to correct the injustice".

It is not a ground for an adjournment that opposite counsel has agreed.

Kayongo Vs Kampala Municipal Council: That the defence Counsel's consent is not a sufficient cause for adjournment to be allowed.

Application to the Registrar: In the absence of the judges, one can apply for

adjournment to the Registrar or where the Chief Magistrate is not present an application may be lodged with another magistrate G I who may grant the adjournment as a necessity but cannot hear the merits of the case.

Mode of application:

The application for the adjournment must be made orally at the hearing as early as possible when the case is called for hearing

In Fred Hereri v Attorney General



Held; that seeking adjournment by telephone, letter or a note does not constitute an appropriate method of applying for an adjournment. An adjournment could not be granted on the basis of such a note.

RE-INSTATEMENT OF SUITS; See O.9 r 22 & 23:

Under O.9 r 22 where the defendant only appears and the plaintiff does not appear when the suit is called for hearing, the court may dismiss the suit in those circumstances.

Re-instatement is provided for under O.9 r 23, which is to the effect where a suit is wholly or partly dismissed under O.9 r 22, the plaintiff is precluded from bringing a fresh suit in respect of the same cause of action. The plaintiff may apply to set aside the dismissal, however, there must be sufficient cause for non-appearance when the suit was called for hearing before court can order the setting aside.

Norah Nakirridde Namwandu Vs Hotel International Ltd (1987) HCB 85;

This was an application to re-instate the plaintiff's application for arrest and detention in civil prison. The application was dismissed because counsel did not appear in court on the hearing date. In the present application the applicant sought to set aside the dismissal and re-instate the application.

Held: that in considering whether there was sufficient cause, why counsel for the applicant did not appear in court on the date of the application was dismissed, the issue is whether such a party really intended to attend and did his best to attend. It was important for the litigant to show at length from the affidavit that it was clear that counsel was prevented by illness though he did his best to attend. The son of the applicant did in fact come to court and that showed diligence on the part of the applicant. Application to re-instate suit allowed.

The test of sufficient cause:

National Insurance Corporation Vs Mugenyi and Co. Advocates: This was an application challenging the dismissal of an application filed against the respondent which came up for hearing and was dismissed due to the absence of the applicant's advocate. An application by notice of motion to re-instate the suit was dismissed by **Akena J** on ground that such refusal did not constitute a miscarriage of justice. The respondent contended that the application was brought under O.19 r 20 which gave

court discretion to be exercised when there was sufficient cause and where there was a likely miscarriage of justice.

On appeal; Held; That the judge ought to have considered the issue of whether there was sufficient cause and not only necessarily or only the issue of whether a miscarriage of justice would be caused which was used on a pre conceived opinion that the suit was res-judicata. *“The main test for reinstatement of a suit was whether the applicant honestly intended to attend the hearing and did his best to do so. Two other tests were namely the nature of the case and whether there was a prima facie defence to that case.*



On the facts, the applicant's counsel intended to appear before court and prosecute the application to reinstate the suit.

Other Examples of sufficient cause

Stewards of Gospel Talents Limited V Nelson Onyango & 7 Others

Held; In an application for restoration of a dismissed suit under O.9 r.22, all the applicant needs to do is to satisfy court that there was sufficient cause for non-appearance, that is, that he had an honest intention to attend the hearing but failed to do so, and that he was diligent in applying.

The law does not offer a definition of what amounts to 'sufficient cause' but in Shabir Din vs Ram Parkash Anand (1955) 22 EACA 48, it was held that a mistake by the plaintiff's counsel though negligent, may be accepted. In Nuru Nakiridde vs Hotel International [1987] HCB 85, sickness of Counsel was accepted to constitute a just cause.

Negligence of Counsel:

M/s United Office Equipment and Stationery Supply E.A Vs Uganda Bookshop Ltd. This was an application under O.9 r 18 and O.52 r 1CPR for setting aside an order dismissing the suit and re-instating it. In the original suit neither counsel for the plaintiff nor the plaintiff appeared on the date of hearing. Counsel for the defendant appeared and the suit was dismissed under O.9 r 22 CPR. Counsel said he had gone to Fort Portal and was unable to return due to political instability. It was contended that the affidavit did not disclose reasons for counsel's non appearance and this was due to counsel's negligence and not political instability.

Held; The failure by counsel for the plaintiff to appear was due to the negligence of counsel, although sufficient cause may be as absurd as when counsel is negligent. In the present case counsel was not diligent and did not make the application for re-instatement *until after a year*. Although some payment to the tune of 113,100= was made in the circumstances, the provisions of O.9 r 18(i) which requires the

applicant to satisfy court that there was sufficient cause for non-appearance was never satisfied.

In **Arthur Busingye v Gianluigi Grassi**; the applicant's explanation for their failure to appear in court is that the clerk to their lawyer failed to retrieve copies of the notice of motion and so they were unaware of the hearing date.

Held;

The Supreme Court of Uganda in ***Nicholas Roussos vs Gulamhussein Habib Virani & Another, Civil Appeal No.9 of 1993*** (unreported), held that *some of the grounds or*



*circumstances which may amount to sufficient cause include mistake by an advocate though negligent, ignorance of procedure by an unrepresented defendant and illness by a party. Similarly in the case of **Ms United Office Equipment & Stationary Supply EA vs Uganda Bookshop Ltd [1987] HCB 90** court held that failure by counsel for the plaintiff to appear was due to negligence of counsel, although sufficient cause may be as absurd as counsel's negligence.*

It is now a settled principle that mistake of counsel however reckless or negligent cannot be visited on the litigant. The applicants who had instructed lawyers to pursue their application cannot be condemned for not being vigilant in prosecuting their matters. Once a party instructs counsel, he assumes control over the case to conduct it throughout, the party cannot share the conduct of the case with his counsel. As such the applicants could not have been expected to follow up their case in court when they had instructed counsel to prosecute their application. The applicants have shown sufficient cause why they and their lawyers failed to appear in court on the day their application was dismissed. Dismissal set aside

In **Ggolooba Godfrey V Harriet Kizito** the Supreme Court held that the Court of Appeal came to the correct conclusion that the High Court erred in dismissing the application for reinstatement of the suit when the respondent's advocate had shown sufficient cause for not appearing because he was under the impression that the parties were still negotiating a settlement.

Inherent Jurisdiction of Court Under S.98 CPA

G.M. Mulindwa Vs J.J. Kisubika: Counsel for the applicant in the main suit deposed that when the suit was dismissed for non-appearance, he was attending the Supreme Court in another case. The applicant himself deposed that he attended court and found that the suit had just been dismissed. The court found as a fact that it was negligence of Counsel that led to the dismissal of the plaintiff's suit.

Held: that the professional negligence of counsel leading to the suit being dismissed under O.9 r 22, CPR where the applicant has engaged another counsel should not act as bar to justice. For purposes of justice, court was empowered under S. 98 CPA to set aside the dismissal.

NB: In some instances, judges on taking the view that if counsel is negligent, then the client should sue counsel to recover what he was seeking in the suit.

NB: The provision of S. 98, CPA having a wide application than O.9, r 23 CPR which merely refers to sufficient cause. However that section is only referred to where no remedy is available under the rules.

Application to be supported by a valid affidavit



Namazzi Vs Sibbo[1986] HCB 58: **Held:** That O.9 r 23 of CPR makes it mandatory or sufficient cause for absence to be shown and since the application had no valid supporting affidavit. It could not be entertained.

In **Road Master Cycles (U)Ltd V Tarlock Singh Sagh**

held as the applicant filed a defective affidavit defective application ought to be dismissed on the authority of *Teddy Namazzi v Anne Sibbo* [1986] HCB 58 where the affidavit like in this case was fatally defective for failing to indicate or bear the date on which the oath was taken contrary to the provisions of Section 8 of the *Oaths Act*

Procedure of application:

Applications are by notice of motion and this is provided for under O.52 r 1 CPR. **Namazzi Vs Sibbo**: That an application for reinstatement must state the provisions under which it was made. In this case the application was brought by notice motion but did not state the legal provisions under which it was made.

Time within which to apply for re-instatement

Girado Vs Alam & sons (U) Ltd: The suit was dismissed but the application was brought after 9 months.

Held: That though no sufficient cause was shown, the court had inherent jurisdiction to restore a suit dismissed for default. With respect to delay, the judge noted that there should be a limitation period to apply for a re-instatement and recommended a period of 30 days. see **M/s United Office Equipment and Stationery Supply E.A Vs Uganda Bookshop Ltd:** The application brought after 1 year was rejected.

Dismissal must be for non appearance; **Meray Vs Ghundhi & Co.** The applicant landlord filed two suits against his 8 tenants claiming possession and for other reliefs for both cases, he retained the same advocate. When the cases were set down for hearing, the applicant's advocate realized that it will clash with the criminal case he was engaged in at the Supreme Court. The Applicant's advocate applied for adjournment which was rejected. The applicant's advocate decided not to appear and the suit was dismissed for non appearance.

Held: That the applicant had both in fact and law entered 'appearance' and

therefore no order could be made under O.9 r.22. The dismissal of the suit though in itself regular need not have been effected under the terms of O.9 r 22 since the condition precedent namely non appearance of the plaintiff was not satisfactory. *That mere presence of a party in court at the hearing is sufficient to constitute appearance since it does not matter for what action he take on the appearance.* A plaintiff appearing and applying for an adjournment on the ground that his witnesses are not present will be deemed to have appeared.

F. Sekyana Sebugulu Vs D. Katunda;

Khan J. An order of dismissal could be treated under O.9 r 22 only if the plaintiff was not represented on the hearing date. In as much as plaintiff's counsel was present and appeared on



the plaintiff's behalf when the suit was dismissed, the plaintiff was then pursuant to order 3 r 1 legally present before court on that date. Accordingly the order of dismissal could not be made under O.9 r 22. Accordingly, the learned Judge's order setting aside under O.9 r 23 was passed without authority.

Notice of application must be served:

Sherali Banal Jaffer Vs Seggani and Another; Oteng J. That before a suit can be dismissed under O.9r 23 CPR; the defendant had to prove that the hearing notice had been properly served.

Other instances of Re-instatement: O.9 r 18 covers some limited circumstances of a reinstatement. The case must have been dismissed under rule 16 (failure to pay court fees) and r 17 (non appearance of both parties) i.e. plaintiff may either bring a fresh suit or apply for reinstatement of the suit. See Distinction between O.9 r.18 and O.9 r 23 is that a fresh suit may be commenced under r.18 but not under r.23. See wording of the rule

Kibugumu Patrick v Aisha Mulungi court interpreted rules 17 and 18; in this case the applicant applied for reinstatement of a suit which was dismissed under Order 17 rule 6(1) which under sub rule 2 allows the plaintiff to bring a fresh suit subject the law of limitation.

Held;

The wording of **Order 17 r.6 (2) (supra)** is permissive in nature in that the plaintiff "may", subject to the law of limitation, file a fresh suit. A plaintiff has a choice either to file a fresh suit, if his or her action is still within the time limited by law, or to pursue other non judicial lawful means to enforce his or her rights where the suit is caught up by the law of limitation.. The above situation is distinguishable from one under **Order 9 r.17 CPR** where a suit is dismissed for non appearance of the parties when the suit is called for hearing. It provides as follows;

"Where neither party appears when the suit is called on for hearing, the court may make an order that the suit be dismissed."

In the above latter scenario, the remedy for the affected plaintiff lies under **Order 9 r.18 (supra)** which permits the plaintiff, subject to the law of limitation, either to bring a fresh suit or to apply to court to set aside the dismissal and restore the suit

after demonstrating sufficient cause for the non appearance to the satisfaction of the court. In either of the options, however, it is clear that strictly observing the law of limitation still applies with equal force. In the event that the filing of a fresh suit or reinstating the suit is caught up by the law of limitation, the court would not grant any remedy because its hands are tied. There is no provision for reinstatement of a suit dismissed under Order 17 Rule 4. In the instant case, the application was found incompetent and dismissed.



INTERLOCUTORY REMEDIES:

Temporary Injunction:

An injunction is an order of court directed to a party to a suit restraining that party from doing a particular act until the final determination of the matter in controversy.

Courts of judicature generally have powers to grant temporary injunctions during the pendency of civil proceeding in all cases in which a court finds it just and reasonable and these are meant to last a duration of the hearing until final determination of the suit. These powers are available to a court exercising original jurisdiction.

Jurisdiction:

The jurisdiction for granting an injunction derives from section 38 of the Judicature Act Cap13.

Section 38(1): High Court is empowered to grant an injunction restraining any person from doing any act as may be specified by the court. See S. 207(5) MCA for jurisdiction of Magistrate's courts to grant any relief which they have powers to grant under the Act or any other written law.

Applicability of Civil Procedure Rules:

These rules are applicable to the High court and the Magistrate's courts as well as Grade I Magistrates.

Nakabago Vs Kyonga [1981] HCB

Held: That the civil procedure Rules are not applicable to magistrates' court presided over by Magistrates Grade II and Grade III. That the applicable rules are those set out in the 3rd schedule to the MCA.

Exercise of Court's Powers: 0.41

The application for the remedy for a temporary injunction is provided for under O.41 of the CPR "where in any suit it is proved by affidavit or otherwise

O.41(1) (a): That any property in dispute is in danger of being wasted, damaged or

alienated by any party to the suit, wrongfully sold in execution of a decree.

(b) That the change threaten or intends to remove or dispose of his property with the view to defraud his creditors, the court may grant a temporary injunction to restrain such alteration or such other order for the purpose of staying or preventing the wasting, damaging, alienation, sale, removal or disposition of the property as the court thinks fit until the disposal of the suit or until further orders.



In ***Re Kikoma Saw Millers Ltd: Held:*** That where property is in danger of being wasted, an injunction can issue.

Continuous breaches:

O.41 r 2 (1) deals with injunctions that is intended to restrain the repetition or continuance of breaches of contract.

Conditions for application:

For a party to apply for a temporary injunction there must be a main suit which must be proved by affidavit or otherwise.

Definition of a Suit:

Muwaira Nakana v Departed Asian Custodian Board. In which case court observed that the right to obtain an interlocutory injunction is not a cause of action, it is dependent upon there being a pre existing cause against the defendant, arising out of the invasion, actual threatened by him of legal or equitable right of the plaintiff for the enforcement of which the defendant is amenable to the jurisdiction of the court.

The right to obtain a temporary injunction is merely ancillary and incidental to the existing cause of action. The right to a temporary injunction order cannot exist in isolation but it is always incidental and dependent on the enforcement of the substantive right

A temporary injunction is a shield not a sword. It is an order given to restrain not to attack

Samuel Mayanja v URA.

In this case, there was a suit pending before a tribunal.

Held; The provisions of Order 41 Rules 1 and 2 of the Civil Procedure Rules deal with applications for temporary injunction as an interlocutory matter in a *pending proceeding before the court*. Clearly here there is no pending proceeding before this court. TAT No.22 of 2006 is pending before another tribunal of first instance in matters related to resolution of tax disputes. A suit pending before another court is not sufficient to trigger into play an order for a temporary injunction. Application dismissed.

Discretion of court

The relief of injunction is discretionally;

In **Alley Route Ltd v Uganda Development Bank,**

Held; the law relating to grant of a temporary injunction is that the granting of an interim injunction is exercise of judicial discretion. Court must exercise that discretion judicially.

Francis Kayanja v DTB U LTD

Held



The law is that the granting of a temporary injunction is a judicial discretion which court exercises judiciously upon considering the conditions below. First whether the applicant has shown a prima facie case with a probability of success. Secondly that the Applicant would suffer irreparable injury which would not adequately be compensated by an award of damages. Thirdly, if court is in doubt on any of the above two, it will decide the application on the balance of convenience

Purpose of Temporary Injunction: /Maintenance of status quo

It is to keep or maintain the status quo till the final determination of the issues in controversy.

Francis Kayanja v DTB U LTD, held; The prima purpose of a temporary injunction is to preserve the status quo pending the disposal of the main suit

Peace Isingoma v MGS international u ltd

Held; The prime purpose of a temporary injunction is to preserve the status quo until the questions to be investigated in the main suit are finally disposed of

In **P.K Sengendo v James Ndaula;**

Held; The main purpose of granting of a temporary injunction is to preserve the *status quo* pending the determination of the head suit. "*Status quo*" simply denotes the existing state of things existing before the particular point in time; and in determining whether or not to maintain the *status quo* other surrounding circumstances have to be taken into account

Per Justice Bashaija; The question thus becomes; what *status quo* ought to be maintained?

In my view, *status quo* being the existing state of things existing before a particular point in time, the point in time that ought to be taken into account in the instant matter should be as at the time of filing the application. It is presumed that it is when the acts complained of by the Applicant either occurred or he became aware of them. Short of that he would be guilty of laches.

If that be the case that the *status quo* is as at filing of this application, it would

mean that an application seeking orders restraining the Respondents from claiming title in the suit land would be unobtainable. This is because the Respondents obtained title to the respective pieces of land to which they lay their respective legal proprietary claims way back in 2010. Even for those titles which the Applicant alleges are still owned by the 1st Respondent for which he seeks the orders in this application, they predate the filing of this application. The issue whether the titles were obtained fraudulently and/or illegally cannot be determined in an application for temporary injunction but the main suit. I find that it would not be legally and or practically feasible to restrain the Respondents from claiming titles to the suit land - which titles they already have.



The Court of Appeal in **Godfrey Sekitoleko & Ors V Seezi Mutabaazi & Ors** [2001 – 2005] HCB made the position clear by stating as follows;-

“The court has a duty to protect the interests of parties pending the disposal of the substantive suit. The subject matter of a temporary injunction is the protection of legal rights pending litigation. In exercising its jurisdiction to protect legal rights to the property from irreparable or serious damage pending the trial, the court does not determine the legal rights to property but merely preserves it in its actual condition until legal title or ownership can be established or declared.”

Florah Rwamarungu v DFCU Leasing Co Ltd

The purpose of a temporary injunction is to maintain the status quo and not to alter it. As the sale has occurred already, even though its legality may be disputed, this application is coming too late. It cannot succeed in the circumstances

Nakawooya v Segawa

Held; There is a wealth of authorities to the effect that a temporary injunction is not available to the Applicant where the *status quo* has already been disturbed. In **Mugenyi V Wandera [1987] HCB 78** it was held that the purpose of an injunction is to preserve the *status quo* until the dispute is resolved, and it would not help in the said case where barricades had already been fixed. Similarly, in **Wasswa V Kakooza, supra**, a temporary injunction was not available to the Applicant where the *status quo* had already been disturbed through the Applicant being forced out of the suit premises.

In the premises, and on the basis of the foregoing authorities, the *status quo* the Applicant seeks to protect through grant of a temporary injunction has already been disturbed as the suit property she seeks to prevent from sale or alienation has

already been sold off to a third party. An order of temporary injunction in the circumstances would be in vain. On that ground alone, this application would fail as there is no *status quo* to preserve.

Injunction to Preserve Property – O.41 (7):

Court has powers to order impounding and preservation of suit property.



Bob Kanyabutala Vs Ahmed Kakoza: This was an application under O.41 r 7, CPR for an interlocutory injunction/order for the suit vehicle to be impounded and detained at Kampala for preservation pending the determination of the suit.

Held: O.41 r 7(1) gave court wide powers to preserve the suit properties. If the plaintiff succeeds in the suit, there might be barren results and it is the duty of court to try and avoid this cooking at the fact of this case and conduct of the respondent, if the court denied the applicant the relief he is asking for; the respondent might dispose of the suit property and that would render the applicant's suit nugatory

Pre-conditions/Considerations for grant of a temporary injunction

Kiyimba Kagwa Vs Katende: The applicant was the registered owner of the suit land which was disputed between himself and the Defendant had brought a tractor and begun cultivating the land. The Plaintiff applied for the temporary injunction.

Held: That the conditions for the grant of an interlocutory injunction include;

- 1) The applicant must show a prima facie case with a probability of success
- 2) Such injunction is only granted where the applicant might otherwise suffer irreparable injury which will not be adequately compensated by the award of damages.
- 3) If the court is in doubt, it will decide the application on a balance of

probability. In **Alley Route v Uganda Development Bank**

Held; The conditions for the Court to consider whether or not to grant a temporary injunction are that first an Applicant must show that he has a prima facie case with probability of success. Secondly, an interlocutory injunction will not be granted unless the Applicant might otherwise suffer irreparable injury, which would not adequately be compensated by an award of damages. Thirdly if the Court is in doubt, it will decide an application on the balance of convenience.

Imelda G. Basudde nalongo v Tereza Mwewulizi and Anor

Held; The judicial analysis to be carried out by the court when considering whether or not a temporary injunction should issue in any given case must cover the following three

important conditions or elements. That is to say, that the court must consider:

- a) Whether the applicant has a prima facie case with a probability of success.
- b) Whether, if the injunction is not granted, the applicant is likely to suffer, irreparable injury which the award of damages may not be adequate to atone; and



c) If, the court is remains in doubt, after analysing the above two conditions, it will consider the question, in whose favour, of the two parties to the head suit, the balance of convenience tilts. In other words, which of the two parties is more likely to be placed at mere disadvantage or inconvenience if the injunction is denied by the court.

Existence of a prima facie

case Meaning;

Imelda G. Basudde nalongo v Tereza Mwewulizi

and Anor Held

What is normally meant by a prima facie case is that the evidence placed before the court, by way of affidavit or otherwise, in the application for the injunction must show that there exists a genuine triable issue, in the main suit pending between the parties. The court must be satisfied that the dispute presented in the main or head suit is not a sham but a genuine dispute and that the applicant has probabilities of succeeding in the main suit.

Agnes Bainomugisha v DFCU Ltd

Held; In order to succeed on this application the applicant must demonstrate that she has a prima facie case, or at least an arguable one. At this stage, as no trial has taken place the court is not required to evaluate the case in detail or assess at great length the probability of success of the same. However, the court must be able to be satisfied that there is some serious question to be investigated.

Francis Kayanja v Diamond Trust Bank of Uganda.

Held; Regarding the first test, whether the Applicant has a prima facie case with a probability of success, the trend in Uganda is to consider only whether there are serious questions to be tried.

Nabitindo v Umar Nassolo; held; As to whether the suit establishes a *prima facie* case with probability of success, case law is to the effect that though the applicant

has to satisfy court that there is merit in the case, it does not mean that one should succeed. It means there should be a triable issue, that is, an issue which raises a *prima facie* case for adjudication.

Irreparable injury/ Damage:

Held: That irreparable damage/injury means that there must be no physical possibility of repairing of the injury but means that the injury must be substantial or the material one i.e. one that cannot be adequately compensated for by damages.



Irreparable injury:

As to the existence of irreparable injury or not is a question of fact.

In *Kiyimba Kagwa Vs Haji Nassar Katende (1988) HCB 43* Odoki J (as he then was) held that irreparable injury means that the injury must be substantial or immaterial one, that is, one that cannot be adequately compensated for in damages.

Alley Route v Uganda Development Bank

Held; On the issue of irreparable damage the catch word is "*adequately atoned*". Injury which an award of damages can not adequately atone. In *Tonny Wasswa vs. Joseph Kakoza [1987] HCB 85* irreparable injury has been held to be injury which is substantial and can not be adequately remedied or atoned by damages

Francis Babumba Vs Bunje: Held: That in view of the scarcity of accommodation, in Kampala, if the applicants were evicted, they would suffer irreparable damage (injury) since alternative accommodation will not be easy to get.

Francis Kayanja v DTB U

LTD Held

That irreparable injury means that the injury must be substantial or immaterial one, that is, one that cannot be adequately compensated for in damages.

In the instant case, The Applicant does not in his affidavit show the nature of loss he would suffer. Other than stating that the land comprises of a school called Kireka Parents School, the Applicant does not show what injury that would result to him and which cannot be compensated by an award of damages. In his submission the Applicant's counsel stated that the school was the Applicant's only source of income and that the Respondent had granted the loan to the Applicant while aware of this fact. Counsel's submission in his regard was not supported by any evidence on record. Court should not be expected to speculate

Florah Rwamarungu v DFCU Leasing Co Ltd

The application for temporary injunction was rejected apparently because the court was satisfied that there was no evidence of irreparable loss and that there was no status quo to maintain since the suit land had been sold and transferred some seven

months earlier to a third party who was not a party to the suit. An appeal against that particular ruling to the Court of Appeal was also rejected and that Court upheld the reasoning of the hence an appeal to the supreme court

Held; Loss of a source income does not in itself constitute irreparable loss. By the nature of an income source, the stream of income following from that source is quantifiable in monetary terms, and cannot be 'irreparable' in the sense that it cannot be atoned for by damages, since it



is capable of quantification, without more. That this application has no merit for failure to prove irreparable loss.

Doreen Kalema Vs NHCC:

Held: That a temporary injunction could only be granted to an applicant who was likely to suffer substantial and irreparable damage/injury which could not be adequately remedied. Housing was acute in Kampala; the applicant was likely to suffer irreparable damage if the intended execution was carried through.

Nitco Ltd Vs Hope Nyakairu: *Held:* That on the facts of the case the applicant had not shown that he would suffer irreparable injury which could not be adequately compensated by an award of damages if a temporary injunction was not granted. That the grant of a temporary injunction would instead inflict irreparable injury on the defendant as the plot of the land could be removed from her if she did not develop it within five years. If however, the defendant proceeded with the building and eventually at the end of the trial, the plot turns out to be the plaintiff's the defendant would be ordered to demolish the building, remove the debris and compensate the plaintiff for any damages to the plot. If on the other hand the plot was declared the defendant's, at the end of the trial of the main suit the plaintiff would suffer nothing except may be by way of costs.

Balance of Convenience:

The court is requested to weigh the convenience of complying with the injunction on the part of the respondent against the damage that the applicant would suffer if the injunction is not granted. If the damage outweighs the convenience, then the applicant would be granted the injunction.

UCB Vs General Parts (U) Limited:

Held: That the applicant was a small company compared to the respondent and as such the applicant was likely to be more inconvenienced if its property was sold.

Francis Kayanja v DTB U LTD

Held; The last test is that in case of doubt court should decide whether or not to

grant a temporary injunction on the balance of convenience. This test is resorted to when Court is in doubt on any of the first two issues. Without any doubt my finds on the first two issues have been in the negative. I therefore find no need to consider the issue of convenience.

American Cyanamid Vs Ethicon Ltd



Per Diplock; ; It is where there is a doubt as to the adequacy of the respective remedies in damages available to either party or both, that the question of balance of convenience arises. It would be unwise to attempt even to list all the various matters which may need to be taken into consideration in deciding where the balance lies, let alone to suggest the relative weight to be attached to them.

Injunctions against Government:

S.14, CPA empowers court to grant all such remedies against the government as may be granted against private individuals in proceedings except remedies whose effect is to grant an injunction or order specific performance, S.14(2). The foregoing cannot be granted against a government official if the effect is that relief is granted against the government.

A-G Vs Silver Springs Hotel:

The M.O.F cancelled repossession certificates issued under the change ACPB. The respondent appealed to the high court and obtained an injunction against the government and its agents from dealing with the suit premises. On application, the issue was whether court can issue an injunction against the government or its officials.

Held: That an injunction (temporary or permanent) cannot lie against government under the laws of Uganda. That the rationale is that which government machinery should not be brought to a halt and it should not be subjected to embarrassment, *that it would be against public policy if government business was brought to a halt.* That subsequent legislation does not repeal earlier legislation without explicitly stating so, and where no necessary implication can be drawn hence S.36, Judicature Act 1967 did not repeal S.15 of the CPA. **See S.7, Local government Act as amended.**

Christopher Sebuliba Vs A-G:

The plaintiff sued government to recover land and for an eviction order which was deemed in the T.C as inconsistent with S.15, CPA.

On appeal, **Platt held:** That where as government is entitled to protection such protection should be scrutinized carefully where it is unconscionable. That there are situations where the government may insist on such protection or may by

implication waive its immunity but in this case the government's conduct was such as it had waived its immunity. The government had indicated to the plaintiff that it would not vacate the premises without a court order hence it would be unfair to the plaintiff if the same government claimed immunity where faced with the court order.

However, the courts shifted position in the aftermath of enactment of the 1995 Constitution. Hence in the case of *Osotraco [U] Limited v. Attorney General*, where Ministry of Information employees had occupied and refused to vacate the plaintiff company's property at Mbuya Hill, orders were sought for the eviction from the property and a permanent injunction



from occupation against the defendants from the suit premises. The court found that the plaintiff company was the registered proprietor of the property. On the issue of whether court could make an order of vacant possession against the government, Court stated that Section 15 of the Government Proceedings Act prohibited court from making any order for the recovery of land or property, and instead enjoined it to make a declaratory order that the complainant was entitled to such property. The Court found that this provision ran counter to the spirit of the 1995 Constitution, because such a ruling would have deprived the successful party of the most appropriate remedy namely, recovery of his or her land. Court noted that since Section 15 of the Government Proceedings Act had been rooted in the non-immutability of state powers and immunities, Article 126 of the 1995 Constitution enjoined the courts to administer justice in the name of the people. Egonda-Ntende. J., pointed out that,

If government is in wrongful occupation of property, substantive justice demands that it be ordered to vacate. A declaratory order leaves a successful party at the mercy of government functionaries as to when he is to enjoy the fruits of successful action against government, for the declaratory order cannot be enforced.

On appeal, the state's contention was that the learned judge erred in interpreting the constitution, a duty that was reserved for the Constitutional Court only under Article 137. In the lead judgment of the court, Justice Mpagi Bahigeine upheld the lower court's decision, stating that the learned judge had not interpreted the constitution but was merely bringing the Government Proceedings Act into conformity with the 1995 Constitution under Article 273.

The decision in *Silver Springs* was thus overruled, with court stating that the Silver Springs case predates the 1995 Constitution by about six years. Times have changed. The decision cannot therefore be said to be in line with the spirit of the new Constitution especially article 126 (1)

Service or Notice of Application:

O.41 r3: this requires service of the application on the adversary party otherwise court will be reluctant to make an ex-parte order.

Jonny Wasswa Vs Kakooza: It was held that an injunction was to be set aside for lack of service on the opposite party and service was not to be dispensed with unless the applicant shows good cause. See also r.4.

Notice may be dispensed with

Busulwa Vs Nakanwagi: Held: Notice shall be dispensed with and a temporary injunction granted because the building (subject matter of the suit) was in immediate danger.

Doreen Kalema Vs NHCC: This was an application for a temporary injunction restraining the defendant from evicting the plaintiff as this constituted disturbance of the plaintiff's quiet and peaceful enjoyment of residential premises owned by the defendant. The application was brought under O.41 r 1, 2, 3 and 9.



Held; That though O.41 r3, CPR requires notice of an application under r 1 and 3 of the order to be served on to the respondent, the said rule empowered court to proceed exp-arte if there was evidence of immediate danger to the property by sale or other disposition provided also that there was an application to dispense with the service of notice of application to the respondent. In the instant case, the conditions were satisfied as there was evidence of immediate eviction of the applicant which will disturb the status quo, besides the application contained a prayer to dispense with the service of notice on the defendant.

Application for injunction:

Application according to order 41 r. 9 is by chamber summons except those under r1 and 2 which are instituted by notice of motion under r 9.

Opposing the application.

Energo Projekt Niskogradnja Joint Stock Company v Brigadier Kasirye Gwanga & Anor

Held; From the said affidavit of Aata Stephen, both respondents refused to file affidavits in reply. In such scenarios, the parties are presumed to have conceded to the application. In the case of the **Samwiri Mussa vs Rose Achen (1978) HCB 297**, Ntabgoba Ag. J. (as he then was);held that

“where facts are sworn to in an affidavit and they are not denied or rebutted by the opposite party, the presumption is that such facts are accepted.”

This very case binds both respondents. Their failure or refusal or/and neglect to file affidavits in reply when they were duly served with the application is clear indication that they never intended to challenge the application. I also note that though there are some points of law involved, there are also some facts that were deponed upon in the affidavit in support of the application, which needed an affidavit in reply and rebuttal to the application. And the burden of denying the averments in the affidavit in support of the application squarely lies on the respondents. In the result, I make a finding that the applicant’s application was unchallenged by the respondents.

Discharge of a temporary injunction:

Afro Uganda Brothers Vs Mpologoma Brothers Gen. Agency Ltd: This was a notice of motion filed by the applicant/defendant under O.41 r4 to set aside a

temporary injunction granted to the respondent from evicting the Respondent from the shop premises until the suit would finally be determined. At the time of the application the tenancy agreement had expired and a contention was raised as to the credibility of the difficulty faced by the applicant.

Held: When a temporary injunction order was granted to restrain the applicant/defendant from evicting the respondent/plaintiff from the premises in dispute there was a serious question to be tried in the suit and necessary to protect the respondent from irreparable damage. In the present application however, some changes have occurred. The purpose for which the temporary injunction was granted by this court had ceased by the affluxion of time and the



respondent had remained tenants at sufferance or trespasser who could be evicted from the premises in question at the time.

NB: The affidavit in support of the applicant's application was an affidavit of information and it was necessary for the deponent to state the sources of his information and belief. The affidavit was there regular.

NB: Injunctions (temporary) are instituted by way of miscellaneous proceedings.

SECURITY FOR COSTS:

In the event that the court finds in favor of the defendant and in order to avoid the defendant obtaining an order in vain, the court will order the plaintiff who has filed a frivolous and vexatious claim to pay costs. This security is taken during the pendency of the proceedings.

O. 26 provides that court may if it deems fit order a plaintiff to give security for payment of all costs incurred by any defendant.

East Africa Holdings Ltd Vs Madhvani: Held: (Tsekoko – J.) That under O.26 r 1, it is provided that the court may if it deems fit order a plaintiff in any suit to give security for the payment of all costs incurred by any defendant. The language of this rule is extremely plain. It talks about the past not the future. The court would not make an order for costs likely to be incurred by any defendants in the future.

Purpose of O.26:

This saves a defendant who is to incur costs in defending a frivolous suit against the plaintiff which is expensive.

Hellen Aloyo Lugone v Roy Ogwok

Held; The purpose of security of costs as provided under Order 26 rule 1 of the CPR is to secure a defendant who may incur costs to defend a suit instituted by a plaintiff who cannot pay his/her costs. The main considerations in such applications are whether the applicant is being put to undue expense of defending a frivolous and vexatious action, whether the defendant has a good defence to the suit, and whether such a defence is likely to succeed.

Some of the reasons which might prompt a defendant to apply for security for costs include where the plaintiff is resident abroad and does not have substantial property

within jurisdiction of court.

NB: Only a defendant the right to apply for costs.

When there is reason to believe that a litigant will not be able to pay the costs of litigation.

Faith Asimwe v Air Uganda



Held;

Order 26 rule 1 of the Civil Procedure Rules whose wording is clear enough, provides that the court may order the Plaintiff to furnish security for the payment of all costs incurred by the Defendant. The rule only caters for applications by the Defendant for the furnishing of security for costs by the Plaintiff. The rule does not cater for the Defendant furnishing security for costs of the Plaintiff. In the premises the Applicant's application for the Defendants/Respondents to furnish security for costs cannot be sustained and is accordingly disallowed.

Principles

Namboro vs. Kaala [1975] HCB 315

Ssekandi Ag. J. (as he then was) who heard the application held that:-

“The main consideration to be taken into account in an application for s.f.c. are

(a) whether the applicant is being put to undue expenses by defending a frivolous and vexatious suit;

(b) that he has a good defence to the suit; and that he is likely to succeed.

Only after these factors have been considered would factors like inability to pay come into account;

(2) mere poverty of a plaintiff is not by itself a ground for ordering security for costs; if this were so, poor litigants would be deterred from enforcing their legitimate rights through the legal process

The principles to guide court in determining applications for security for costs, were reiterated in **G.M COMBINED (UI LIMITED v. A.K. DETERGENTS (UI LIMITED**

the summary of the position the merit of the plaintiff's case or that of the defendant as a factor in exercising the Courts discretion under O.26 r.1 in favour or against an application by a defendant for s.f.c., may be stated as follows:-

1. A major consideration is the likelihood of success of the plaintiff's case; put differently, whether the plaintiff has a reasonably good prospect of success; or whether the plaintiff's claim is bona fide and not a sham;



2. If there's a strong prima facie presumption that the defendant will in his defence to the action the Court may refuse him security for costs it may be a denial of justice to order a plaintiff to give security for costs of a defendant who has no defence to the claim;
3. Whether there's an admission by the defendant on the pleadings or elsewhere that money is due;
4. If the defendant admits so much of the claim as would be equal to the amount for which security would have been ordered the Court may refuse him security for he can secure himself by paying the admitted amount into Court.
5. Where the defendant admits his liability the plaintiff will not be ordered to give security for costs
6. Where there is a substantial payment into Court or an "Open offer" of a substantial amount, an order security for costs will not be made.

In **John Mukasa v M/s Srijaya**, after stating the above two authorities,

Held; A Defendant may in certain cases ask for an order to compel the Plaintiff to give security for the costs of the action, for example where the plaintiff is ordinarily resident abroad, and has no substantial property, real or personal properly within the jurisdiction of court.

Grounds of Application:

- (1) Where the plaintiff is ordinarily a resident abroad and has no substantial property in the jurisdiction of court.

Farrab Vs Brian: The Defendant in a civil suit in Kenya applied for security for costs on ground that the plaintiff was a resident abroad. The application was not accompanied by an affidavit setting out the grounds. The plaintiff objected on the ground that the application was defective.

Held: That an application for security for costs does not necessarily have to be backed by an affidavit and the order applies to both companies. Held: If there is a strong prima facie presumption that the defendant would fail in his defence to the action the court may refuse to give him security for costs.

Deepak Shaw & Others Vs Manirack & others: The defendant applied for security for costs on ground that the plaintiffs were resident in Nairobi and had no substantial property in Uganda.



Held: Ogola J. That in light of EAC, applications of that nature need reconsideration and referring to EEC/EU cases held that court can not order security for costs against a plaintiff resident in a member country where proceedings are commenced in a member country. That Uganda and Kenya had reciprocal arrangements for the enforcement of foreign judgments.

M/s Unidrom Ltd Vs Kawesi: (Egonda Ntende J):

That an order for security for costs would issue if the plaintiff was a foreign company incorporated in Uganda but has no property or investments in Uganda.

John Murray Publishers Ltd v G.W.

Senkindu Held;

When a person instituting a suit in this Country, and being abroad, Court must ensure that when an adverse order is effectually made against him it will be possible to execute against him even if he has no property in this Country.

The existence reciprocal enforcement machinery between Uganda and UK is a valid argument so long as it is proved that the plaintiffs have property or chattels in UK. In this case there is nothing in the plaintiffs' affidavit in reply to pin-point their property in the United Kingdom if any.

Where the judgment creditor lives in Uganda and the judgment debtor's property is in England, this court, taking into consideration other circumstances, would decline to order security for costs. However, it is to be observed that the plaintiffs in this case have not even shown that they have any property or chattel in England and, if they have, what sort of property. The property should be such as would satisfy the costs of the applicant in the event he won the case.

Atulkumar Patel Vs American International Banking Corporation:

That the applicant had shown good cause why he should have security for costs and security for plaintiff's costs. The fact that that the respondent was a foreign corporation with no known assets in Uganda and considering the fact that the sums earlier deposited had been made inadequate by the subsequent currency reform were all grounds for court to order a further security for costs.

- (2) When the plaintiff is merely a nominal or impecunious plaintiff suing for the benefit of some other person.

Kavin Elah Vs Ahmed Mhindo; *Held*: That the inability of the plaintiff to pay his debts is not sufficient reason to justify ordering for security for costs.

(3) Where the plaintiff is an insolvent company

A.K.Detergent Vs. G.M Combined.



Whether order thereof may issue because plaintiff company is highly indebted what is the quantum there for.

Held: Taking into account the fact that the respondent/plaintiff was heavily indebted most of her assets charged, was under receivership, winding up proceedings had commenced, it was necessary that she furnishes security for costs of the suit on which the defendant/applicant would fall back in event the suit went against the plaintiff/respondent.

Katabalwa Philip Vs. Ntege Ssebagala & anor

Held: Insolvency of the litigant is not a ground for an order for security for costs. An order for security for costs would be granted if the petition is merely vexatious and frivolous

(4) Where the plaintiff has deliberately omitted or misstated his address with the view **of evading the consequences of litigation.**

Scope O. 26 r 1:

Deepak K Shah v Manurama Ltd

Held; A fundamental consideration, is the fact that the power of the Court to order a Plaintiff to pay security for costs is entirely a discretionary matter for the Court.

Goodman Agencies Ltd v Hasa Agencies

Referring to Rule 101(3) of the Supreme Courts, held that clearly, the above provision of the rule gives very wide discretion to the court to order further security for costs. The only fetter to that discretion is that which applies to all judicial discretion, namely, that it must be exercised judicially.

Procedure of Application for Security for Costs:

Application for security for costs is under O.27 r 3 and is brought by chamber summons. Time within which the application can be granted:

Transroad Ltd Vs Bank of Uganda: That rule 104 (3) allows court to make an order for further security for costs at any time if it thinks fit but the law is settled that that order should not result in prejudice to the respondent. An inordinate delay may cause such a prejudice and which onus is on the applicant to show that such delay has not prejudiced the party being asked to provide further security for costs.

Held: In the instant case, the appeal was lodged on 27/7/95 but with applicant waited until 8/11/97 to bring the present application. This inordinate delay was not explained and the application having been made after the appeal had already been set down for hearing only 11 days to the hearing date the application had failed to discharge the onus to prove that the delay would not prejudice the respondent if the order was granted. Application dismissed. Applied in **Premchand Vs Quarry Sites of East Africa Ltd and Others:**

Kakooza Jonathan v Kasaala Growers Co-op

Society held;

While 101(3) may appear to allow applications for security to be lodged in court "at any time", a number of cases indicate that lateness in filing an application for security may be a factor to consider against the applicant. See, for example, *Lalji Gangji - Vs- Nathoo Vassanjee (supra)* and *Noormohamed Abdulla - Vs- Raachhodbhai J. Patel (supra)*.

In *Premchand -Vs- Quarry Ltd [1971] E.A 172* the court when it was considering an application for security for costs stated:- "but I direct myself in accordance with the decisions of this court in *Lalji Gangji - Vs- Nathoo Vassanjee [1960] E. A. 315* and *Noormohamed Abdulla - Vs- Patel [1962] E. A. 447* that delay in making applications of this nature is a material

consideration: that the onus is on the applicant to show that such delay has not been prejudicial to the applicant; and that the power to order security in respect of payment of past costs is one which should be sparingly exercised. "

In **Premchand -Vs- Quarry Services Ltd [1971] E.A** the appeal was filed in August 1970 and the application was filed on 2nd November 1970 for further security for the costs of the appeal and for past costs. The difference in dates was a period of about four months. It was held that there was delay in applying for security and that the applicant had to show that the delay was not prejudicial to the respondent. In **Lalji Gangji -Vs-**



Nathoo Vassanjee (supra) a period of about five months was held to be a delay in filing the application for security. In **Noormohamed Abdulla -Vs- Ranchhodbhai J. Patel and Another** (supra) there was a delay of about 15 months in filing the application. It was held that there was inordinate delay in making the application and since the onus to show that this delay did not prejudice the appellant had not been discharged, the application must be refused.

In the instant case a year passed from the date of filing the appeal to the date of filing the application. It is difficult to see why the applicants stated that this application has been made without delay. Therefore, in the instant application, instead of the applicants saying that there was no delay, they should have admitted it and showed that it was not prejudicial to the respondent. They did not do so.

Burden of proof.

Goodman Agencies Ltd v Hasa Agencies

It is worth pointing out at this time that it is well settled that in an application for further security for costs, like the instant one, the applicant bears the burden to satisfy court that the circumstances of the case justify making the orders sought. In *Lalji Gangji - vs - Nathoo Vasanjee* (1960;E4. 315, *Windham, Windham, JA*, considered the application of rule 60 of the Rules of the then Court of Appeal for Eastern Africa which was in “pari material” with rule 101 (3) of the Rules of this court and on page 317 said:

"-----under rule 60 the burden lies on the applicant for an order for further security,
as it normally lies on any applicant to a court for any relief, to show cause why that relief should be granted, and he cannot merely by averring that the security already deposited for costs of the appeal is inadequate or that costs in the action below ordered in his favour, have not been paid, impose any obligation upon the court to grant his application.“

The above statement was cited with approval in a number of cases in this court, including by Oder JSC (RIP) in *Patel - vs - American Express International Banking Corporation*, Civil Appeal No.9 of 1989 and by Mulenga, JSC, (as he then was), in *Bank of Uganda - vs - Joseph Nsereko and 2 Others*, Civil Application No. 07 of 200

Kakooza Jonathan v Kasaala Growers Co-op Society

Quoting the case of *Lalji Gangji - vs - Nathod Vasanjee*, the Supreme Court **Held** that in applications for further security for costs or past costs the burden lies on the applicant to show why that relief should be granted.

Security for costs and further security for costs in the Supreme Court.

In Margaret and Joel Kato v Nuulu Nalwonga

Held; Rule 101 of the Supreme Court Rules provides for a party instituting a civil appeal to lodge in court Uganda Shillings 400,000/= as security for costs. The court also has powers under Rule 101(3) of the same rules to direct that further security for costs be given. We have noted however that counsel for the respondent did not move court to invoke its powers under this Rule and we accordingly make no order for further security under this Rule.

Court was not persuaded by counsel for the respondent's argument that the applicants would not in any way be prejudiced by the order to deposit security for due performance of the decree. The applicants, being individual litigants and not a corporate entity, would most certainly find it onerous if they were to be required to deposit the Shs. 50,000,000/= proposed by counsel for the respondent, as this is, by no means, a small sum of money.

Rule 101(3) of the Rules of the Supreme Court provides:-

"The court may, at any time, if the court thinks fit, direct that further security for costs be given and may direct that security be given for the payment of past costs relating to the matters in question in the appeal."

In Goodman Agencies Lid Vs Hasa Agencies (K) which was decided by a single judge, the court refused to order the respondent to give further security

for costs. “It would be a denial of justice to order the respondent to give security for costs of the applicant which has no likelihood of success in its defence against the respondent's appeal,” the learned judge stated in his ruling.

In a reference to a coram of three justices of this court, however, the court reversed the decision of the single judge and ordered the respondent to give further security for costs. In reaching this decision the court was influenced by four factors, namely (1) that the respondent in that application had no known address in Uganda except that of his counsel, (2) that the respondent had no known assets in Uganda or Kenya, (3) that the respondent had suggested



before the single judge that the respondent could offer Shs. 700,000,000/= as security for costs, and (4) that contrary to the opinion of the single judge, prima facie there were doubts about the success of the respondent's appeal.

In **G. M. Combined (U) Ltd - Vs- A. K. Detergents (U) Ltd** (supra) Oder, JSC, after considering several cases on the question of security for costs was of the view that the determining factor in allowing or not allowing such applications was the prospect of success, whether or not the applicant was likely to succeed in the substantive case. *"It may be a denial of justice to order a plaintiff to give security for costs of a defendant who has no defence to the claim,"* the judge stated

In Lindsay Parkinson Ltd - Vs- Tiplan Ltd (supra) Lord Denning M. R. stated:-

"Turning now to the words of the statute, the important word is "may". That gives the judge discretion whether to order security or not. There is no burden one way or the other. It is a discretion to be exercised in all the circumstances of the case if there is reason to believe that the company cannot pay the costs, then security may be ordered, but not must be ordered. The court has discretion which it will exercise. The court has a discretion which it will exercise considering all the circumstances of the particular case whether the Company's claim is bona fide and not a sham and whether the company has a reasonably good prospect of success. Again it will consider whether there is an admission by the defendant on the pleadings or elsewhere that money is due. If there was a payment into court of a substantial sum of money (not merely a payment into court to get rid of nuisance claim), that too would count. The court might also consider whether the application for security was being used oppressively so as to try and stifle a genuine claim".

Kakooza Jonathan v Kasaala Growers Co-op Society

Held;

Rule 101(3) of the rules of this court does not specifically mention inability to pay

costs as a ground for ordering security of costs. This does not of course mean that it excludes inability to pay as a factor for consideration.

Under rule 101(1) of the rules of this court security for costs of Shs. 400,000/= is mandatory for civil appellants unless they are excused under rule 109. Taking into account the present value of the Uganda shilling this amount of Shs. 400,000/= cannot be considered as reasonable security for costs that would satisfy most successful respondents in this court. Even when this amount was fixed in 1996, Shs. 400,000/= was not much being no more than US.\$350. The policy behind fixing this amount as security



for costs is difficult to understand considering its insufficiency in covering most respondents' taxed and awarded costs in this court. It should be reviewed.

It is clear that the sub-rule gives the court discretion to give security. However, the rule does not offer guidance as to how this discretion is to be exercised, so guidance has to be sought from decided cases. Court considered the above authorities in *Goodman, GM Combined, Lindsay and Namboro v Kaala* and taking into account guiding principles contained in the cases cited above, held in this case;

Security for past costs under rule 101(3) of the Supreme Court Rules was not intended to be a substitute for or an alternative to execution. That the application for security for past costs is premature because it merely stated that the awarded costs have not been paid and, therefore, security for those costs should be provided. Therefore, in the circumstances execution or some other concrete step should have been taken to recover the costs.

While lack of assets is an important factor to consider, it is not a sufficient factor especially in relation to persons that do not fall under Section 404 of the Companies Act.

Suits against companies; S.404, Companies Act: Where a limited company is a plaintiff in any suit or other legal procedures any judge having jurisdiction over the matter, may if it appears by credible testimony that there is a reason to believe that the company would be unable to pay the costs of the defendant, if successfully in his defence required sufficient security to be given and may stay all proceedings until security is given.

Goodman Agencies Ltd v Hasa Agencies

Held; The above section empowers court where the plaintiff is a limited liability company and it appears on credible evidence that there is reason to believe that the company will be unable to pay the defendant's costs if it succeeds in its defence, to require the company to give sufficient security for the defendant's costs and may stay all proceedings until the security is furnished.

In *Sir Lindsay Parkinson & Co. Ltd. - vs - Triplan*, (1973) 1 **QB** 609, cited in *G. M Combined (U) Ltd.* (supra), section 447 of the Companies Act of England which was in "*pari materia*" with section 404 of our Companies Act was considered. It was stated in that case that the discretion given in section 447 was so unfettered that even if a plaintiff or an appellant was in financial problem and therefore, unable to pay the costs of the suit or appeal if the suit or the appeal failed, the court may still refuse to order security for costs considering other circumstances of the case. For example, if there is strong *prima facie* presumption that the defendant or the respondent to the appeal will fail in his defence to the suit or appeal, the court may refuse him security for costs. The reason being that it will be a denial of justice to order the plaintiff or the appellant to give security for costs of the defendant or respondent who has no likelihood of success in his defence against the plaintiff's claim or appellant's appeal.

In *G.M Combined (U) Ltd*, where the appellant was under receivership because it could not pay its debenture holders; it was also under liquidation as it was unable to pay a judgment creditor and was indebted to many creditors; it was involved in a multiplicity of suits. None of these was brought about by the conduct of the respondent. In these circumstances the Supreme Court held on appeal that the order for security for costs was justified.

Court noted that all those circumstances do not obtain in the instant case save the existence of credible evidence for reason to believe that the respondent will be unable to pay costs of the applicant if it lost the appeal. Persuaded by the above

interpretation, court held that justice should not be the preserve of the rich. *Existence of credible evidence for reason to believe that the respondent will be unable to pay the applicant's costs if the respondent lost the appeal is a factor that strengthens the applicant's case for an order for further security for costs depending on other circumstances of the case, for example, satisfying court that the respondent's appeal*



has no reasonable prospect of success.

Security for costs and further security for costs in the Court of Appeal.

Ramzanali Mohamedali Meghani v Kibona

Enterprises Held;

The learned trial judge correctly applied the principles governing the liability to furnish security for costs. I agree that this is a proper case in which to grant an order for security of costs. The appellant does not reside in Uganda and has no known property here. The present case is on almost on all fours with that case of Bank of Uganda versus Banco Arabe Espranol S.C.U civil application No. 20/98. It was held in that appeal that absence of property within the jurisdiction of the court was sufficient to justify grant of an order for security for costs.

However, it would be wrong to grant an order for security for costs in excess. An order for security for costs should not be used as a weapon to enable the strong to deny the weak access to courts of law or justice -See Lindsay Parkison & Co. Ltd versus Triplan (1973) 10. B.M. 609 at page 617. However, the sum of shs. 80.000.000/= in the circumstances of this case was on the high side. This court is for that reason justified to interfere with the discretion of the trial judge on the quantum of security for costs granted by the lower court. Sum reduced to 15m.

**Failure to deposit security for
costs. Bank of Uganda v Banco**

Arabe Espanol,

Banco Arabe Espanol, filed a suit in the High Court, to which I shall hereafter refer “as the principal suit,” for recovery of a debt owed to it in the sum of US \$ 1,713,665.75. It sued the Attorney General and Bank of Uganda, as co-defendants, but for reasons not material to this



reference, the Attorney General was struck out from the suit by order of the Court and Bank of Uganda remained the sole defendant.

Before commencement of the trial, on application of Bank of Uganda, the Court ordered Banco Arabe Espanol to provide security for costs, which the latter failed to do in time. As a result of the failure the principal suit was dismissed under 0.23 r. 2 of the Civil Procedure Rules.

However, subsequently, Banco Arabe Espanol obtained an order reinstating the suit. Bank of Uganda appealed to the Court of Appeal against that order and its appeal was allowed. Banco Arabe Espanol, in turn appealed to the Supreme Court. Its appeal was allowed with costs holding that a dismissal of a suit for failure to provide security for costs under Order 23 of the Civil Procedure Rules is not a bar to pursuing the claim later.

Security for costs in election matters.

See Rule 5 Parliamentary Elections (Election Petition Rules)

s. 58 Parliamentary Elections Act 2005.

ARREST AND ATTACHMENT BEFORE JUDGMENT – O.40 r 1:

An arrest and attachment before judgment is a plaintiff remedy. Where court is satisfied that the ends of justice so requires it may order a defendant to furnish security or produce any property belonging to him or her and place it to the disposal of the plaintiff or order attachment of such property before judgment is given by the court, the procedural remedy is provided under S.64 of the CPA and order 40 of the CPR.

O.40 provides for the interlocutory of arrest and attachment before judgment.

A plaintiff may reserve the proceeds of his judgment if successful by getting an order from court that the defendant furnishes security for his appearance failure of which results in civil imprisonment.

The order provides; O. 40 r 1

Where at any stage of a suit, other than a suit of the nature referred to in section 12(a) to

(d) of the Act, the court is satisfied by affidavit or otherwise—

(a) that the defendant with intent to delay the plaintiff, or to avoid any process of the court, or to obstruct or delay the execution of any decree that may be passed against him or her—



(i) has absconded or left the local limits of the jurisdiction of the court;
(ii) is about to abscond or leave the local limits of the jurisdiction of the court; or
(iii) has disposed of or removed from the local limits of the jurisdiction of the court his or her property or any part of it; or
(b) that the defendant is about to leave Uganda in circumstances affording a reasonable probability that the plaintiff will or may thereby be obstructed or delayed in the execution of any decree that may be passed against the defendant in the suit,
the court may issue a warrant to arrest the defendant and bring him or her before the court to show cause why he or she should not furnish security for his or her appearance.

UEB (in liquidation) v Royal Van

Zanten held

Judging by the construction of Order 40 r 5 its object is to prevent any attempt on the part of the defendant to defeat the fruits of the decree that may be passed against him. The sole purpose of the attachment before judgment is therefore to give an assurance to the plaintiff that his decree, if made, would be satisfied. It is a form of guarantee against the decree becoming redundant for want of property for its satisfaction. If the defendant is a person of means, the remedy lies elsewhere.

Circumstances For Application:

- (1) If there is evidence that the defendant has left the local limits of the jurisdiction of court or is about to leave the local limits with a view.....
- (2) When there is evidence that the defendant has or is about to dispose of his property with a view of defeating any decree that may be passed against him or her.

Pyarali Datardini –Vs- Anglo American Amusement Park IV ULR 28.

Court considered the words “with intent to delay or obstruct.” The Court **held** in that case that it was not necessary for the plaintiffs to show that the defendant intended to obstruct or delay the plaintiff in the execution of his decree in order to justify an application to the Court for his arrest before judgment; that it was enough if his going away would have that effect. A demand had been made upon the defendant

for payment of rent for premises upon which he held his show in Kampala and the defendant left the jurisdiction next day without making any arrangement with the plaintiff. Court considered the fact that it was extremely improbable that this traveling show would again be in Uganda in the near future. The Court found the order prayed for appropriate to the circumstances of the case and the Judge was quick to add:

“I am not to be taken as holding that in all cases when a defendant leaves the jurisdiction the order for arrest – on failure to pay or find security for the amount sued for – will be made. It is an unusual remedy and will only be granted in appropriate cases.”



Abby Mugimu –Vs- Basabosa HCCS No. 922 of 1990 reported [1991] ULS LR 157.

he defendant was a non-national. It was feared that he would dispose of the whole property and thereafter abscond from the jurisdiction and therefore leave the whole bill to be settled by a co- defendant. The Court had occasion to consider what should be considered before attachment is allowed. It was **held**, inter alia, that before the Court could exercise its discretionary powers under 0.40 by ordering attachment of property before judgment or furnishing security, there had to be real evidence that the defendant was about to leave the country or to sell the property and obstruct or delay justice

The question of intent was further considered in the following case.

UEB (in liquidation) v Royal Van Zanten

Held; that under this rule, (O 40 r 5) Court must be satisfied not only that the respondent is about to dispose of its assets, but also that the disposal is with intent to delay or obstruct execution of any decree that may be passed against it.

Court then distinguished the above two cases.

That in *Datardini*, Court was justified to think that in the circumstances of that case, whether or not the defendant's disappearance was intended, his going away would leave the plaintiff with no assurance that he would ever be paid. The Court did not state, as implied by learned counsel for the respondent, that intent was not a necessary element for proof in a case of this nature. Court believes that this was sound reasoning. The circumstances of the case warranted that particular decision.

Whereas the *Datardini* case was an application under 0.36 r. 1 (a) which deals with the arrest of the defendant if there is cause to do so, the instant application was under 0.36 r. 5 (1) (a) which basically deals with the furnishing of security by the defendant in circumstances stated therein.

Whereas the Court in the *Datardini* case appeared to relax the rule regarding intent, albeit with caution, the Court in the **Abby Mugimu** case was emphatic that there had to be real evidence that the defendant was about to disappear.

Per Yorokamu Bamwine

The similarity between the Datardini case and the Abby Mugimu case is that the two cases involved human beings whose intention could not easily be discerned. The appellant herein is not a human being capable of disappearing like the ones in the two cited cases. The appellant is a statutory body. True it is in the process of winding up and



winding up leads to de-registration. However, there is an elaborate process of doing so. I don't find the respondent's act any different from a situation where the plaintiff feels that the defendant in his case is close to his death and he applies for an order to attach his property pending judgment merely because in the event of death he may be inconvenienced. The law of succession would simply take care of that in the same way the law of divestiture affords the respondent a remedy herein. In the absurd scenario I have talked about above, the position would of course be different where the defendant because of the terminal illness sets out to sell his assets before his death and the plaintiff gets to know. Even then intention must be established. The Learned Editors of MLJ's CODE OF CIVIL PROCEDURE (of India) Vol. 4 at p. 433 while commenting on a law in pari materia with ours have this to say:

"For passing an order [under O40 r1] the intention of the defendant is sine qua non. But that intention is an internal fact. Direct evidence can hardly be expected. The question of intent alleged by the plaintiff has to be determined having regard to the particular facts and circumstances of each case."

I agree. Sine qua non is the latin equivalent of "*something that is essential before you can achieve something else*" in the English language according to OXFORD Advanced Learners Dictionary, 6th Edition at p. 1106. In the instant case, it is apparent to me that the respondent's fear is not only exaggerated but also uncalled for.

In these circumstances I accept the submission of learned counsel for the appellant that the Registrar's holding that the respondent needed not to prove intent on the part of the appellant was made in error

Potgieter v Stumberg and another [1967] 1 EA 609

Held;

That rule enables the court in certain suits, when satisfied by affidavit or otherwise “that the defendant is about to leave Kenya under circumstances affording reasonable probability that the



plaintiff will or may thereby be obstructed or delayed in the execution of any decree that may be passed against the defendant in the suit”, to issue a warrant to arrest the defendant and bring him before the court to show cause why he should not furnish security for his appearance. The court is also empowered to include in the warrant of arrest a specified sum which, if tendered, would obviate the necessity for the execution of the warrant.

That if the evidence before the judge at the time of making the order was then insufficient the order cannot be justified upon any evidence which is placed before the court subsequently. There was no evidence before the judge who made the order to enable him to say that the defendant was about to leave Kenya at all, let alone in the circumstances set out in O. 38, r. 1 (b) (O. 40 r 1) of the Civil Procedure (Revised) Rules, 1948; the order should not therefore have been made, and should have been set aside;

Scope of Application:

Order 40 does not apply to suits of the nature spelt out in (d) and (f) of S.12 CPA. The rationale that no one can leave the immovable property

Rules not applicable to suits falling in paragraphs (a) and (d) of S.12, CPA.

Norevidra A. Pate Vs Soraj. B:

In that case the plaintiff instituted a suit for the following orders:

- (a) Obtain possession of a plot by demolition of a stone
- (b) 5,400= as damages
- (c) Costs of the suit
- (d) Any other reliefs.

The plaintiff proceeded under O.40 and the defendant was arrested and brought before court for failing to show cause, she was ordered to furnish security for her appearance on application. She contended that the suit was by S.12, CPA excluded from O.40 r 1

Mc Kisack CJ held: That if the suit was only for the recovery of possession or only for the recovery of possession of together with a claim for rent or mesne profits, then clearly O.40 r 1 would not be applicable to the suit but this is a suit that falls partly under paragraph (a) and partly (e) and in so far as the suit refers to the latter

paragraph, O.40 r1 is applicable. The plaintiff was entitled to have recourse to O.40 r 1 in respect of that part of the suit which is not excluded from the application of that rule.

NB: Court should consider the question of security or not to cover aspects covered under S.12, CPA.

Ivan Samuel Ssebaduka v Warid Telecom



The Applicant brought this application under 0.40 rr 5 and 12 C.P.R; seeking an order directing the Respondent to furnish security or to produce and place at the disposal of the court, all its assets and property or the value of all its assets and property to satisfy the decree that may be passed against it in the main suit.

Held;

The provisions of 0.40 r 5 (1) C.P.R have been considered in a number of decided cases. It has been established that the order provides for attachment before judgment and that *“it is only available where there is real evidence that the Respondent is about to leave the country, sell the property or delay justice”* – See the case of **Uganda Telecom Ltd vs. Justus Ampaire HCCS 599/2003 [2001-2005] HCB 95** and **V.K. Nataraja Gouder vs. S.A. Bangoru Reddiar, AIR 1965 Mad 212.**

In the current case, not only is the Respondent just about to dispose of the whole of its property or remove it from the local limits of the jurisdiction of court; but it has been admitted by the Respondent that the Company's shares have been transferred and its infrastructure that includes most have been sold to EATON TOWERS LTD and Bank accounts closed.

That *once the allegations are well founded through affidavit evidence, court is bound to issue an order to the Respondent to furnish security”*. Application allowed.

In **Stanbic Bank v New Makerere Kobil Station** it was **held** that no attachment before judgment can issue where it affects the rights of third parties. Court released a bus which had been attached when it was shown that it belonged to a third party.

Rev. Ezra Bikangiso V New Makerere Kobil Station M. A. 10 of 2010. **Held;** a lessee, without special authority to the contrary cannot sell what is owned by a lessor.

Yahaya Lukyamuzi Vs G.Beijuka:

The respondent brought an application under O. 41, CPR among others seeking that the applicant furnishes security for the decretal sum, interest and costs that may be awarded and in the alternative, for an order that the applicant's stock in trade be attached. The Trial Judge granted the application and ordered that failure to attach would result in detention of the defendants in civil prison for a period not exceeding

6 months.

On appeal: held: That the application ought to have been brought under O40 and not 41, that the orders made by the judge could not stand because they included others that had not been prayed for.



Rule 3: By this rule, if the defendant fails to show cause the court has powers to order him or her to furnish security for him/her appearance.

Rule 4: Failure to do so, the court may commit the defendant to civil prison to be detained until the decree is satisfied but such detention should not exceed 6 months and does not exonerate one from liability.

Rule 5:- On attachment:

For situations where the court may attach the defendant's property before judgment and these include:

- 1) Where the plaintiff is about to dispose of the whole or any part of his property.
- 2) About to move from the jurisdiction of the court.
- 3) Has quit the jurisdiction of the court leaving the property with a view of obstructing or defeating the decree passed.

Rule 6:

Court may call upon the defendant to show cause why the property should not be sold.

MLJ Commentaries; On the Code of Civil Procedure at page 436 [equivalent to O.40 r 5- Uganda].

Rule 5 clearly lays down that court, in the first instance must direct the defendant to furnish security or show cause why security should not be furnished before court attaches the property before judgment before complying with this requirement. The attachment would be illegal under will confer any benefit on the decree holder.

Rule 10:- Such attachment does not affect the rights and interests of 3rd parties in the property attached other than those that accrue after attachment.

NB: Application made by chamber summons.

In England the procedure is similar to this, was non prevalent till 1975 when the courts devised the mareva injunction.

Mareva Compaisa S.A Vs International Bulk Carriers (1980): the defendants were charterers of the plaintiff's cargo ship under terms that payment of the charter fee be in installments. The defendants defaulted on the 3rd installment but at the time the ship was far away from England, on its way to India. The plaintiff could not assume its possession. However, the defendant had money in a London Bank and the

plaintiff made an application exp-arte for an injunction restraining the chatterers from removing their money or disposing of it out of jurisdiction. The injunction was granted.



Held: That jurisdiction to grant such an injunction derives from the judicature Act which empowers the court to grant an injunction wherever it is convenient and just.

See S.40, Judicature Statute, 1996:

Nothing can estop an applicant from applying for any remedy from the high court.

JUDGMENT ORDERS, DECREES AND COSTS

By virtue of S.25 of the CPA, the court after the case has been heard, shall pronounce judgment and on such judgment a decree shall follow, provided that if a defendant does not file a defence as may be prescribed, court may give judgment to plaintiff in default.

There are various types of judgment that can be issued by the court:-

a) Judgment in default

May be issued by court under O.9, r.6 i.e. where plaintiff has filed a suit claiming a definite sum of money only and the defendant does not file a defence within the time allowed in the summons or at all. In those cases, court may enter a default judgment.

b) Interlocutory judgment

Given by court under O.9 r.8 in cases where the plaintiff files a suit claiming general damages e.g. only or value for unlawful detention of goods, and having done so, and served the defendant, the defendant does not file a defence within the time allowed in the summons or at all. In this case, court may enter an interlocutory judgment determining liability only e.g. negligence cases that negligent(only).

c) Summary judgment

Under O.36 resulting from summary proceedings where a plaintiff presents a specially endorsed plaint accompanied by an affidavit, taking out summons on a summary suit requiring the defendant to apply for leave to defend, serving such summons onto the defendant and that the defendant does not apply for such leave within the time allowed in the summons or at all, or having applied for such leave, the court refuses to give him such leave to defend the suit, in those cases the court may give a summary judgment.

d) Consent judgment

The plaintiff having filed a suit, defendant having filed a defence, plaintiff and defendant agree on the terms of the judgment. Those terms are reduced into an agreement, are presented to court and court endorses those terms as a consent

judgment.

e) Judgment on admission

This is provided for under O.13, r.6. It applies in cases where the plaintiff has filed a suit and the defendant in his defence or otherwise admits the claims may, on the application of the parties, enter a judgment on admission.



f) Ordinary judgment

Court having heard all the parties, and heard all the evidence, pronounces judgment. Under O.21,r.1, it is provided that in suits where a hearing is necessary, the court after the case has been heard shall pronounce judgment in open court, either at once, or on some future day, of which notice shall be given to the parties or their advocates and such judgment pronounced by the judge shall be dated and signed by him in open court at the time of pronouncing it.

O.21 r2 A judge has powers to pronounce a judgment written and signed but not signed by another judge of the High court. And the registrar if so directed by the Judge of the High court may pronounce a judgment written and signed by the judge of the high court

Rule 3 (1) A judgment pronounced by the judge who wrote it shall be dated and signed by him or her in open court at the time of pronouncing it. (2) A judgment pronounced by a judge other than the judge by whom it was written shall be dated and countersigned by him or her in open court at the time of pronouncing it. (3)A judgment once signed shall not afterwards be altered or added to except as provided by section 99 the Act or on review.

S.99 provides what is called the “*slip rule*” which provides for correction or amendment of clerical or arithmetical mistakes in judgments, decrees or orders arising therein from any accidental slip or omission. This may be done on the court’s own motion or on application of the parties. [Ref: **Libya Arab Bank v Adam Vassilialis** (1985)-Supreme Court decision.]

Under O.21 r.4, such judgments shall contain a concise statement of the case, the points for determination i.e. the issues, the decision thereon and the reason for such decision. Court has to make its findings or decision on each of the issues framed, unless it’s finding on one or any number of them is sufficient to dispose of the case

Rule 5; The court is required to state each decision on each issue and reason thereof unless in the finding of any one or more issues is sufficient for the decision of the suit

Maniraguha Gashumba v Sam Nkundiye

Held; that a judgment must be signed and dated by a judge or Magistrate who wrote it at the time of pronouncing it. A judgment that is not signed and dated in accordance with **Order 21 rule 3(1)** of the **Civil Procedure Rules** is no judgment at all and is therefore invalid and that neither oral evidence of the Judicial Officer who wrote it nor certification could validate such an unsigned judgment

Decree;

After judgment the decree shall follow. Decree defined in S.2 of the CPA as the ‘formal expression of an adjudication expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit, and may be either preliminary or final.’ The decree marks the end of process (unless appeal etc)



Under O.21 r.6 it is provided that the decree shall agree with the judgment. It shall contain the number of the suit and shall specify clearly the relief granted or other determination of the suit and it shall bear the date of the day the judgment was delivered.

Under O.21 r.7(2) it shall be the duty of the party who is successful in the suit in the High court to prepare without delay a draft decree and submit it for the approval of the other party to the suit, who shall approve it with or without amendment, or reject it without undue delay. If the draft is approved by the parties, it shall be submitted to the registrar, who if he is satisfied that it is drawn up in accordance with the judgment, shall sign it and seal the decree. If all the parties and the registrar do not agree to the contents of the decree within such time as the registrar shall fix, it shall be settled by the judge who pronounced the judgment and the parties shall be entitled to be heard thereon if they so desire.

In **Eastern Province Bus Company v G** (1971)ULR 87it was held that *under O.18, r.7 it is the duty of the successful party to have in the first instance prepared the draft decree, but if he fails to do so, the other party who desires to appeal against the judgment will first have to take steps to have the decree extracted.*

Similarly, in **Asad Iweke v Livingstone Oala** (1985) HCB; court found that *the general duty of extracting a decree is imposed on the successful party because it is presumed that he will be anxious to execute the judgment. That a non-successful party anxious to appeal also has a duty to take necessary and possible steps to prosecute his appeal and that this includes extracting a decree, which is a prerequisite for filing an appeal.*

All these cases are to the effect that it is a duty of the successful party to extract the decree. Because it is view that he will be anxious to continue with proceedings and get judgment. It is what to be executed if there are any execution proceedings.

Costs.

Under S.27[1] “subject to such conditions and limitation as may be prescribed, and the provisions of any law for the time being in force, the costs of and incidental to all suits shall be to the discretion of the court or judge and the judge or court shall have the full power to determine by him and out of what property and to what extent such costs can be taken and if all the necessary directions for the powers are all set. The fact that the court or judge has no jurisdiction to try the suit shall be no

bar to the exercise of such jurisdiction provided that costs of any action, cause or other matter or issue shall follow the event unless courts shall for good reason otherwise order.

It is presumed that expenses are incurred in civil proceedings, the rules recognize that those expenses are recovered i.e. costs



After judgment has been given in action, the judge will have to look at the costs, to determine how they are born i.e whether a particular party must pay for his own costs, or will have them paid by the other side and on what basis they are to be assessed.

A party awarded costs can only obtain from the other side so much as it is properly allowable by the court on the particular basis on which such costs are assessed otherwise called taxed. If these costs allowed by court are called taxed costs and the process is called taxation.

The issue of costs only arises after the court has made an order

for cost. Two cases where the order is not necessary.

- i. Whereunder order 25 the plaintiff withdraws the suit without leave of court where leave is needed the costs are within the discretion of the court.
- ii. Where the party accepts payment in satisfaction no order for costs is can be made.

The costs means those expenses and entitlements scrutinized and allowed by a taxing master in accordance with the taxation rules. And taxation can only begin with a taxation notice accompanied by a bill of costs which is in effect an invoice which shows the sums claimed by the party entitled to costs. The bill is prepared by the party entitled to costs showing the actual charges in separate columns and every column must be totalled up and the bill is left for taxation by the taxation master who is a registrar in case of the high court or magistrate in magistrate court.

The hearing is conducted in an informal way and when it is finished and all the queries have been settled, the bill is led to the taxing master who determines the bill and issues the certificate of taxation settling the amount fixed .

Costs involve professional fees for engaging advocates otherwise called instruction fees provided for by the advocates Act and computed in accordance with the Advocates remuneration and taxation of costs Rules. The rules provides for drafting, drawn and perusing documents and handling both contentious and non contentious matters. Both involve fees for filing court papers under the court fees rules, travel expenses of witnesses, attendance to court and all expenses admitted in court as reasonably flowing from the action.

Further, in **Ernest Ato v Aliwala**, court found that *costs in any suit have no limit and that*

the magistrates courts can award costs which exceed the pecuniary jurisdiction of the presiding magistrate, provided they were incurred during the course of the litigation.

In **Uganda Development Bank v Muganga Construction**⁵¹, the parties agreed that the sum claimed in the plaint was incorrect. On ascertainment of the correct sum, which was less than the original claim a consent judgment was entered for the plaintiff for the same. The parties disagreed on the incidence of costs. The plaintiff argued that he was entitled to the costs; while the defendant contended that each party should bear its own costs since the plaintiff claimed a



wrong amount to start with. Court held *that under the CPA, S.27, costs should follow the event unless the court otherwise orders. That the Act gave the court a discretion but that discretion had*

to be exercised judicially. The court found that a successful party can only be denied costs if it is proved that but for his conduct the action would not have been brought. That costs follow the event even where a party succeeds only in the main purpose of the suit.

Whether costs should be awarded in public interest litigation?

The authorities have emphasized that costs in Public Interest Litigation cases should only be awarded in rare cases

In the **Besigye Kizza v Yoweri Museveni** case, Odoki (CJ) stated:

It is well settled that costs follow the event unless the court orders otherwise for good reason. The discretion accorded to the court to deny a successful party costs of litigation must be exercised judicially and for good cause. Costs are an indemnity to compensate the successful litigant the expenses incurred during the litigation. Costs are not intended to be punitive but a successful litigant may be deprived of his costs only in exceptional circumstances.

In awarding costs, the courts must balance the principle that justice must take its course by compensating the successful litigant against the principle of not raging poor litigants from accessing justice through award of exorbitant costs.

In the present petition, I am of the considered opinion that the interest of justice requires that the Court exercise its discretion not to award the costs to the Respondents. I agree with Mr. Balikuddembe that this

was a historic and unprecedented case in which a presidential candidate who is a serving President was taken to court to challenge his election. The petition raises important legal issues, which are crucial to the political and constitutional development of the country. In a sense, it can be



looked at as public interest litigation. It promotes culture of peaceful resolution of disputes

In the same Presidential Petition, Hon. Justice A. Karokora (JSC) stated:

In order to encourage people like the petitioner to come to court and help in the development of our legal, historical and Constitutional development in Uganda such people should be encouraged. Costs should not be awarded by way of penalizing them so that they should get scared from coming to Court.

Similarly, Justice Mulenga (JSC) held:

In the case of Major Gen. D. Tinyefuza Constitutional Appeal No. 1 of 1997 (SCU) (unreported) this court ordered each party to bear its costs although the appeal was dismissed. The court's reasons for doing so, were that in order to encourage constitutional litigation parties who go to court should not be saddled with the opposite party's costs if they lose. If potential litigants know that they would face prohibitive costs of litigation, they would think twice before taking constitutional issues to court. Such discouragement would have adverse effect on development of the exercise of the court's jurisdiction of judicial-review of the conduct of authorities or individuals, which are unconstitutional. It would also stifle the growth of our Constitutional jurisprudence. The culture of constitutionalism should be nurtured,

not stunted in this Country, which prohibitive litigation costs would do if left to grow unchecked. I agree with the principles in the decision. In my view they should equally apply to the instant Petition.

In **Advocates for Natural Resources Governance and Development (Supra)** the Constitutional Court referred to **Kizza Besigye vs. Yoweri Museveni**



(Supra); **Prince J Mpuga Rukidi vs. Prince Solomon Iguru Supra and Attorney General vs. Major Gen. David Tinyefuza** (Supra).

The brief facts in **Advocates for Natural Resources Governance and Development (supra)** were that a Public Interest Litigation petition was brought under Article 137 of the Constitution. The petitioner(s) contended that the respondents' act of taking over and acquiring land prior to payment of compensation was in contravention of the right to property enshrined in **Article 26 of the Constitution**.

The court held *inter alia*:

As to costs, a practice has evolved in this and other courts that parties who seek to enforce in courts of law fundamental human rights enshrined in the bill of rights in this country's Constitution should not seek legal costs. This is a good practice that was adopted in this very petition.

The rationale for this is that no one should be seen to be profiting from a matter in which he or she has no interest beyond that of other members of the public. Secondly, in every constitutional petition or reference, the Attorney General is a statutory respondent, representing a Government elected by the people. Whenever costs are awarded against the Attorney General they are paid out of public funds. A person who brings a public interest action would then be requiring the same public to pay him or her costs. In the event that a public interest petitioner or litigant is unsuccessful and is condemned to pay costs, that too

would be unfair. One individual would have to pay costs in a matter that he or she has no interest beyond that of the other members of the public. This would create a chilling effect and stifle the enforcement of rights and the growth of constitutionalism.



The court concluded that where in Public Interest petitions cases, costs are awarded, the actual amounts taxed and allowed **should be nominal** in respect of professional fees, the rest should simply be awarded only in respect of disbursements.

The above cases were analysed by the Supreme Court in the case of **Muwanga Kivumbi v Attorney General** where the main issue was whether costs should be awarded in a public interest litigation.

Held;

Per **Lillian Tibatemwa**

A proper reading of the above cases reveals that the Court re-affirmed the already established legal principles inherent in **Section 27 (2) of the Civil Procedure Act**, which provides:... **the costs of any action, cause or other matter or issue shall follow the event unless the court or judge shall for good reason otherwise order.**

The principles which can be deduced from the Section are that:

1. The award of costs is left to the discretion of the court.
2. Costs normally follow the event – the general rule is that a successful party will be awarded costs.
3. Just as it is in other areas of the law where the court is empowered to make decisions, the court's discretion must be exercised judicially.

However, while accepting that the principles inherent in Section 27 apply to Public Interest Litigation cases, the above *authorities emphasized that costs in Public Interest Litigation cases should only be awarded in rare cases, that a court must balance the need to compensate the successful litigant on the one hand with the value (s) underlying Public Interest Litigation such as growth of constitutional jurisprudence which would be stifled if potential litigants know that there is a possibility of being saddled with costs in the event of the case being dismissed.*

In other words, in Public Interest Litigation, a court should exercise its discretion to award costs infrequently. Furthermore, where costs are awarded in Public Interest Litigation cases, the award should be nominal.



I therefore do not accept the argument of the respondent that this Court in its earlier decisions established an absolute rule that a party that seeks to enforce Public Interest Litigation should never seek to recover legal costs.

The fact that proceedings involve some public interest aspect does not, of itself, warrant departure from the general rule that costs follow the event.

Even if court found that this was a public interest litigation, it ordered that the appellant be granted costs in this Court and in the court below.

Kwizera v Attorney General

By a majority decision of 4-1, the Justices of the Constitutional Court allowed the petition in part and ordered “*each party to meet its own costs.*” The Appellant was aggrieved by the order that “*each party should meet its own costs*” because he believed that since he had won the petition, he was entitled to costs.

Held;

The principles which can be deduced from Section 27 are that:

1. The award of costs is left to the discretion of the court.
2. Costs normally follow the event.
3. The Court may for good reason depart from the general rule and decline to award cost to a successful party.

There is a dearth of authorities including the case of Iyamulemye David Vs Attorney General, (supra) to the effect that the law in this area appears well settled. The award of costs is in the discretion of the Court, and it usually follows the event unless the Court for good reason orders otherwise.

Just like any other discretion, it must of course, be exercised judicially and not

arbitrarily, otherwise an aggrieved party is free to challenge the court's decision by way of an appeal.



According to **Duhaime's Law Dictionary**,(www.duhaime.org,*accessed on 19.12.2016*), the phrase '*costs follow the event*' means that: "an award of costs will generally flow with the result of litigation; the successful party being entitled to an order for costs against the unsuccessful party."In other words, the general rule is that a successful party will be awarded costs. This was emphasized by Odoki Ag. JSC in the case of **Iyamuleme David vs. AG SCCA NO.4 of 2013**. He held *inter alia* that:

While it is trite law that the award of costs is on the discretion of the Court, the award of costs must follow the event unless the Court, for good reasons orders otherwise, according to Section 27 of the Civil Procedure Act.

Thus in **Besigye Kizza vs. Museveni Yoweri Kaguta and Electoral Commission, Presidential Election Petition No. 1 of 2001** Odoki (CJ) stated:

It is well settled that costs follow the event unless the court orders otherwise for good reason. The discretion accorded to the court to deny a successful party costs of litigation must be exercised judicially and for good cause. Costs are an indemnity to compensate the successful litigant the expenses incurred during the litigation. Costs are not intended to be punitive but a successful litigant may be deprived of his costs only in exceptional circumstances.

It therefore follows that if a court decides to depart from the general rule, the court is obliged to give reason for not awarding costs to a successful litigant. It is only then that it would be evident on record that in reaching its decision, the court has complied with the statutory requirement that its departure from the general rule has been for *good reason*

In Constitutional Petition No.14 of 2005, the appellant was successful on 1 out of the

3 grounds raised in his petition and on the second and third grounds, he was partially successful. Therefore, the court should have awarded the appellant at least 2/3 of the costs of the petition unless the court's departure from the general rule that a successful party is entitled to costs was for 'good reason'



Court noted it is on record that four out of the five Justices gave no reason for their departure from the general rule stated that a judicial officer is obliged to give reasons for declining to award costs to a successful party. court therefore faulted the 4 Justices of the Constitutional Court for not giving reasons for their departure from general rule that costs follow the event.

On public interest litigation, Justice Lilian Tibatemwa applied the same reasoning and authorities as in **Muwanga Kivumbi** case above holding that **The fact that proceedings involve some public interest aspect does not, of itself, warrant departure from the general rule that costs follow the event.** In Public Interest Litigation, a court should exercise its discretion to award exorbitant costs infrequently. Thus, where costs are awarded in Public Interest Litigation cases, the award should be nominal

Mwiru Paul v Hon Igeme Nathan Nabeta

Whether the learned trial judge erred in law and fact in ordering that each party to an election petition meet its respective costs after dismissing the petition?

Held;

The law is settled that costs in civil litigation follow the event and a successful party is entitled to costs except for good reason connected with the case. The decision to award or not to award costs is within the discretion of the court which tried the case.

Normally an appellate court will not interfere with the exercise of discretion unless it is shown that wrong principles were followed by taking into account an irrelevant factor or failing to take into account a relevant factor.

Section 27 of the Civil Procedure governs the award of costs in civil matters in general. The section has a proviso which states that:

“Provided that the costs of any action, cause or other matter shall follow the event unless the court or the judge shall for good reason otherwise order.”

In election matters the court determining who should bear the costs of an election is guided by rule 27 of the Parliamentary Petitions Rules- S.I 141-2 which state as follows:“



All costs of and incidental to the presentation of the petition shall be defrayed by the parties in such manner and in such proportions as the court may determine.”

Court found that the trial judge gave reasons for her decision. He had stated that petitions are matters of national or political importance for which court should be hesitant to award costs. In order to succeed on this issue the cross-appellant has to demonstrate that the reasons given for the exercise of discretion were not based on facts in the case. The ground failed.

In Uganda Transport Co. v Outa (1985) HCB 27, the judge did not award costs to the appellants for the reason that counsel did not ask for costs. *The court found that costs were in the discretion of the court wherein the successful party can only be denied costs for a good reason.* Court found that the reason given by the judge was not a “good reason” within the meaning of the rule. That there was no good reason for denying the applicants costs.

Costs are assessed through a process called ‘taxation’. But before being assessed they must be awarded by the court i.e. decree must contain an award of costs.

In **Rwantare v Rwabutoga** (1988-90) HCB 100, the learned judge gave no reason as to why costs were not awarded to the successful party. *Court found that costs of any action follow the event unless the judge for good reason otherwise orders.* That the jurisdiction to tax a bill of costs where none were awarded.

Taxing master-registrar (H.C). Magistrate (Mag court)

Parties appear before tax master to present an itemized list of the costs incurred. If registrar satisfied that those are reasonable, passes as present. If unreasonable-taxes off (rechees) the amount leaving only those items that are reasonable. All in the presence of opposite party. If all agree, court goes on to certify them as costs of suit. If any item is not agreed on by any party/challenged before (mag as case) who may proceed to reduce the amounts claimed or to refuse to award such amounts.

Court in **Evaristo Nyanzi v S.M Xavier** (1983) HCB 52 found that the taxing master sits as a court before which the parties lead evidence to prove or disprove costs and he has to make his ruling or order.

The taxation proceedings are actually civil proceedings. Under O.21, r.8 it is provided that a decree or order shall not state the amount of costs which after they have been taxed or ascertained shall be stated in a separate certificate signed by the registrar. This certificate is called a certificate of costs. Any party dissatisfied with the decision of the registrar in taxation may appeal from such decision to the judge in the High

court under the Advocates Act

CONSEQUENCES OF JUDGMENTS AND RES JUDICATA



S.7, CPA: No court shall try any suit on issues in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between same parties or between the same parties under whom they or any of them claim, litigating under the same matter in a court competent to try such a subsequent suit or the suit in which such issue has been subsequently raised and has been heard and finally decided by such court.

Maniraguha Gashumba v Sam

Nkundiye Held;

The law does not provide for a waiver of *res-judicata*, which is a statutory provision set out in mandatory terms under **Section 7** of the **Civil Procedure Act**. It is a law that prohibits courts from trying matters that had already been finally determined.

Res judicata is a plea of jurisdiction, in that **Section 7** of **Civil Procedure Act (supra)** bars any court from trying a suit or even an issue that is *res judicata*. It would be correct therefore to state that courts have no jurisdiction to try a matter that is *res judicata*.

The learned judge therefore erred when he held that a plea of *res-judicata* had been waived by the defendant at the trial before the Magistrate's Court.

Court agreed with the position stated by the Court of Appeal of Uganda in **Ponsiano Semakula versus Susane Magala & Others, 1993 KALR P.213** where it had this to say on the doctrine of *res-judicata*.

*"The doctrine of res-judicata, embodied in S.7 of the Civil Procedure Act, is a fundamental doctrine of all courts that there must be an end of litigation. The spirit of the doctrine succinctly expressed in the well-known maxim: 'nemo debet bis vexari pro una et eadem causa' (No one should be vexed twice for the same cause). Justice requires that every matter should be once fairly tried and having been tried once, all litigation about it should be concluded forever between the parties. The test whether or not a suit is barred by **res-judicata** appears to be that the plaintiff in the second suit trying to bring before the court in another way and in the form of a new cause of action, a transaction which he has already put before a court of competent jurisdiction in earlier proceedings and which has been adjudicated upon. If so, the plea of **res-judicata** applied not only to points upon which the first court was actually required to adjudicate but to every point which properly belongs to the subject of*

litigation and which the parties, exercising reasonable diligence might have brought forward at the time”.

Regarding judgments court held that a judgment must be signed and dated by a judge or Magistrate who wrote it at the time of pronouncing it. A judgment that is not signed and dated in accordance with **Order 21 rule 3(1)** of the **Civil Procedure Rules** is no judgment at all and is



therefore invalid and that neither oral evidence of the Judicial Officer who wrote it nor certification could validate such an unsigned judgment.

Having found that there was no valid judgment in this case. Court held that the plea *Res-judicata* could therefore not have been sustained in absence of a valid judgment, or decree or pleadings and proceedings of the first Court.

Further that since the action was based on trespass, in cases of continuing trespass *res-judicata* does not apply. Even limitation would not bar an action based on continued trespass.

Hon Anifa Bangirana Kawooya v Attorney General and NCHE.

The brief facts of this petition are that the National Council Council for Higher Education issued a certificate of Equivalence to the petitioner in 2005. That in 2010 the legality of the said certificate was unsuccessfully contested in the High. That after the decision of the high court, the 2nd respondent recalled the petitioner's said certificate and cancelled it. The petitioner therefore, challenged the decision of the 2nd respondent hence this petition.

Whether the matter of the petitioner's academic qualifications upon which the Certificate of Equivalence was recalled is resjudicata

Held;

The meaning of resjudicta is also expounded in BLACK'S LAW DICTIONARY EIGHT EDITION as follows:-

“1. An issue that has been definitely settled by judicial decision.

2. An affirmative defence barring the same parties from litigating a second law suit on the same claim or any other claim arising from the same transaction or a series of transactions and that could have been – but was not – raised in the first suit.

The author of the dictionary explains that resjudicata has three essential elements:-

- i. An earlier decision on the issue.
- ii. Final judgment on the merits
- iii. The involvement of the same parties, or parties in privity with the original parties.

Court concluded that the second respondent does not have a right to investigate or

recall the academic qualifications of the petitioner now when the matter was settled by the highest court of this country in which it could have voiced its concerns but chose not to do so. The 1st respondent had a similar right but did not seek to exercise it. The matter is now *res judicata* and the respondent cannot now resurrect it.



Kamunyne & Others v The Pioneer General Assurance Ltd [1971] EA 263

The respondent was the mortgagee of land owned by the appellants. The land was let partly to African and partly to non-African tenants. The respondent collected rents from non-African tenants, but it could not be in possession of land occupied by African tenants. In an action in the High Court the appellants claimed that the mortgage was time-barred and that the mortgagee was never in possession of the mortgaged land. The High Court held that the mortgage was not time barred. An appeal from this decision was dismissed. The appellants filed a further action claiming substantially the same relief and the respondent contended that the claim was res judicata. The appellants claimed that the first action was solely concerned with the land occupied by non-Africans and that the mortgage was divisible between the two categories of land. The High Court dismissed the case and the appellants appealed.

Held;

Law, Ag. V-P. considered the S.7 and stated,

“The test whether or not a suit is time barred by res judicata seems to me to be—is the plaintiff in the second suit trying to bring before the court, in another way and in the form of a new cause of action, a transaction which he has already put before a court of competent jurisdiction in earlier proceedings and which has been adjudicated upon. If so, the plea of res judicata applies not only to points upon which the first court was actually required to adjudicate but to every point which properly belonged to the subject of litigation and which the parties, exercising reasonable diligence, might have brought forward at the time. The subject matter in the subsequent suit must be covered by the previous suit, for res judicata to apply.

On the facts, the defences raised were substantially the same as in the earlier case and the claim was res judicata against the appellants.

Saleh Bin Kombo Bin Faki v Administrator General, Zanzibar [1957] 1 EA 191

The administrator general was a party to two suits under different capacity. Whether issue decided in first case constitutes res judicata in the second?

Held;

The defendant's contention as to res judicata must fail as although in each of the two cases the (plaintiff as) Administrator General was a party, he was not in both cases "litigating under the same title" for the purpose of S. 7 of the Civil Procedure Decree: in the former case he sued as administrator of the estate of the late Hassanbhai Dadabhai and in the present case he had been sued as administrator of the late Kassamali Alibhai.



Semakula vs Magala: (1979) HCB 90

Held: That the plea of re-judicata is to be found in S.7 of the CPA. One this plea is successfully raised the suit must be dismissed. The court was right to hear arguments on the plea of res-judicata and dispose of the preliminary point of law before hearing the evidence on the merits of the case.

Test: That in determining whether or not a suit is barred by res-judicata the test is whether the plaintiff in the second suit is trying to bring before the court in another way in the form of a new cause of action a transaction which has already been presented before a court of competent jurisdiction in earlier proceedings and which has been adjudicated upon. If this is answered affirmatively, the plea of res-judicata will then not only apply to all issues upon which the first court was called upon to adjudicate but also to every issue which properly belonged to the subject of litigation and which might have been raised at the time through the exercise of due diligence by the parties.

Since the issue of ownership between the same parties had been finally determined, it was the same issue for determination and trial judge rightly dismissed the second suit on the argument of res-judicata.

Re Rwenzigye 1976 HCB 173

There was a dispute that the trial court concerning the encroachment on the plaintiff's land by the defendant. Judgment was given for the plaintiff. The defendant objected to the hearing of the suit in the instant case on the ground that the case was res-judicata. The objection was overruled by the trial magistrate. The defendant appealed to the High Court.

Held: The Chief Magistrate quite rightly held in his ruling that the alleged acts of trespass were fresh ones. So whatever the same land was trespassed on earlier, it was immaterial. Each new act of alleged trespass gave rise to new cause of action and in this case the question of res-judicata did not apply.

Lubisya v. Ernesti Wanyoni: **Held:** That court severed the part that is res-judicata in respect of one party and proceeded with the rest.

Nakilidde v. Hotel International: For res-judicata to apply, the matter ought to have been determined on its merits. It must be decided finally and not merely dismissed.

NB: If the court dismisses the case that is not res-judicata but where the dismissal is

due to failure to disclose a cause of action, no new/fresh suit can be brought.

Nabanoba v. Sekamwagi: The suit had been tried by a court that had no jurisdiction [LC court].

Held: That the suit was not res-judicata since the original court had no jurisdiction. The case must be determined on its own merits.



Isaac Bobu busulwa vs Kasande: A dismissal of a suit on a preliminary point not based on the merits of the case does not bar a subsequent suit on the same fact and issues and between the same parties.

Laxmidas Turin v. Sister Rose Muyanza: Res – judicata can only apply to a person where judgment has been given.

Julian Galton Fenzi V Nabbosa Natasha Marie¹

The grounds of the application are that the applicant and the respondent got divorced on 10th May 2011 vide Divorce Cause 9 of 2010 where the applicant was granted custody of the two children in the marriage aged 17 years and 11 years respectively and that since then, the respondent being mother of the children has failed to support them financially notwithstanding the fact that she was granted all the property which is valued at approximately US \$ 1 million and that it is just and equitable that the application for maintenance be granted as it is in the best interest of the children. It was held that the matter was *res judicata* and should have been brought under the divorce proceedings.

Court relied on ***Posiyano Semakula Vs Susane Magala [1979] HCB 90*** where the Court of Appeal held inter alia that:-

“In determining whether or not a suit is barred by res judicata the test is whether the plaintiff in the second suit is trying to bring before the court in another was in the form of a new cause of action a transaction which has already been presented before Court of competent jurisdiction in earlier proceedings and which has been adjudicated upon. If this is answered affirmatively the plea of res judicata will then not only apply to all issues upon which the first court was called upon to adjudicate but also to every issue which properly belonged to the subject of litigation and which might have been raised at the time through the exercise of due diligence by the parties”.

In the instant case, the court held as follows;

The import of the above decision is that the applicant should have exercised all due diligence to litigate on all issues which properly belonged to the subject of litigation – in this case divorce – and sought for maintenance of the children whose custody was granted to him in the consent judgment. Since the applicant chose not to seek for maintenance in the divorce proceedings or it has come as an afterthought, as it seeks to be, then indeed he is barred by *res judicata* to resurrect the matter now.

In the case of *Isaac Bab Busulwa Vs Ibrahim Kakinde*, HCCS No. 1494 of 1977 Court held;

¹ (MISC.CAUSE No 6 OF 2012) [2013] UGHCFD 7 (6 September 2013)



“A dismissal of a suit on a preliminary point not based on the merits of the case does not bar a subsequent suit on the same facts and issues and between the same parties”

The above decision followed an earlier decision in ***Keharchand Vs Jan Mohammed (1919-21) EACA 65*** where it was held:-

“Where a suit has been dismissed on a preliminary objection the plaintiff has not had an opportunity of being heard on the merits and is therefore not res judicata”

EXECUTION AND STAY OF EXECUTION

An ordinary judgment (on notice) is given after a full trial in which all parties have been heard. It is provided for under O.21, r.1. [See also S.2 of the CPA which defines “judgment”] S.2 of the CPA similarly defines a decree and a decree holder. A decree is extracted from a judgment.

O.22, execution of decrees and orders. An order comes from a ruling of the court and rulings are made in interlocutory applications. Judgment comes at the end of the hearing, from where you execute a decree. How do you determine the various modes of execution.

Enforcement of judgment may be by..... (modes of execution) after attachment, they sale and then imprisonment not exceeding 6 months, its not a punishment and it does not change with regard to the amount, so the court tempts you, its contempt of court, after 6 months and you have still not paid, then the court can send you back.

See **Kiggundu’s** case, he was convicted for 6 months but he still did not pay. (but does the debt extinguish? You ask to be made bankrupt.)

Execution is the process of realizing the benefits of the judgment. Section 38 CPA prescribes the powers of court to extract execution and it states briefly that upon application of a decree holder, the court may order execution of the decree in the following ways,

- a. Delivery of any property specifically a decree
- b. Attachment and sale
- c. Attachment of debt
- d. Arrest and detention in prison.
- e. By appointing a receiver
- f. In such other manner as the later of the relief granted may require.

g. The nature of the defendant, S.14 GPA (Osotraco v A.G)

S.14 Government Procedure Act prohibits some form of execution against government, you cannot attach government's property nor can you evict government R.15GPR. It's been removed by the constitution in that it's inconsistent with the constitution and therefore void.



i). The nature of the relief that you are seeking. What assets does this person have to be able to satisfy you, if the person is a limited liability company, you cannot imprison it, it's not a natural person. O.22r.8. see O.22 r.7, 8, 9, 10- provide for applications for executions in different situations r.8 states if it's a money judgment, you can apply in court there and then for arrest. r.8

(2) provides for a written application and the format of application is appendix D form 5. (How do you want to execute).

S.38 Attachment and sale

S.44 CPA prescribes the property available for attachment and sale in execution of a decree and its very generous. It talks about all saleable, moveable and immoveable property belonging to the judgment debtor. He is one to whom the decree has been passed.

The section talks about money, land, buildings, promissory notes, bonds, debts, shares etc. the section excludes the necessary wearing apparel (clothes), cooking vessels, beds and beddings of the judgment debtor of his wife and children and such ornaments in accordance with any usage that cannot be departed with by any woman. Section 45 mentions the seizure of property, it talks about, that it must be done between sunrise and sunset and the other doors should not be open and provides for some protection of women who are not allowed to appear in public. You are not allowed to execute at night.

Semakula v Musoke, the warrant was for the attachment of moveable property. The bailiff hired a 2 and half track, 30 porters and 2 armed policemen, they had been sent to attach property, they took off the roof, removed all the windows and doors leaving only the mud and wattle walls, and the question was. Was that an attachment of moveable property?

Justice Allen said that moveable property would include furniture, carpets, curtains, radio, T.V but it would not include parts of the fabric of the house itself, iron sheets forming the roof, the window frames and doors were part of the house itself and they could only be attached if the whole house was attached as immoveable property. Attachment of immoveable property. How do you attach immoveable property? R.15, O.22. you take the warrant and place it on the house and take a warrant to the land office and it would cancel the fresh one and it would show an order of court.

TransAfrica Bank v N.S.S.F when building the worker's house, transafrica sued..... After property has been attached, how do you sale it. O.22

r.62,63,64.

The court bailiff is required to advertise the property for sale. In the case of immovable, it must run for 30 days and in cases of moveable, it must run for 15 days. It must be advertised in the newspapers.

Attachment of debt. Garnishee proceedings.

How do you attach a debt? O.20



O.20r.1 provides for the proceedings for application for the garnishee order. It provides for the format of the order. r.2 gives the effect of the garnishee order and it says it shall bind such debts in his hands. R.3 and r.4 talk about the order being made absolute.

If the garnishee, the person holding the debt does not appear execution must be directly issued against that person as if he was the judgment debtor.

Execution by way of arrest and detention civil debtor's prison.

This can only apply to natural persons.

S.40-43, O.22 r.34, 35, 36, essentially a judgment debtor may be arrested in execution of a decree and he can be detained for a period up to 6 months. This detention is at the cost of the judgment creditor and O.22 r.36 provides for a subsistence allowance and it says that it shall be as court considers sufficient with respect to the class of which the judgment debtor belongs.

Abdul Aziz v Rajab it states that you must issue a notice to show cause before a warrant of arrest is issued.

Objector.

Stay of execution

.....
.....

.and handed over to the liquidator and there can be no attachment against the company in liquidation. You cannot attach goods of a company in liquidation.

Objector proceedings. O.22 r.55

The ground for objection is that the property that has been attached is not liable for attachment. To attach property, you attach that of the judgment debtor (not of any other person) named in the decree.

O.22 r.55 (2) provides, postponing a sale until the objector application is heard. What is the scope of the investigation under objector proceedings r.57?

The elements of r.57

1. That it was not in his possession (judgment debtor)
2. If it was in his possession, it was in trust for somebody.

Patel v Patel (1958)E.A. see 'Chitale and Rao-(c.p Book)

'the question to be decided is whether on the date of attachment the judgment debtor or objector was in possession or where the court is satisfied that the property was in possession of the objector it must be found whether he held it on his own account or in trust for his judgment debtor. The sole question to be investigated is that one of possession. Questions of legal right and title are not relevant except in so far as they affect the decision as to whether the possession is on account of or in trust for the judgment debtor or some other person.



S.A v N.S.S.F supreme court decision No 1/99. It also comes down to the same question.

Uganda Mineral water v Iran

It was held that the scope of investigation to be carried out by the court under O.22 r.55, 56, 57 says it's not for determining ownership of the property being threatened with attachment. At the end of the objector proceedings, one of the parties must sue in order to determine title to the property, see r.60, an order made under the rule is only provisional and a suit may be brought to claim the property notwithstanding the order. *The court must answer the question whether on the date of attachment the judgment debtor/ the objector was in possession of the property if the court finds that it was the judgment debtor the inquiry will go on further. Secondly, the court must determine whether the objector held the property on his or her own account or in trust of the judgment debtor or some other person.* A delayed objector proceeding, that itself is known for refusing it. r.55 (1) provided that no such investigation shall be made.....if you left the car at the neighbors, went for holiday came back and he told you that it was attached, what would be your remedy. See r.71, s.66-not exceeding 2000/=

Stay of execution. O.22 r.23, r.26. O.43r.4 and 7

All that is being done is that, the judgment debtor is asking the court to stop the execution process to allow him to take another step and these steps may be to appeal the judgment being subject to execution, set aside revision, and judgment. It's not enough to refuse to pay.r.23 the court to which the decree has been sent for execution (transferred decree) but it also results on the stay of execution on the grounds given in that rule.r.26, where a suit is pending in any court against an order of a decree that rule has been interpreted to mean e.g where A is the decree holder against B but in the same court B has a claim against A)

S.98 gives the state powers

O.43 r.4(3) you should satisfy those conditions and they as follows

- A substantial loss may result.
- That the application has been made without unreasonable delay.
- That security has been given for the due performance of such decree as may ultimately be binding
- upon the applicant and these are the 3 criteria for stay of execution.
-

Kampala Bottlers v Uganda Bottlers, Justice Potter refused to give a stay of execution of his own judgment and his reason was that he was the one who had written the judgment. Likelihood of success of the appeal is not a ground for stay of execution.

b.) That the application has been made without unreasonable delay.
In practice the application is made orally at the time of passing judgment and the court may grant an interim stay and ask the applicant to file a formal application.

Lawrence musitwa kyazze v Eunice Busingye.



Should the high court refuse the stay of execution, you go to the next court and ask in that court for stay of execution. It is not an appeal but rather an application. They have a similar rule to

s.98. on the question of substantial loss, the court has considered the likelihood of recovering the money from the plaintiff and has held that if the money can be recovered then no stay can be ordered. In other words if A is somebody of substance (judgment creditor, you go get the money from him, then court says it will not.....stay o execution

Herbert Ntabgoba Jeremiah v. New Vision

DFCU v Russejere, they followed a decision from Ghana, that *if a stay is to be granted security for the performance for the decree should be provided*. If a stay is to be refused even the judgment creditor should provide security for the refund of the money.

COLLECTIVE AND POST JUDGMENT REMEDIES

The Slip rule:

- As a general rule of law once a court has pronounced its judgment or passed a decree or order, such court is *functus officio* and cannot alter, amend or otherwise vary its judgment decree or order unless in accordance with the law

In **Orient Bank vs Frederick Zaabwe & Anor**, held; that as a general rule *“the decision of this court on any issue of fact or law is final, so that the unsuccessful party cannot apply for its reversal.*

- The law however recognizes the fact that administration of justice entails the making of mistakes whether clerical or otherwise and therefore provides for an avenue through which such mistakes or errors can be rectified and one such avenues is the slip rule which constitutes an exception to the aforementioned general rule [functus officio]
- The slip rule is provided for in S.99 of the CPA for High Court and Magistrate Courts. Rule 36[1][2] read together with rule rule 2[2] of the Court of Appeal rules and Rule 35 of the Supreme Court rules read together with rule 2[2] the aforementioned provisions confer a discretion upon the respective courts in appropriate circumstances to vary or otherwise amend judgment decrees or orders where doing so is in the interest of justice

In order for the slip rule to be successfully invoked the following principles may have to be satisfied:

1. There must be a clerical or arithmetical mistake or error apparent of the face of the judgment decree or order that requires rectification by the court



In **Kwizera Eddie v Attorney General**, where court ordered each party to bear its costs, it was held that there was no slip as the court had exercised its discretion and made a deliberate decision based on the partial outcome of the petition.

In **David Muhenda v Humphrey Mirembe**, court held that the remedy did not lie in recalling the judgment of this court and varying or amending or clarifying it or applying the slip rule to correct the alleged injustice caused by mis-description of the boundaries because this court did not set out a description of boundaries in its judgment.

2. The error or mistake or omission should be one which after rectification will give meaning to the intention of the court as reflected in its judgment [the correction or rectification effectuates the intention of the court]
3. The court may also invoke the slip power where there is an omission which if it had been drawn to its attention such court is left in no doubt as to the order it would have made

As for the applicability of the slip rule, the former Court of Appeal for East Africa set out the principles applicable in the case of **Karsandas Raniga vs Jivraj & Ors (1965) EA 700** as follows:

“(iii) ‘slip orders’ may be made to rectify omissions resulting from the failure of counsel to make some particular application.

(iv) a slip order will only be made where the court is fully satisfied that it is giving effect to the intention of the court at the time when judgment was given, or in the case of a matter which was overlooked, where it is satisfied beyond doubt, as to the order which it would have made had the matter been brought to its attention.”

In that case a decree for possession, arrears of rent and mesne profits was passed against the Appellant by the then Supreme Court of Kenya. Before lodging the record of appeal, the Appellant had successfully applied to the Court of Appeal for East Africa for a stay of execution pending the hearing of the appeal. On the terms and under that order, the Appellant made certain payments to the Respondent. The

appeal was subsequently heard and allowed but counsel for the Appellant failed to apply to vacate the order for stay of execution and for the refund of the moneys paid under that order. Counsel for the Appellant applied for amendment of the order so as to provide for refund of moneys that had been paid by the Appellant.



The court was satisfied that if the facts had been before the court when the judgment was given on appeal, the court would on application, or indeed on its own motion, have made the order for refund sought, which was consequential to the decision. It therefore ordered accordingly.

Sir Charles Newbold, P. in ***Lakhamishi Brothers Ltd. - vs - R. Raja and Sous (1966) EA 313 at p. 314*** stated that *‘A court will, of course, only apply the slip rule where it is satisfied that it is giving effect to the intention of the court at time when judgment was given or in the case if a matter which was overlooked, where it is satisfied beyond doubt, as to the order which it would have made had the matter been brought to its attention.’*”

This explanation was approved in **Orient Bank vs Frederick Zaabwe & Anor,**

Where the Court stated the scope of the application of the ‘*slip rule*’ when it said the following:

The above position still holds good. It is therefore, now fairly well settled that there are two circumstances in which the slip rule can be applied namely:

- (1) Where the court is satisfied that it is giving effect to the intention of the court at the time when the judgment was given; or*
- (2) In the case of a matter which was overlooked, where it was satisfied beyond doubt, as to the order which it would have made had the matter been brought to its attention.”*

Fang Min v Dr. Kaijuka

Presenting the applicant’s case, Mr. Byaruhanga submitted that this application is brought under the slip rule (rule 35 (1) of the Rules of this Court) seeking that this court’s judgment dated 20th January 2009, in Civil Appeal No. 23 of 2007, be recalled and corrected. He pointed out that the intention of this court at the time of the judgment was to restore the judgment and orders of the High Court. He argued that

that being so, the alternative order made by this court that “if the specific performance cannot be performed, then the respondent (now applicant) is to pay the appellant (respondent), by way of damages, the market value of the suit house” was a slip

Court relied on the authorities in *Lakhamishi Brothers and Orient Bank*’ and then;



held;

Clearly, payment of the market value of the suit house if the specific performance cannot be performed was not included in the respondent's prayers. The inclusion of the order of payment of the market value of the suit house if the specific performance cannot be performed was therefore a slip. The fact that the respondent did not include that relief in his prayer was overlooked. Had that fact been brought to the attention of the court, without doubt, the order for payment of the market value of the suit house if the specific performance cannot be performed, would not have been made.

To give effect to the intention of the court is to remove the alternative order "*for payment, by way of damages, of the market value of the suit house if the specific performance cannot be performed.*" The order should stop at restoring the judgment and orders of the High Court.

- The slip rule cannot be invoked where the alleged mistake or error is one of law or arises out of misinterpretation of law by the court but the appropriate remedy is to appeal.

In **Ahmed Kawooya Kangu vs Bangu Aggrey Fred CACA NO. 03 OF 2007** the applicant filed an application seeking an order that the Court of Appeal correct its judgment under the slip rule by citing what the applicant called the right laws. The court held that:

"Rule 36(1) & (2) of the CAR entitles the court to correct its judgment where there are found clerical or mathematical mistakes or accidental slips. The error or omission must be an error in expressing the manifest intention of the court. Court cannot correct a mistake of its own in law or otherwise even where apparent on the face of the record. Under the slip rule court cannot correct a mistake arising from its own misunderstanding of the law. The present application deals with what is alleged to be the misunderstanding by court of the law and its alleged misapplication or

misconstruction. The application is not tenable under the slip rule.”

The Court further stated that:

“We would point out that the judgment /order on record correctly manifests our intention. We would not have ruled otherwise. Should any court be persuaded to correct its misunderstanding of the law or applying old laws, it would open a very wide door to chaos.”



- The slip rule cannot be invoked as an ingenious attempt to argue an appeal indirectly before the same court

Lakhamishi Brothers Ltd. - vs - R. Raja and Sous (1966) EA 313

The applicants, who were respondents in the appeal, applied to recall, review and set aside a judgment of the court on grounds which made it quite clear that the review asked for would result in a new judgment contrary to the intention of the court in the original judgment. A preliminary objection was taken on the ground that the court had no jurisdiction to entertain the application.

Held –

- (i) the court had an inherent jurisdiction to recall its judgments in order to give effect to its manifest intention or to what clearly would have been the intention of the court had some matter not been inadvertently omitted, but it would not sit on appeal against its own judgment in the same proceedings;
- (ii) the application should be struck out on the ground that the Court had no jurisdiction to entertain it.

Newbold;

These are the circumstances in which this court will exercise its jurisdiction and recall its judgment, that is, only in order to give effect to its intention or to give effect to what clearly would have been its intention had there not been an omission in relation to the particular matter. But this application, and the two or three others to which I have referred, go far beyond that. It asks, as I have said, this court in the same proceedings to sit in judgment on its own previous judgment. There is a principle which is of the very greatest importance in the administration of justice and that principle is this: it is in the interest of all persons that there should be an end to litigation.

Kwizera Eddie v Attorney General

By a majority decision of 4-1, the Justices of the Constitutional Court allowed the petition in part and ordered “*each party to meet its own costs.*” The Appellant was aggrieved by the order that “*each party should meet its own costs*” because he believed that since he had won the petition, he was entitled to costs. As a result, he filed

Constitutional Application No. 18 of 2006 under Rule 36 of the Court of Appeal Rules, seeking an order from the same Court to correct an error or mistake or slip in its judgment using the “*slip rule*” and award him the costs of the petition. The learned Justices of the Constitutional Court (*Mukasa Kikonyogo, DJC*,



*Okello, Mpagi- Bahigeine, Kitumba and Byamugisha JJ.*4) who heard the application held that the “*slip rule*” did not apply to the circumstances of the case since the Court had deliberately exercised its discretion under Section 27 of the Civil Procedure Act in making the order on costs. The Court advised the Appellant that the solution lay in an appeal and proceeded to dismiss the application with costs to the Respondent. The appellant then appealed against this decision to the Supreme Court.

Held:

Obviously, the grounds set forth in the said application and the arguments put forward by the Appellant were challenging the decision of the Constitutional Court on costs. In other words, the Court was being asked to sit on appeal in its own judgment and actually change the original order that “*each party should bear his own costs*”, to the opposite order awarding the costs to the Appellant. This would tantamount to asking the Court to alter its decision which could only be done on an appeal and not under the “*slip rule*” because the Constitutional Court was at that point *functus officio*.

The Court was right to find that the application was clearly and designedly an appeal camouflaged as an application for a slip order. Appeal dismissed.

- The procedure is by notice of motion with a valid affidavit

In **Orient Bank Ltd v AVI Enterprises Ltd**, it was held that Section 99 of the Civil Procedure Act permits the court on its own motion or on the application of any of the parties to correct clerical or mathematical mistakes in judgments, decrees or orders or errors arising from any accidental slip or omission.

The slip rule is part of the problem question in exam

The law that relates to review of decrees and orders

- The law relating to review of decrees and orders is set in S.82 of the CPA and Order 46 of the CPR this is however not judicial review because these are decrees or orders of courts of law.



- Review may be invoked by any person who considers him or herself aggrieved by a decree or order. The person must be legally aggrieved in the sense that the decree or order affects the applicant's legal or equitable interest in the subject matter of the suit.

Busoga growers corporative union ltd v nsamba

- It follows therefore that even a third party who was not party to the decree or order but who is legally affected by the said decree or order may equally apply for review

An aggrieved party was defined by *Justice Karokora* as he then was in **Mohammed Allibhaivs W.E. Bukenya and Another, C.A 56 of 1996**, citing, *Re Nakirubo Chemists (U) Ltd; In the matter of the Companies Act (1979) HCB 12*; to include any party who has been deprived of his property. He also cited the case of *Kavdu vs Bever Ginning Co. Ltd, Akot and Others 1929 AIR Nagpur 185*; noted that, whereas court has inherent powers to review an order passed where it affected a third party; *it must be a person who has suffered a legal grievance and the principle applies depending upon the peculiar circumstances of each case.*

In the same case, **Justice Odoki** observed that it is well established that while a 3rd party may apply for review under the law, the party must establish that he is an aggrieved person.

George William Katerega v Commissioner Land Registration

Held; While appreciating that only a party to a suit has a right of appeal under **S. 67 CPA**, it is not correct to state that only a party to the suit may apply for a review of judgment. **O.46 r.(I) CPR**, provides that any person considering himself or herself aggrieved by decree or order from which an appeal is allowed but from which no appeal has been preferred, or from which no appeal is allowed may apply for a review of the judgment to the court that passed the decree or made the order. [See also: **Section 83 CPA**]. The expression “any aggrieved person” has been interpreted to mean such a person who is aggrieved who may be a party to the suit or any third party with interest in the subject matter of the suit. See: *Adonia v. Mutekanga [1970] EA*

429. Furthermore, a third party filing for review must be prepared to demonstrate that he or she has suffered legal grievance. See: *Mohamed Albhai v. E.E Bukenya, S.C.Civ.Appeal No. 56 of 1996.*

Gordon Sentiba and ors V IGG;



Per Kitumba; The complaint raised in ground 3 is that the respondent has no locus standi, to apply for review of a judgement that is between private citizens and the government. I appreciate the submissions by counsel for the respondent that according to Order 46 Rule 1 and 2 and section 82 of the Civil Procedure Act, any aggrieved party may move court to review a judgment. *That may be done by an aggrieved party who may not necessarily be a party to the proceedings*

Where do you apply [forum]

- The wording of S.92 of CPA and order 46 of the CPR clearly confers jurisdiction to exercise powers of review on the court that passed the decree or that made the order

Margaret Senkuule V Musa

Nakirya Nakagwa v dominico

kigundu J. odoki

- However where the decree or order is one that was entered by the registrar of the High court under O.50 of the CPR, the appropriate forum is an application before a judge of the High court. A registrar does not have jurisdiction to review or otherwise set aside decrees or orders passed or entered by him or her

Read

O.50 and practice direction No 1 of 2002

Attorney General and Uganda Land Commission v James Mark Kamoga

The issue was whether a trial judge had power to review a consent judgement entered by the registrar?

Held;

that the powers of the registrar of the High Court are circumscribed. Unlike a judge of the High Court who exercises the entire jurisdiction vested in that court, a registrar of the High Court can only exercise such jurisdiction of that court as is delegated by or under legislation. The powers of registrars are set out in Order 50 of the CPR and

enhanced in Practice Direction No.1 of 2002. It suffices to say that the former confers on the registrar powers to enter judgment in uncontested cases and consent judgments, to deal with formal steps preliminary to the trial and with interlocutory applications and to make formal orders in execution of decrees; and the latter empowers the registrar to handle matters governed by specified rules and Orders of the CPR, which do not include any rule of Order 46. *Clearly, the power to review judgments or orders of the High Court, (including those entered by the registrar) is not among the powers delegated to the registrar.* In the circumstances, the prohibition that an application for review should be to the



same judge or judges who issued the decree under rule 4 was not applicable since the registrar who passed the decree was not empowered to review it.

The Supreme Court disagreed with the Court of Appeal, and held that by entertaining the application for review in the instant case the trial judge did not breach any rule.

The Circumstances under which review is invoked

1. Under both S.82 and O.46 an application for review may be made where the applicant is aggrieved with the decree or order
 - a. Where there is a right of appeal from the decree or order but no appeal has been preferred
 - b. Where there is no right of appeal from the decree or order

Mohamed Albhai v. E.E Bukenya, S.C.Civ.Appeal No. 56 of 1996.

Held; Review can be sought where-

- (a) a decree or order from which an appeal is allowed, but from which no appeal has been preferred; or
- (b) by a decree or order from which no appeal is hereby allowed
 - Review is more appropriate under the second circumstance where the decree or order is by consent of the parties S.67[2] of the CPA

Wasike v Wamboko [1976–1985] 1 EA 625

Held; It is clear from section 67(2) of the Civil Procedure Act that no appeal can lie from a consent judgment. The proper course for the appellant to take is to set aside the consent judgment either by way of review by the High Court, or by some process in that Court.

Grounds for review.

- S.82 confers unlimited discretion upon the court to review or otherwise vary its decree or order without restriction to any grounds . however O.46 does set out grounds upon which an application for review may be found [though in case of a consent the grounds invoked are those that vitiate a valid contract

Attorney General and Uganda Land Commission v James Mark Kamoga

It is well settled, that unlike judgments in uncontested cases, consent judgments are treated as fresh agreements, and may only be interfered with on limited grounds such as illegality, fraud or mistake.



The grounds for review are clearly provided for and were outlined in *FX Mubwike Vs UEB High Court Misc. Application No.98 of 2005.* These are:

1. That there is a mistake or manifest mistake or error apparent on the face of the record.
2. That there is discovery of new and important evidence which after exercise of due diligence was not within the applicant's knowledge or could not be produced by him or her at the time when the decree was passed or the order made.
3. That any other sufficient reason exists

Mohamed Albhai v. E.E Bukenya, S.C.Civ.Appeal No. 56 of 1996.

Held; On the wording of this rule the grounds upon which a review may be sought by an aggrieved person are:

- (a) discovery of new and important evidence which was not within his knowledge and could, therefore, not be produced by him, or
- (b) Some mistake or error apparent on the face of the record, or
- (c) any other sufficient reason.

1. Applicant may file the application on the ground that there is a new and important matter of evidence that was not drawn to the attention of court at the time he passed the decree or order and that could not even be ascertained even with due diligence.

Joyce Kusulakweguya v Haider Somani

Court allowed an application for review on finding that there has been the discovery of a new matter or evidence in this case, that is the court did not have evidence that Block 208, Plot 1098 was part of a public highway road! Surely the Applicant could not have been in possession of a public highway with her buildings on it.

Touring Cars (K) Ltd v Munkanji [2000] 1 EA 261

Held; Where a judge finds that new and important evidence has been produced, he is under a duty to consider whether this evidence could not have been discovered after the exercise of due diligence by the party seeking to produce it. In the circumstances of the case, and if this ground was to be considered, the new evidence was not of a kind that Munkanji could not have discovered during the hearing of the suit.



2. Where there is an error or mistake apparent on the face of the record in other words it should not be an error of law which would otherwise be a ground of appeal

Edison Kanyabwera v Pastori Tumwebaze

The basis of the application for review was that there was some mistake or error apparent on the face of the record and that error was dismissing the application in absence of affidavit of service as proof that the defendant or his counsel had been served with the relevant hearing notice.

Held;

That in order that an error may be a ground for review, it must be one apparent on the face of the record, i.e. an evident error which does not require any extraneous matter to show its incorrectness. It must be an error so manifest and clear that no court would permit such an error to remain on the record. The "error" may be one of fact, but it is not limited to matters of fact, and includes also error of law.

In the instant case, the absence from record of an affidavit of service on the defendant or his counsel was an error or mistake on the face of the record justifying a review of the trial judge's refusal to set aside the ex parte judgment against the defendant.

Kalokola Kaloli v Nduga

Robert Held;

Regarding whether there is a mistake or error apparent on the face of the record, examples of such situation could be where a suit proceeds ex-parte when there is no affidavit of service on record; see: *Edison Kanyabwere Vs Pastori Tumwebaze SCCA 61/2014* or where the court enters a default judgment when there is no affidavit of

service or where a summary judgment is entered under Order 36 when there is a pending application for leave to appear and defend on record.

Therefore, a misdirection by judicial officer on a matter of law cannot be said to be an error apparent on the face of the record. An error apparent on the face of the record was defined in **Batuk K. Vyas Vs Surat Municipality AIR (1953) Bom 133** thus:



“No error can be said to be apparent on the face of the record if it is not manifest or self evident and requires an examination or argument to establish it”

Joyce Kusulakweguya v Haider

Somani Held;

That a ground which sought to review an “*erroneous view of evidence or the law*” was not a good ground for review though it may be a good ground for appeal.

The correct intention and test for review was brought out in the case of **Nakabugo V AG [1967]**

EA 60 where Sir Udo Udoma (Chief Justice as he then was) held at 62 – 63

“...if the order was ultra vires... that should be a good ground to take this matter to the Court of Appeal; as it is doubtful whether this court would be competent to sit as a Court of Appeal on its own order and decree. It is also doubtful whether the provisions of 042 r 1 (now 046 r 1) were ever intended to deal with a matter where a court had made an order which is ultra vires its power.

It seems to me that provisions of the order aforesaid would apply only where there has been a discovery of new and important matter or evidence which after the exercise of due diligence was not within the knowledge or could not be produced by the Applicant at the time when the order or decree complained of was made...”

Court agreed with the reasoning of The Lord Chief Justice (as he then was) as *a review must relate to the discovery of a new matter or evidence and not a challenge such as ultra vires to a matter or evidence already on record.* Court added that a review at the end of the day is to guard against injustice and abuse of court process because the court did not have the correct evidence before at the time of the hearing due to no culpable fault of an aggrieved person.

3. The applicant may also rely on sufficient cause. But sufficient cause in that context is read and interpreted *ejusdem generis* [it should be related to the first two supra]

Kalokola Kaloli v Nduga Robert

Held; Regarding sufficient reason, this means a reason sufficient on grounds analogous to those in the rule.

Yusufu v Nokrach [1971] 1 EA 104

Held; The three cases in which alone mere review is permitted are those of new material overlooked by excusable misfortune, mistake or error apparent on the face of the record, or “any other sufficient reason”. The expression “sufficient” would naturally be read as meaning sufficiency of a kind analogous to the two already specified, that is to say, to excusable failure to bring to the notice of the court new and important matters, or error on the face of the record.



Court did not agree with the submission that the expression “any other sufficient reason” gives a discretion to the court to consider generally the merits of an application for review. If such a contention were to prevail every decree or order could be reopened for review on any ground whatsoever as if the application were an appeal. Undoubtedly court held that a review is not the same thing as, or even a substitute for, an appeal and that there are definite limits within which review is permitted. A point which may be a good ground of appeal may not be a good ground for review.

- Where the decree or order is by consent of the parties the grounds invoked to review or otherwise vary the consent are grounds that would vitiate a varied contract

Wasike v Wamboko

Held; It is now settled law that a consent judgment or order has contractual effect and can only be set aside on grounds which would justify setting a contract aside, or if certain conditions remain to be fulfilled, which are not carried out.

Kiiza Daniel v Uganda Land Commission.

Held; It is essential to emphasise that a consent judgment derives its legal effect from the agreement of the parties, and may only be set aside on the same grounds upon which a contract may be set aside or rescinded because it is governed by the ordinary principles that govern a contract. Such grounds include collusion, fraud and any other reason that would enable the court to vary or altogether rescind the contract.

- Where the application for review is heard and determined on merit whether allowed or dismissed, the relevant remedy for an aggrieved party is to appeal subject to whether or not the right of appeal is automatic or requires leave.

Dr Ahmed Kisule V Greenland Bank in Liquidation and

ors Held;

Rule 3(1) of Order XLVI which provides for dismissal of an application for a review is not included on the list under Order 44 rule 1 of orders from which appeal lie as of right. It therefore falls under Order 44 rule 2 which lists the orders from which an appeal lie only with leave of court.

It follows therefore, that the applicant needed leave either from the High Court which dismissed his application for review or from the Court of Appeal to which appeal against that dismissal would lie if leave was granted.



THE LAW RELATING TO REVISIONS OF JUDGMENTS OR DECISIONS IN COURTS OF LAW

- The law that provides for revision and the grounds for revision in S.83 of the CPA however S.98 may be invoked especially where the decision sought to be revised emanates from an LC court.

Paskali Juma Wasike v Alex Onyango

On behalf of the applicant, M/s Zaabwe and Co. Advocates filed this application for Revision under sections 83 and 98 of the Civil Procedure Act asking court to revise the LC.I of Mbaja Mugungu judgment and the Chief Magistrate's Decree and execution orders. Counsel for the respondent contended that an LC Court is not a subordinated court to the High Court unless a matter came by way of appeal. That section 83 of the Civil Procedure Act by implication excludes LC Courts as subordinate courts to the High Court. Therefore this court has no jurisdiction to revise the judgment of the LC Court under S.83 of the Civil Procedure

Held;

S.98 of the Civil Procedure Act was enacted purposely to preserve inherent powers of the High Court where there is no specific provision of the law to cure a situation. This section saves the inherent powers of court so that such powers should not be limited in any way by any provision in a given law.

In view of S.40 of the Local Council Courts Act, the High Court has supervisory powers over Local Council Courts and for this purpose those courts are subordinate to the High Court.

- The power of revision is only exercisable by the High court of Uganda as a court with original jurisdiction

Gulu Municipal Council v Nyeko and Ors (1997) 1 KALR 9

Held: There is no prescribed procedure to initiate revision proceedings under S.83 CPA, however an applicant aggrieved by the decision of a Magistrate's Court may

apply to the High Court to have the decision of the Magistrate's Court revised.

- The power of revision is only exercisable by the High court in respect of judgments, proceedings or decisions of Magistrates Court under the CPA



- It follows from the foregoing that the High court has no jurisdiction to revise a decision of the registrar of the High court [because those are decisions of the High court not the Magistrates court]

Ddegeya Trading Stores (U) Ltd vs. URA Civil Appeal No.44 of 1996, cited in Attorney General and Uganda Land Commission v James Kamoga, it was held that a judge of the High Court erred in law to invoke the power of revision under section 83 of the CPA, to set aside a taxation order made by a registrar. That the High Court's revisional power applies to decisions of the magistrates' courts only

Grounds for revision

The grounds for revision are statutory and set out in S.83 and they relate to

- a) Exercise of a jurisdiction not vested in it in law;
- b) failure to exercise a jurisdiction so vested; or
- c) acting in the exercise of its jurisdiction illegally or with material irregularity or injustice,

Munobwa Muhamed v Uganda Muslim Supreme Council

Held; Black's Law Dictionary (9th Edition) defines revision as "*a re-examination or careful review for correction or improvement*" or "*an altered version of work*"

That in cases where High court exercises its revisional jurisdiction, its duty entails examination by the Court of the record of any proceedings before the High Court for the purpose of satisfying itself as to the correctness, legality or propriety of any finding, order or any other decision and the regularity of any proceedings before the High Court.

That the court revises the proceedings, judgments and orders of the magistrates' courts at any opportunity that it gets, i.e. whenever their records come before it. It is also clear from the provisions of s. 83 (c) CPA that the judicial discretion of magistrates does not escape this court's revisional power. Decisions are revised whenever the trial magistrate fails to exercise his/her jurisdiction or where he/she acts illegally or with material irregularity or injustice.

Muhinga Mukono v Rushwa Native Farmers Co-Operative Society Ltd [1959] 1 EA 595

The applicants applied to the High Court for revision of the order on the grounds that

the subordinate court had no power after the time had expired to extend the time for filing defence. *Whether High Court has right to revise interlocutory order of subordinate court.*

Held;

The High Court has the right to revise an interlocutory order of a subordinate court; the right, however, is discretionary. In the exercise of its discretion it is well established that the High



Court will not necessarily interfere in every case where the subordinate court has made an irregular order unless its failure to do so would result in substantial injustice.

In *Murakatete Faith v Boniface Ayebare*, H.C. Civil Revision No. 43 of 2011, before a Chief Magistrate's Court the plaintiff claimed a sum of U shs 47.000.000= (forty seven million only), interest thereon at the rate of 8% per month with effect from 28th July 2009, until payment in full, a liquidated penalty of 20% of the outstanding amount as per the agreement and the costs of the suit resulting in a judgment and decree of the Chief Magistrate in excess of his pecuniary limit of shs 50,000,000/=. The High Court observed that although at the time of filing the suit it was ostensibly within the pecuniary jurisdiction of the court, the chief magistrate acted without jurisdiction when he passed judgment and issued a decree which was beyond his pecuniary jurisdiction and rightly declined to execute the decree because his judgment and subsequent orders were void and an order of revision was made setting them aside.

Mubiru v kayira

- Where the challenge to the decision of the lower court is premised on proceedings alleged to be a subject of manifest illegality, it must also be proved that the illegality goes to the root of the matter and causes a miscarriage of justice.

Bwambale Byasaki v Shaka Augustine

The law lets some errors pass and catches only those that are material and have affected the determination of the case causing injustice. The outcome is questioned if court acted with material irregularity and it resulted into injustice. So, no reasonable court would entertain an application for revision orders against every procedural error or step wrongly or irregularly taken by a trial court before the matter is finally determined by the magistrate's court. If it were to be so no trial would come to a conclusion before a lower court. Counsel would be rushing to the High Court all the time alleging material irregularity or illegality or injustice instead of waiting to file an appeal

- The court's powers are discretionally in nature and where the grant of an order of revision is likely to be prejudicial to the parties inclusive of third

parties the court may not grant the order.

Bwambale Byasaki v Shaka Augustine

Held; Section 83 of the CPA as quoted above is within the discretion of court to determine that the lower court worked outside the law or within the law with material irregularity. As rightly put by Justice Elizabeth Musoke in the case of ***Bwire Wafula & Another –Vs- John Ndyomugyenye*** , ***Civil Revision No. 016 Of 2011***, the High Court of Uganda has very wide



powers in as far as Revision of proceedings of magistrate's courts are concerned. Section 83 CPA provides expressly for the procedure of how to initiate the matters for revision. It reads in part.

“83. The High Court may call for the record of any case which has been determined under this Act by any magistrate's court

Kabwengure v Charles Kanjabi cited in mubobwa muhammed supra

- Where the application is made belatedly and after third parties have acquired an interest in the subject matter of the suit, the court may be very reluctant to grant the order

Mubobwa muhammed v Uganda muslim supreme council

- An application for review cannot be entertained by court save where the respondent thereto is served with the notice of hearing

Munobwa muhammed v Uganda muslim council

- An application for revision in terms of procedure is not provided for in S.83 but it may be commenced by notice of motion or by formal letter or the court may in appropriate cases move itself or may be moved by the lower court.

Law Development Centre Vs. Edward Mugalu & anor.

Held: It is sufficient that any aggrieved party writes to the Registrar High Court drawing his attention to the irregularity by a subordinate court and requests that the matter be brought before a judge.

Bwambale Byasaki v Shaka Augustine

How are records called for? The Registrar or relevant court officer writes to the magistrate in charge of the record to be brought then it is placed before the judge (the High Court) for perusal. How the matter is brought to the attention of the High Court is informal. It is not formal and is therefore not formalized under the Civil Procedure Rules. The framers of the Civil Procedure Rules were so careful and expressly clear not to provide for filing of chamber summons yet it is a matter initiated by the Judge's Chambers. I do not see how counsel claims he has a right to file a Notice of Motion (formally) and shove it in the face of court. *He can only file pleadings or write his opinion or be heard on being invited by court.* In fact, the law merely provides for the

right of the parties to be heard but does not provide for the filing of formal court proceedings by way of Notice of Motion as of right by a party who thinks the court committed an error on record. Part

(c) reads in part:

“ the High Court may revise the case and may make such orders in it as it thinks fit; but no such powers of revision shall be exercised-



(d) Unless the parties shall first be given the opportunity of being heard;..... ”

This court is of the firm view that Revisions are a protected reserve of the court exercising its discretion, judicially, to correct errors on the face of the record. It is not a procedure open to any party to apply for. The discretion is exercised by the High Court which invites the parties to address it on the irregularity brought to its attention. If the practice is different, that does not make the Notices of Motion the most rightful manner of bringing the matter to the attention of the High Court. If the legislature had intended that, the wording of the law of Revision would be similar to that of Reviews.

Roland Kakooza Mutale v AG and igg [the high court may adopt procedure that is convenience for practice in absence of procedure] and also read S.39[2] of the judicature Act “Where in any case no procedure is laid down for the High Court by any written law or by practice, the court may, in its discretion, adopt a procedure justifiable by the circumstances of the case.”

APPEALS; (General Principles and Powers of appellate courts)

- An appeal connotes a rehearing by a High Court of a matter determined by a lower court depending on the law that governs the subject matter provides for the right of the appeal, the form of the appeal and the powers of the appellate court

FX Mubuuke v UEB, it was held that an appeal is a rehearing by the appellate court.

- An appeal therefore lies from one court to the higher court in the hierarchy of court and no appeal can lie from the same court to the same court

Orient Bank v Fredrick Zzabwe it was held that a Court cannot be asked to sit on appeal against its decision.

- An appeal is normally preferred by a party to a judgment decree or order or a successor in title to such a party provided substitution of parties is allowed by court

Stanbic bank Uganda ltd v

- An appeal must be commenced within the time prescribed by law. This time varies from one court to another depending on the applicable law e.g. from High court to Court of Appeal it is 14 days and from Magistrate to High court it is 30 days

Kemisa senya v muhammed jafar



- An appeal is a creature of a statute and the right of appeal cannot be implied or inferred **Baku Rafael and anor v Attorney General**, it was held that *“It has long been established that appellate jurisdiction springs only from statute. There is no such thing as inherent appellate jurisdiction”*.

In **Roko Construction Ltd v Mohamed Hamid** it was held that the legal principle is that there is no right of appeal against a decision of a court of competent jurisdiction unless that right is expressly provided for. The right to appeal is a creature of statute. It cannot be given by mere implication:

Nalongo Burashe v Kekitiibwa Magdalene

Held;

It is long settled law that there is no such thing as an inherent right of appeal and that an appeal is a creature of statute. And therefore the argument that leave to appeal was a simple procedural matter was wrong. This court lacked jurisdiction to entertain a matter in which leave to appeal was required but was never sought or granted. The appeal was therefore incompetent and liable to be struck out on that account

However since the appeal raised very serious issues of law that were of public importance which required court's determination, court on its own motion granted the appellant leave to appeal pursuant to Rule 42 of the Judicature (Court of Appeal Rules) and the consequential effect of which was to regularize this appeal which would otherwise have been struck out

Role of appellate courts.

- Where an appeal is lodged in the first appellate court, the mandate of that court is to subject the entire evidence on record to a fresh and exhaustive scrutiny taking into account the fact that it did not observe the demeanor of witnesses but and considering the judgment of the trial court without shrinking from overruling where it finds that it was not based on correct evaluation of evidence

Banco Arabe Espanol v. Bank of Uganda Supreme Court Civil Appeal No.8 of 1998

Held; The first appellate court has a duty re-appraise or re-evaluate evidence by affidavit as well as to evidence by oral testimony, with the exception of the manner and demeanour of witnesses, where it must be guided by the impression made on the trial judge



Court considered the case of *Kifamunte Henry v Uganda*;

This court recently restated the application of this rule in the case of *Kifamunte Henry v. Uganda* Supreme Court Criminal Appeal. No. 10 of 1997 (unreported). Although the principles stated therein were in respect of a criminal appeal, there can be *no doubt that they equally apply to civil appeals*. On a first appeal, an appellant is entitled to have the appellate court's own consideration and views of the evidence as a whole and its own decision thereon. In *Kifamunte Henry* (supra) this court said: "We agree that on first appeal. The appellant is entitled to have the appellant's own consideration and views of the evidence as a whole and its own decision thereon. The first appellate court has a duty to rehear the case and to reconsider the materials before the trial judge. The appellate court must then make up its own mind not disregarding the judgment appealed from but carefully weighing and considering it. When the question arises which witness is to be believed rather than another and that question turns on manner and demeanor, the appellate court must be guided by the impression made on the judge who saw the witness but there may be other circumstances quite apart from the manner and demeanor which may show whether statement is credible or not which may warrant a court in differing from the judge even on a question of fact turning on credibility of witness which the appellate court has not seen."

That the duty of a first appellate court as restated in the case of *Kifamunte* (supra) applies to re-appraisal or re-evaluation of evidence by affidavit as well as to evidence by oral testimony, except, of course, that impression of demeanour of witnesses does not arise in the case of affidavit evidence.

The above principles in *Kifamunte* were also adopted in the case of **Uganda Breweries v Uganda Railway Corporation** holding that;

"There is no set format to which a revaluation of evidence by a first appellate court should conform. The extent and manner in which re-evaluation may be done depends on the circumstances of each case and the style used by the first appellate court. A first appellate Court is expected to scrutinise and make an assessment of the evidence but this does not mean that the Court of Appeal should write a judgment similar to that of the (trial)."

- The role of the second appellate court is to confirm whether the first appellate court complied with its duty to subject the entire evidence on record

to a fresh and exhaustive scrutiny and whether it came to a correct conclusion.

In *Banco Arabe Espanol v. Bank of Uganda* Supreme Court Civil Appeal No.8 of 1998; court still adopted the position in *Kifamunte* regarding the role of the second appellate court. It stated;



In the same case the court also said: “It does not seem to us that except in the clearest of cases, we are required to re-evaluate the evidence like a first appellate Court. *On second appeal it is sufficient to decide whether the first appellate court on approaching its task, applied or failed to apply such principles.* See *D.R. Pandya v. R* (1957) E.A.(supra) *Kairu v. Uganda* [1978] HCB 123.” “This court will no doubt consider the facts of the appeal to the extent of considering the relevant point of law or mixed law and fact raised in any appeal. If we re-evaluate the facts of each case wholesale we shall assume the duty of the first appellate court and create unnecessary certainty. We can interfere with the conclusions of the court of appeal if it appears that in consideration of the appeal as a first appellate court, the court of Appeal misapplied or failed to apply the principles set out in such decisions as *Pandya* (supra) *Rumala* (Supra) *Kairu* (Supra).”

The Supreme Court found that the Court of Appeal failed in its duty, as first court of appeal to subject the evidence in the case to that fresh scrutiny which the appellant expected it to do.

- No evidence that was before the lower court can be admitted on appeal except where a proper application to adduce additional evidence is heard and allowed by the appellate court

Francis sembuya v allports ug ltd
Jolland magret kato v nuru
nalwoga

In **Banco Arabe** *supra*

Held; The duty of the Court of Appeal to re-appraise evidence on an appeal from the High Court in its original jurisdiction is set out in rule 29 Rules of the Court of Appeal as follows;

“29(1) on any appeal from a decision of a High Court acting in the exercise of its original jurisdiction, the court may;

(a) re-appraise the evidence and draw inference of fact,

(b) in its discretion, for sufficient reason take additional evidence or direct that additional evidence be taken by the trial Court or by commissioner.

- Where it is a third appeal, the third appellate court is only mandated to determine the questions of general and great public importance that must be clearly set out as grounds of appeal.
- A third appeal cannot ordinarily be preferred except where the lower court has granted a certificate of importance or where it refuses the appellate court grants such certificate.



APPEALS IN LC COURT

- The LC1 or village court, is by law a court of first instance in all matters where LC courts have original jurisdiction. Where a person is aggrieved with the decision of the village court such a person has an automatic right of appeal to LC2 court and any party aggrieved with the decision of the LC2 has an automatic right of appeal to LC3 COURT

In **Yona Mutala v Patrick Nantwaluma**² the appeal was lodged on the ground that the LCIII court acted as a court of trial without the case going through LCI and LCII. The Chief Magistrate held that the appeal would be allowed on that ground alone as the procedure was not adhered to by the LCIII court. The proceedings were rendered a nullity and a fresh trial was ordered in the ordinary Grade II Magistrate Court of the area.

Where a party is aggrieved with the decision of the LC 3 court such a party has an automatic right of appeal to the chief magistrate's court.

LC courts Act of 2006

Do the LC's exits read the constitutional court in *Ruranga*;

Nalongo Burashe v Kekitiibwa Magdalene

Both the appellant and the respondent were parties to Kalangala Parish L.C II court in Civil Suit No.12 of 2009 in which the respondent was the plaintiff. The dispute was over ownership of a kibanja (Customary land) in the same area. The suit was heard and judgment was given in favour of the respondent. The respondent who was the successful party applied to the Chief Magistrate's court for execution of the judgment of the LCII Parish Executive committee court but the Chief Magistrate dismissed the application contending that the LC II Court had no jurisdiction to entertain a matter of a civil nature as a court of first instance. The matter then went to the High court by way of Notice of Motion and the High Court held that the LCII Court that had tried the suit had original jurisdiction to do so.

The appellant being dissatisfied with the decision of the High Court she filed this appeal. The application was brought under Sections 98 and 83 of the Civil Procedure

Act and Order 52, Rule 1 of the Civil Procedure Rules as well as Sections 30 and 32 of the Local Council Courts Act Cap 13 of 2006.

The main issue that was to be determined was the issue of Jurisdiction of LCII Court and whether those courts had jurisdiction to entertain civil matters and land matters to be specific.

² Civil Appeal No.32/1989 as cited in Jean Balya ; **Popular Justice and Resistance Committee Courts in Uganda** page 52



Held;

Section 50(1) of the Local Council Act, Act 13 of 2006 repealed the Executive Committees (Judicial Powers) Act (Cap 8) while S.30 of the Land (Amendment) Act, 2004 introduced S.76 A of the land Act which made The Parish or Ward Executive Committee Courts, courts of first instance in respect of land disputes. Therefore those two pieces of legislation removed legal jurisdiction from a village executive committee court to try and determine land disputes. The Parish or Ward executive committee court was the court of first instance and not the village executive committee. In cases of land, the LCII court had jurisdiction to hear and determine land matters although local council courts established at the village level had no jurisdiction to try and determine land dispute matters.

4. The judgment of the LC II Court from which this appeal emanated was delivered on 25th April 2009 and by that time the Constitutional Court had made a decision which had far reaching implications on the nature and legality of the village, parish or ward local council committees in *Ruranga Versus Electoral Commission and the Attorney General* [2008] 1 E.A P. 387 that decision had made orders which were to make several amendments a number of laws, regulations and policies in respect of local council committees and local council elections. As a result the elections of village, parish and ward councils which were under way did not take place and these amendments were not yet done by the time the decision from which this appeal emanated was made, that therefore meant that the decision was made by a court that was not legally constituted at the time and so that decision was no decision at all as it was devoid of any force of law.

The decision and orders of the L.C. II Executive Committee Court at Malongo, Masaka District was accordingly set aside on account that the court was not legally in office as the elective term of the members had expired. The parties were at liberty to institute fresh proceedings in a court of competent jurisdiction if they wished so.

- Where a person is aggrieved with the decision of the chief magistrate on appeal and is desirous of appealing to the High court, there is no automatic right of appeal. He must apply for leave of the chief magistrate's court first and where the chief magistrate refuses to grant leave such a person is entitled to

apply to the High court for leave to appeal

APPEALS IN MAGISTRATE'S COURT AND FROM MAGISTRATE'S COURTS TO HIGH COURT.

S.220 of the MCA O.43 of the CPR and S.79 of the CPA

Appeals from magistrate court to the High court



- The right of appeal from decisions, order or decrees rendered by magistrates court is provided in 220 (1)(a) of the MCA. A person aggrieved with a judgment, decree or order with a chief magistrate or magistrate grade 1 exercising original jurisdiction has an automatic right of appeal to the high court.

Francis Bwengye v Haki Bonera it was held that Under Section 220 (1) (a) of the Magistrates Courts Act, Cap.16, an appeal lies from the decrees or any part of the decrees and from the orders of a Magistrate Grade I to the High Court. In these circumstances no leave is required before filing the appeal.

- An automatic right of appeal also exist in favor of the person aggrieved with the decision, judgment or orders of a grade 2 magistrate to the chief magistrate. See s.220(1)(b) of the MCA
- However where the chief magistrate renders a judgment siting as an appellate court, an appeal only lies with leave of the chief magistrate and if the leave is not granted then leave of the High court. S.220(1)(c) of the MCA
- Where the appeal lies with leave, leave must be obtained before such appeal is preferred in the High court.

Nalongo Burashe v Kekitiibwa Magdalene
Held;

Where leave is required to file an appeal and such leave is not obtained, the appeal filed is incompetent and cannot even be withdrawn as an appeal.

It is long settled law that there is no such thing as an inherent right of appeal and that an appeal is a creature of statute. And therefore the argument that leave to appeal was a simple procedural matter was wrong. This court lacked jurisdiction to entertain a matter in which leave to appeal was required but was never sought or granted. The appeal was therefore incompetent and liable to be struck out on that account

However since the appeal raised very serious issues of law that were of public importance which required court's determination, court on its own motion granted the appellant leave to appeal pursuant to Rule 42 of the Judicature (Court of Appeal Rules) and the consequential effect of which was to regularize this appeal which would otherwise have been struck out

- An appeal from the magistrate's court to the High court must be lodged within 30 days from the date of the decision of the judgment sought to be appealed. See S.79 of the CPA



S. “ 79. CPA (1) Except as otherwise specifically provided in any other law, every appeal shall be entered –within thirty days of the date of the decree or order of the court as the case may be appealed against; but the appellate Court may for good cause admit an appeal though the period of limitation prescribed by this section has elapsed.

In **Buso Foundation ltd v Bob Mate Phillips** it was held that an appeal which was filed 3 months from the date of the lower court’s decree prima facie offended the 30 day rules prescribed by S. 79 (1) of C.P.A

- Where the 30 days have lapsed no varied appeal can be lodged in the High court save with leave of court granting extension of time with which to appeal
- The application for extension of time is lodged in the High Court by notice of motion with a supporting affidavit explaining why the appeal was not lodged in time.

Margaret Musango v Francis Musango it was held that the court has the discretion to enlarge time for filing an appeal out of time even when the application is not made until after the expiration of the time allowed provided there is good cause. However, an application for such enlargement of time was to be made by notice of motion and heard in open court.

- S.220 provides that the appeal lies from a decree or order and S.79 suggest that the time starts running from the date of the decree or order.

Buso Foundation Ltd V Mate Bob Phillips; held that under S.79 appeal must be lodged **within thirty days of the date of the decree or order of the court.**

How do you appeal

1. The intending appellant ordinarily has the obligation to extract a decree, or order cause it to be signed and sealed and also request for proceedings to be prepared, certified and availed from the judgment or ruling of the trial court.

Abaho Tumushabe V Stanley Beineababo

Held: S.232(1)(a) Magistrate Courts Act requires that an appeal must be from a decree, that at the time the appeal is lodged, a decree appealed from must be in existence.

O.18 r7 (O21 r 7) puts the duty of extracting a decree on the successful party. It was therefore erroneous for the respondent to argue that the intending appellant has the duty to extract the decree.



Haji Muhammed Nyanzi Ali Segne

Held; that it is the duty of the successful party to prepare without delay a draft decree and submit it to the magistrate for signature and sealing. If the applicant's lawyers prepared the decree which gave wrong dates, they have themselves to blame, especially so if they left it to the court to do.

In the instant case, the appellant failed to prove that at any time he applied for a copy of the decree (not even the judgment and proceedings). He had no proof of date of receipt of the decree. He ought to have filed his appeal latest on, 29th November, 1986 i.e. thirty days after the date of judgment. Instead he-filed it' on 3rd December, 1986. It was thus filed out of time. He did not apply for, let alone, obtain leave to file out of time. Application struck out.

- The current legal position is that it is not a mandatory requirement to extract a decree before preferring an appeal to the High Court

Tumuhairwe Lucy v the Electoral

Commission. Held;

After due consideration of the arguments on the point, this court's takes the view that, indeed, the duty to extract a decree in the magistrates' courts lies with the court, in accordance with **O.21 r.7 (3) CPR**. It provides as follows: ***"In a magistrate's court, the decree shall be drawn up and signed by the magistrate who pronounced it or by his or her successor."***

This position is well supported in ***Mbakana Mumbere v. Maimuna Mbabaŕi, HCT-01-CV-CA-003-2003 per Lameck N Mukasa, J.***; where the learned Judge; citing the decision in ***Banco Arabe Espanol v.***

Bank of Uganda (1996) HCT 12 in which the court, after holding that the decree was not properly extracted as required by law, reiterated the position in ***Kibuuka Musoke William & A'nor v. Dr. Apollo Kaggwa, App. No.46 of 1992*** that:

"...It is clear from the above provisions that the extraction of a formal decree embodying the decision complained of is no longer a legal requirement in the institution of an appeal. An appeal by its very nature is against the judgment or a reasoned order. The extraction of the decree was therefore a mere technicality which the old Municipal law put in the way of intending appellants and which at times prevented them from having their cases heard on merits. Such a law cannot co-exist in the context of the 1995

Constitution Article 126 (2) (e) where the courts are enjoined to administer “substantive justice without undue regard to technicalities.”

Clearly, a decree is simply a summary of the court’s decision as to the rights of the parties in controversy. It is in view of these legal stipulations that this fully endorses the position in ***Mbakaina Mumbere case (supra)*** that an appeal against a decree is, in the real sense, an appeal against the judgment.



The effect is that lack of a properly extracted decree is a mere technicality that would not be a ground to strike out a memorandum of appeal duly filed in court; a position in keeping with the spirit and letter of **Article 126(2) (e) of the Constitution** that substantive justice is done without undue regard to technicalities

William Kitembo and Anor V Kiiza Rwakaikara

Held; this Court is alive to the previously strict view that required an appellant to extract a decree before appealing. However, this is now done as a matter of prudence because the Court of Appeal in the case of *Standard Chartered Bank (U) Ltd vs Grand Hotel (U) Ltd* [1999] KALR 577 held that it is no longer a requirement to accompany the appeal with a formal order or extracted decree. The High Court echoed the same legal proposition in the case of *Patrick Nkoba vs Rwenzori Highlands Tea Co. & Another, High Court Civil Appeal No. 5 of 1999 reported in* [1999] KALR 762. For the above reasons I overrule the objection raised by the respondent for lack of merit

The same position was held in Henry Kasambwa v. Yakobo Rutarihamba HCCA No. 10 (1989), and Nawemba Suleiman v. Bwekwaso Magenda (1989) HCB 140. That extraction of a decree is a good practice but not a mandatory requirement. That as long as you have a judgment you may not need to extract a decree to appeal.

2. The intending appellant normally files the proceedings inclusive of judgment by formal letter to the trial court to enable him or her prepare for the grounds for appeal

In **Nawemba Sulaiman V Byekwaso** it was held that it would be anomalous for a party to be required to file a memorandum of appeal before obtaining or having access to the lower court record.

3. It is not a requirement to lodge a notice of appeal either in the magistrate's court or the High court as a notice of appeal does not commence an appeal from the magistrate's courts to the High court.

Buso Foundation Ltd V Mate Bob Phillips

Held; "an appeal is by filing a memorandum of appeal not by a notice of appeal in a magistrate court "

That appeals to the High Court, are governed by the clear provisions of O. 43 C.P.R. and S. 79 of C.P.A. In both provisions, there is no mention requiring the appellant to copy and serve the letter to the lower court requesting for the decree/order and the

proceeding to enable it prepare his appeal. He might do it as courtesy but not as a legal obligation.

In **Sekyali v Kyakwambala**, it was held that an appeal in the High Court is instituted by a memorandum and not notice of appeal.



- The question that arises is whether it is a mandatory requirement to serve the letter requesting for proceedings on the opposite party or counsel.
- In the context of an appeal from the magistrate court to High Court service of such a letter is not a mandatory requirement but a rule of courtesy and prudent practice and failure to do so does not render the appeal fatally defective [it is a mandatory requirement for appeals from High court to court of appeal and court of appeal to supreme court]

Buso Foundation Ltd V Mate Bob Phillips

Held; that appeals to the High Court, are governed by the clear provisions of O. 43 C.P.R. and S. 79 of C.P.A. In the premises there is no legal requirement for the appellant to copy and serve his request to the lower Court's for the decree/order and proceedings to the respondent in appeals to the High Court. He could however as a matter of courtesy copy the same to the respondent.

In **Sekyali v Kyakwambala**, it was held that there is no requirement for an appellant to serve a respondent with the letter seeking a record of proceedings

- The purpose of the request for proceedings is to enable the intending appellant to obtain satisfied copies of the proceedings and judgment and prepare a memorandum of appeal.
- The 30 days within which the appeal must be lodged do not start running until such proceedings are availed.

In the case of **Godfrey Twangye Kazzora v. Georgina Kitari Kwenda (1992-93) HCB 145**, it was held that:

“The time for lodging an appeal does not begin to run until the appellant receives a copy of the proceedings against which he or she intends to appeal.

In this case the application for leave to appeal out of time was filed before proceedings in the lower court had been typed and secured by the appellant or his lawyer.

Buso Foundation Ltd V Mate Bob Phillips

Held;

S. 79 (2), of C.P.A. excludes the time taken by the Court to supply the lower Courts proceedings and order/decrees sought to be appealed from

In the instant case, the respondent requested for the lower Court's proceedings on the 18/5/2009. The Court received that request on the 22/5/2009. The proceedings were certified on the 28/7/2009 and the Memorandum of Appeal was received in Court on the 18/08/2009. All this is in the affidavit in reply and there is no affidavit in rejoinder challenging these averments, hence they are to be taken as uncontested



by the applicant. The total sum of the above is that, the respondents appeal was lodged in time by the Memorandum of Appeal filed on the 18/08/2009. The time between the 15/5/2009 and 18/08/2009 is to be excluded under S. 79 (2) C.P.A.

In **Haji Mohamed Nyanzi v Ali Segne (1992-93) HCB 218** it was held that Under S. 80(1) of the Civil Procedure Act (now 79) every appeal shall be entered within thirty days of the date of the decree or order of the court, and the time taken by the court or registrar in making a copy of the decree or order appealed against and the proceedings upon which it is founded shall be excluded."

In **Sekyali v Kyakwambala**, it was held that Section 79(1)(a) of the CPA provides that civil appeals shall be instituted within 30 days from the date of the decree or order appealed from. Section 79(2) of the same Act provides for due consideration to be given to the time taken by the lower court in making a copy of the decree or order appealed against, as well as the record thereof, in computing the period of limitation. The inference drawn from this provision is that time of limitation starts to run from the date the decree or order appealed from, and record of proceedings are availed to the intending appellant. This legal position was well conceded by both parties in the present application.

- Where the proceedings are availed the appeal is lodged in the High court in form of a memorandum of appeal under O.43.r1

In **Okia Joseph v Igira Lawrence**, it was held that appeals are originated by filing a memorandum of appeal under O.43 r. 1 of the Civil Procedure. That it would be anomalous for a party to be required to file a memorandum of appeal before obtaining or having access to the lower court record.

- The memorandum of appeal must be signed by the appellant or counsel for the appellant and should be lodged in the registry of the relevant division of the High court and it must be signed and sealed by the registrar of the High court. Note that the relevant court fees must be paid for the memorandum of appeal.
- The appellant should serve the memorandum of appeal on the respondent or respondent's counsel

Sekyali v Kyakwambala With regard to the alleged non-service of the memorandum of appeal on counsel for the applicant, court ordered that counsel for the appellant serve opposite party with his memorandum of appeal forthwith, and the appeal proceed to be heard on its merits.

- The intending appellant will then request the registrar of the High court to cause the file containing the original proceedings to be delivered to the High court



- When the proceedings are dully typed, satisfied and the original file forwarded to the High court, counsel for the appellant normally prepares a record of proceedings upon which the appeal is to be argued. This is not a mandatory requirement but prudent practice
- The record of appeal should as a matter of prudent practice be served on the respondent or counsel for the respondent.
- There after the intending appellant should apply to have the appeal fixed for hearing

APPEALS FROM ORDERS OF REGISTRAR OF THE HIGH COURT

- Where a person aggrieved with the registrar of the High court made under the rules, such person has an automatic of appeal to a Judge of the High court. O.50r8

In **Royal group of Pakistan v Mavid Pharmaceuticals** Order 50 rules 8 of the Civil Procedure Rules gives a right of appeal to any person aggrieved by any order of the registrar of the High Court.

- The procedure of the said appeal is a notice of motion to the valid affidavit in support
- The appeal must be lodged in the High court within 7 days from the date of the order Dr byamugisha v NSSF [decision by justice madrama]
- Where the time for lodging such an appeal has lapsed, the proper remedy to the intended appellant is to seek extension within which to lodge the appeal. O.51 r6 and S.96 of the CPA

UNEB v Mparo general contractors [a decision by j twinomujuni]

APPEALS FROM ORDERS AND DECREES OF THE HIGH COURT TO THE COURT OF APPEAL:

- S.66 of the CPA provides for the right of appeal from decrees and orders of the High Court to the court of appeal subject to provisions of the Act

- The appellate jurisdiction of the Court of Appeal is also further enshrined in S.10 of the Judicature act which creates a right of appeal from decisions of the High Court subject to provisions of the Constitution, the Judicature Act and any other Act



Pius Niwagaba v LDC

The issue in this application seemed to be whether or not there is a law which creates a right of appeal from the decisions of the High Court to the Court of Appeal against prerogative orders of certiorari, mandamus and prohibition.

Held;

The Court agreed with both counsel in their submission that appellate jurisdiction is a creature of statute. Section 36 of the Judicature Act empowers the High Court to issue orders of certiorari, mandamus and prohibition. The right of appeal in prerogative orders under Section 36 is provided for in Sections 10 and 66 of the Judicature Act and of the Civil Procedure Act respectively. These two Sections have the same effect thus; the Court of Appeal has the jurisdiction to hear appeals from decisions of the High Court. *Therefore, where an order is made by the High Court on a matter brought to it by some statutory provisions and not the Civil Procedure Act or Rules, that order is appealable as of right unless the appeal is specifically excluded by some special legislation.* The decisions so made by the High Court under Section 36 of the Judicature Act are, therefore, appealable to the Court of Appeal.

The Court of Appeal in **Makula International Ltd vs His Eminence Cardinal Nsubuga and Another [1982] HCB 11,** held that when an order is made by the High Court on a matter brought before it by some to statutory provision other than the Civil Procedure Act or Rules, it is appealable as of right, unless the appeal is specifically excluded by law.

Similarly in **Dennis Bireje v Attorney General;**

Held; Section 10 of the Judicature Act provides for the jurisdiction of the Court of Appeal in the following terms; - **“10. Jurisdiction of the Court of Appeal. An appeal shall lie to the Court of Appeal from decision of the High Court**

prescribed by the Constitution, this Act or any other law.”

We appreciate Mr. Matsiko’s argument that sections 10 of the Judicature Act and 66 of the Civil Procedure Act create a right of appeal from decisions given by virtue of section 36 of the Judicature Act. In our view, *Section 10 of the Judicature Act, means that once any law*



prescribes that a decision is made by the High Court, then that decision is appealable to this court.

Section 36 empowered the High Court to issue orders of mandamus, prohibition and certiorari. In our view, those are decisions “prescribed” by law within the meaning of section 10 of the Judicature Act.

Automatic right of appeal:

- An appeal lies automatically from the decree of the High court to the court of appeal where the High court is exercising original jurisdiction S.66 of the CPA
- An appeal may also lie to the court of appeal from a decree of the High Court in exercise of appellate jurisdiction subject to satisfaction of the grounds set out in S.72 of the CPA

James mark kamoga v AG

- However there is no right of appeal from a decree passed by consent of the parties S.67[2] of the CPA

Wasike v Wamboko [1976–1985] 1 EA 625

Held; It is clear from section 67(2) of the Civil Procedure Act that no appeal can lie from a consent judgment. However court went further to emphasise that, the decree envisaged by that provision is doubtless a valid decree regularly entered and obtained without circumstances of fraud or mistake or misrepresentation;

- Decrees arise out of judgments while orders arise out of rulings

William Wanendeya V Stanbic Bank Ug Ltd [Decision By J Engonda Ntende]

Held; Decree is defined under Section 2 of the Civil Procedure Act in the following words,

‘decree means the formal expression of an adjudication which, so far as regards the court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit and may be either preliminary or final. It shall be deemed to include the rejection of a plaint or writ, and the determination of any question within Sections 35 or 95 of this

Act, but shall not include— (a) any adjudication from which an appeal lies as an appeal from an order, or b) any order of dismissal for default;’

The decision in civil suit no. 437 of 2001 was not a decision in default. As far as the court deciding was concerned that decision conclusively determined the rights of the parties, leading to the dismissal of the civil suit no.75 of 2004 which was basically and substantially about the same subject matter between the same parties. As the decision of the court in civil suit no. 437 of 2001 was a decree, it was final. Only an



appeal against the decree in civil suit no.437 of 2001 is able to challenge the same, and not a subsequent suit.

Appeals from Orders

- S.76 of the CPA provides for a right of appeal from orders of the High Court to the Court of Appeal. However such orders are appealable as of right or with leave depending on the law under which they are made See also S.77
- S.76 of the CPA does provide for orders that are appealable as of right and Para H is to the effect that the right of appeal is automatic from any orders made under the rules expressly create a right See O.6r30[1][2]
- An appeal will lie as of right from all orders of the High court in exercise of its original jurisdiction in so far as such orders are set out in O.44r.1 “an appeal shall lie from all orders under this Rule pursuant to S.76[h]” but see also S.66

Dr Ahmed Kisule V Greenland Bank in Liquidation

and ors Held;

Rule 3(1) of Order XLVI which provides for dismissal of an application for a review is not included on the list under Order 44 rule 1 of orders from which appeal lie as of right. It therefore falls under Order 44 rule 2 which lists the orders from which an appeal lie only with leave of court.

It follows therefore, that the applicant needed leave either from the High Court which dismissed his application for review or from the Court of Appeal to which appeal against that dismissal would lie if leave was granted.

That Order 44 rule 4 of the CPR provides that “*application for leave to appeal shall be Motion on Notice.*” The rule therefore, does not give room for oral application.

- Where the order is not appealable as of right under S.76 or under any specific rule, and is equally not provided for in O.44r.1 the appeal must be with leave of court

- The application for leave may be made in the court that passed the order or the appellate court

Nalongo Burashe v Kekitiibwa Magdalene
Held;



Where leave is required to file an appeal and such leave is not obtained, the appeal filed is incompetent and cannot even be withdrawn as an appeal. However since the appeal raised very serious issues of law that were of public importance which required court's determination, court on its own motion granted the appellant leave to appeal pursuant to Rule 42 of the Judicature (Court of Appeal Rules) and the consequential effect of which was to regularize this appeal which would otherwise have been struck out

Alley Route v UDB where Counsel for the Respondent applied for leave to appeal against the ruling. It was **held** that the application was brought under Order 41 rules 1, 2 and 9 of the CPR hence required no leave of Court under Order 44 rules 1(I), (q) CPR before an appeal there from can be filed. Thus there was no need for this application.

- Where the appeal lies with leave, the application for leave may be made informally immediately after the ruling or formally by notice of motion

GM combined v Ak detergents ltd [J Odoki]

While interpreting Order 40 which requires a notice of motion and rule 39 of the Supreme Court Rules,

Held'

Supreme Court/ Court of Appeal rules prevail, Civil Procedure Act and Rules. That the Judge was wrong to treat the informal application as incompetent." The ruling of the learned Judge was substantially a serious misdirection, since Mr. Kabenge was entitled to side-step Order 40 Rule 1(4) and rely upon Rule 39(a) of the Supreme Court rules, to make an informal application.

The party applying for leave has in the first instance the choice, whether to apply informally at the time of delivery of Judgment or Order, or making a formal application later. What is involved in that choice? If the party has instructions to appeal, he may without incurring any costs, apply informally at once.

Indeed, this Court has had occasion to encourage advocates, to be prepared in advance of delivery of Judgment or Ruling, with instructions whether or not to appeal. If instructions are received, no further waste of time and money will occur. If however, the position is not clear and the advocate needs further instructions, then he may apply later by a motion or notice. Initially therefore, the choice of procedure is open to the party who wishes to appeal. Nor is it open to the Respondent to insist on a formal application. His duty is to resist leave being granted upon the merit of decision.

- The applicant for leave to appeal must demonstrate to court that the intended appeal raises serious triable questions of law or fact worth

adjudication by the court of appeal and that it is in the interest of justice that leave be granted.

Alley Route ltd v UDB

Held; the principal upon which leave can be granted was stated in the case of Sango Bay Estates Ltd & Others Vs Dresdner Bank AG (1972) EA 17 where the East African Court of Appeal held that leave would normally be granted where prima facie it appears that there are grounds of appeal which merit serious judicial consideration. In Degeya Trading Stores (U) Ltd Vs Uganda Revenue Authority C. AC Application No. 16 of 1996 their Lordships of the Court of Appeal had this to say:

" An applicant seeking leave to appeal must show either that his intended appeal has reasonable chance of success or that he has arguable grounds of appeal and has not been guilty of dilatory conduct."



Their Lordships went further and stated:-

"As to whether the intended appeal has a chance of success we can only at this stage say that there are matters that merit consideration on appeal"

- See also Rules 42, 44 and 76 of the Court of Appeal rules

Note; an appeal is restricted to grounds or grounds court has granted leave to appeal.

Effect of failure to obtain leave

In **Matovu v Abacus Pharmacy** it was held; The position of the law is now settled. Where leave is required to file an appeal and such leave is not obtained the appeal filed is incompetent and cannot even be withdrawn. It must be struck out. See **Makhangu v Kibwana [1995-1998] EA 175**. This principle was applied by the Supreme Court of Uganda in the case of **Dr. Sheikh Ahmed Mohammed Kisuule v Greenland Bank (In Liquidation) S.C.C.A No. 11 of 2010** where a preliminary objection had been raised on the ground that the appellant had not sought leave of the High Court or Court of Appeal prior to filing the appeal. Kitumba, JSC observed that obtaining leave is not merely a procedural matter but an essential step. She held that no genuine steps had been taken to apply for leave and so there was no competent appeal before the court.

Powers of the Court of Appeal

- Where the court of appeal is the first appellate court, it is empowered to exercise the jurisdiction vested in the trial court and make appropriate orders S.80[1][2] CPA S.11 of the judicature Act

Betrice Kobusingye v Fiona Nyakana on S.11 of the judicature Act

As to the general applicability of the Civil Procedure Act, this is to be found in the this is to be found in the old S. 12 (now S.11) of the Judicature Act. The section

reads as under: -

"For the purpose of hearing and determining an appeal the Court of Appeal shall have all the powers, authority and jurisdiction vested under any written law in the Court from



the exercise of the original jurisdiction of which the appeal originally emanated"

The powers, authority and jurisdiction referred to are those of any trial court whose decisions are appealed up to the Court of Appeal. This provision vests in the Court of Appeal the same powers, authority and jurisdiction which, for instance in this case, the Grade I Magistrate exercised when he tried and determined the case. What this means is this. After the Court of Appeal has heard and reached its conclusions, in deciding the orders which the Court of Appeal can make the court is bound to make such orders that the trial Magistrate could have made in the case in accordance with law. If the trial Magistrate were to award damages the amount would be the figure within the jurisdiction conferred on him by the Magistrates Act. Obviously the Grade I Magistrate in the conduct of the trial was regulated principally by the Civil Procedure Act and the Civil Procedure Rules in addition to the Magistrates Courts Act.

It follows that in making any orders which the trial Magistrate could make, the Court of Appeal will in effect be applying CPA, Civil Procedure Rules and the Magistrate Courts Act because those are the laws which give the trial Magistrate jurisdiction and powers. If the court decided to award damages, the damages would be such that the amount would not exceed what Magistrate's Act allows the trial Magistrate to award. In short section 11 makes it possible for the Court of Appeal to dispose of the case completely instead of returning it to a trial Magistrate to make the orders in conformity with decision of the Court of Appeal. The same is the case where the court determines an appeal from a decision of the High Court made in exercise of original jurisdiction.

- *An appellate court will not interfere with the exercise of discretion of the trial judge unless he proceeded on wrong principles of law or applied the principles incorrectly in a manner that causes miscarriage of justice.*

Mwiru Paul v Hon Igeme Nathan

Held;

Normally an appellate court will not interfere with the exercise of discretion unless it is shown that wrong principles were followed by taking into account an irrelevant factor or failing to take into account a relevant factor.

Court relied on the case of *Software Distributors (Africa) Ltd & another v Kambaho Perez* –CA No.07/06 where it had said.:

“We agree with the statement of the law as cited by both counsel that an appellate court will not interfere with the exercise of discretion by a lower court unless it is clearly shown that the exercise was unjudicially or wrong principles were followed. If there are grounds to support the exercise by the trial judge of the discretion he or she purports to exercise the question of sufficiency of those grounds for this purpose is entirely a matter for the trial judge to decide, and the appellate court will not interfere with the discretion. It is immaterial that the appellate court would have exercised its discretion differently.”

Banco Arab Espanol v Bank of Uganda

Held; It is now well settled law that an appellate court should not interfere with the exercise of unfettered discretion of a trial court unless it is satisfied the trial court misdirected itself in some matter and as a result arrived at a wrong decision, or unless it is manifest from the case as a whole that the trial court was clearly wrong in exercise of its discretion and that as a result there was a failure of justice.

- In an appeal from the High Court to the Court of Appeal fresh evidence may be admitted on application by any of the parties [mainly the appellant] Rule 29 of the court of appeal Rules and Rule 2[2] which is the equivalent of S.98.

Muwulize noman v Anthony kanyike
Navichandra kakubhai radia v
kakubhais Francis sembuya v allports
series

Board of Governors of Gulu V Wilson Odong

Counsel for the appellant argued that under s. 81 (1)(a) of the Civil Procedure Act an

appellate court had, power to take additional evidence, which had not been produced at the trial. The respondent-who appeared in person opposed the introduction of such evidence. He argued



that an appeal is not a trial and therefore the appeal should be conducted on the evidence on record.

Held;

While an appellate Court has power to allow or not to allow an appellant to introduce fresh evidence at the appellate stage it is not of right under the law that the appellant should call witnesses at the appellate stage.

2. The question whether or not allow an appellant to call fresh evidence at the appellate stage was a discretionary matter of an appellate court. The discretion had to be exercised judicially on well founded principles.

3. . The principles upon which an appellate court would exercise its discretion in deciding whether. or not to allow additional or fresh evidence to be introduced at appellate stage were set out in **Elgood v Regina [1968] 1 EA 274** as follows

(i) the evidence that it is sought to call must be evidence which was not available at the trial; (ii) it must be evidence relevant to the issues; (iii) it must be evidence which is credible in the sense that it is well capable of belief; (iv) the court will, after considering that evidence, go on to consider whether there might have been a reasonable doubt in the minds of the jury as to the guilt of the appellant if that evidence had been given together with the other evidence at the trial. v) it is only in very exceptional cases that the Court of Appeal will permit additional evidence to be called;

- Where an appeal to the Court of Appeal is a third appeal, a certificate of importance has to be obtained either from the high court or where the High court refuses then from the Court of Appeal

Beatrice Kobusingye v Fiona Nyakana

This was a third appeal to the Supreme Court from an interlocutory order of the trial magistrate.

Held;

Third appeals to this Court are governed by S.6(2) of the Judicature Act which states:

"6(2) where an appeal emanates from a judgment or order of a Chief Magistrate or a Magistrate Grade I in the exercise of his or her original jurisdiction, but

not including an interlocutory matter, a party aggrieved may lodge a third appeal to the Supreme Court on the certificate of the Court of Appeal that the matter concerns a matter



or matters of law of great public or general importance, or if the Supreme Court considers in its over all duty to see that justice is done, that the appeal should be heard."

That the Court of Appeal ought not to have granted leave to Beatrice Kobusingye to appeal to this Court as the purported appeal was emanating from an interlocutor, order. Section 6(2) of the Judicature Act. prohibits such appeal. It follows that the Court of Appeal erred in giving the certificate for the appellant to lodge this appeal. In the result, the purported appeal is incompetent and must be struck out

- It is no longer a requirement for the appellant to extract a decree or order appealed against before the lodgment of the appeal and failure to do so does not render the appeal fatally defective. J

UBC V Sinba [K] ltd and 4 Ors

Per Kenneth Kakuru JA; The procedure of filing a decree or order in the High Court as I understand it to be is that counsel for a successful party extracts an order or a decree, submits to the other party or counsel for approval. Upon approval it is filed in court and fees are assessed and paid. It is then signed and seal by the Registrar or Judge.

Faith Mwonda

Henry kasamba v yakobo lutaremwe [j kitumba
JB chemicals and pharmaceutical industries ltd v glasco group

Procedure of appealing from High court to Court of appeal

Rules 44 43 52, 76 to 83 and Rules 2 and 5 on extension of time Practice direction No 1 of 2004 the powers of the registrars,

Kambago fred v registered trustees